The Corporation of the Town of Ajax

COUNCIL

Monday, December 12, 2022

Immediately following the GGC Meeting

Electronic Meeting

65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Electronic Meeting: In-person attendance is not permitted at this meeting of Council. This meeting will be live streamed for viewing at www.ajax.ca/live. Electronic participation is permitted pursuant to Council's Procedure By-law. Questions regarding items on the meeting agenda may be submitted for Council's consideration no later than 12pm on December 12, 2022, by e-mail to clerks@ajax.ca.

Online Agenda: Anything in **blue** denotes an attachment/link. By clicking the links on the agenda page, you can jump directly to that section of the agenda.

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DRAFT MINUTES – SUBJECT TO APPROVAL
Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, September 26, 2022

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Councillors	M. Crawford
		J. Dies
		S. Lee
		R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 9:01 a.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: A. Khan

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of June 20, 2022;
- Special Meeting of June 30, 2022;
- Closed Session Meeting of June 30, 2022;
- Special Meeting of July 5, 2022; and
- Closed Session Meeting of July 5, 2022.

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Nicole Cooper, Director of Legislative & Information Services/ Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

5. Delegations and Presentations

5.1 Delegation & Proclamation: October: Neurodiversity Education and Neurodivergent Acceptance Month

Karen Timm, Co-Founder of Neurodivergent Infinity Network of Educators, delivered a presentation on Neurodiversity Education and Neurodivergent Acceptance Month. K. Timm reviewed the purpose and mandate of Neurodivergent Infinity Network of Educators (NINE) and community outreach initiatives. Via pre-recorded presentation, Jaclyn, Durham District School Board teacher, shared her lived experience and perspective, and discussed the important role of NINE. K. Timm noted that the proclamation request aligns with ADHD Awareness Month, Autism Awareness Month in Canada, and International AAC Awareness Month and discussed the importance of education, accessibility and acceptance, and resources available.

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Council Members asked how they can best support this initiative. K. Timm responded to the question from Council Members.

Mayor Collier presented the proclamation certificate and proclaimed October 2022 as Neurodiversity Education and Neurodivergent Acceptance Month in the Town of Ajax.

5.2 **Delegation: Accessibility Advisory Committee End-of-Term Summary Report**

Sepelene Deonarine, 2022 Committee Chair, presented a summary report of the activities of the Accessibility Advisory Committee for 2022. S. Deonarine reviewed the mandate of the Committee, highlights for the year including installation of beach access mats at Paradise Park, 'DRT Ride with the Mayor', barrier removal and installation of parks communication boards, community engagement and awareness initiatives namely the Unmasking Brain Injury Art Exhibit, Guide Dog awareness Month and #RespectTheSpace campaigns, and plans for 2023.

Council Members asked questions regarding nominations for the Regional Accessibility Awards and status of recommendations identified during 'DRT Ride with the Mayor'. S. Deonarine responded to questions from Council Members.

Mayor Collier thanked S. Deonarine for her presentation and commended the Accessibility Advisory Committee for all the hard work that they do.

5.3 **Delegation: Heritage Advisory Committee End-of-Term Summary Report**

Jeff Wood, 2022 Committee Chair, presented a summary of the activities of the Heritage Advisory Committee for 2022. J. Wood reviewed 2022 consultation highlights including monument restoration and door and window restoration at Gordon House, public outreach and education, Heritage Minute videos, heritage preservation, and Ajax Archives.

Council Members asked questions regarding the monument stabilization project at Elizabeth Street Cemetery, future Heritage Minute Videos, and exterior signage approvals. J. Wood responded to questions from Council Members.

Mayor Collier thanked J. Wood for his presentation and all members of the Committee for their contribution to preserving the history and heritage of Ajax.

6. Correspondence

Members separated correspondence items 6.5 and 6.18 for discussion.

Moved by: L. Bower
Seconded by: S. Lee

That the balance of the report (Items 6.1, 6.2, 6.3, 6.4, 6.6, 6.7, 6.8, 6.9, 6.10, 6.11, 6.12, 6.13, 6.14, 6.15, 6.16, 6.17, 6.19, 6.20 and 6.21) dated September 26, 2022 containing Items of Correspondence be received for information.

CARRIED

Item 6.5

Moved by: A. Khan
Seconded by: S. Lee

That Item 6.5 (The Regional Municipality of Durham – Request to Ban Single-Use Plastic Shopping Bags) of the Correspondence Report be received for information.

CARRIED

Item 6.18

Council Members discussed the correspondence, noting that they support the concerns highlighted by Dr. Stas related to Pickering-Ajax Hospital.

Moved by: J. Dies
Seconded by: L. Bower

That Item 6.18 (Dr. Romas V. Stas – Open Letter to Premier Ford – Health Care in Ontario) of the Correspondence Report be endorsed.

CARRIED

DRAFT

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, September 6, 2022

Regional Councillor Dies abstained from voting due to her declared pecuniary interest with respect to item 4.2, as she has family that reside at 290 Old Harwood Avenue.

Moved by: S. Lee
Seconded by: M. Crawford

That the Community Affairs & Planning Committee Report dated September 6, 2022, be adopted.

CARRIED

7.2. General Government Committee Report

7.2.2 General Government Committee, September 12, 2022

Moved by: A. Khan
Seconded by: M. Crawford

That the General Government Committee Report dated September 12, 2022, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: L. Bower
Seconded by: J. Dies

That the Summary of Advisory Committee Activities Report dated September 26, 2022, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

7.4.1. CAO-2022-12: 2022 Strategic Plan Final Report

Christie McLardie, Manager of Public & Strategic Affairs, provided an overview of the results and achievements of the 2018-2022 Strategic Plan, noting 100% completion of the Strategic Plan including the Top 22 by 2022 actions identified by the community.

Council Members asked questions regarding the status of the 'Stronger Together Community Champion' program, staff involvement in the development of the Strategic Plan, action items moved out to 2022-2026 term, and community engagement initiatives. C. McLardie responded to questions from Council Members.

Moved by: J. Dies
Seconded by: M. Crawford

That the 2018-2022 Strategic Plan Final Report be received for information.

CARRIED

8. Regional Councillors' Report

Regional Council Members noted that Durham Regional Council is scheduled to review changes related to sanitary sewer service connections on private property and the Service Line Warranties of Canada (SLWC) program at the September 28, 2022 Regional Council meeting. Members noted that the Municipality of Clarington's clear garbage bag pilot program has been deferred and Durham Region Transit resumed service on Route 211 (Ravenscroft Road, Church Street and Pickering Parkway). Members discussed the success of the Feed the Need initiative.

Council Members asked questions regarding transition of the Blue Box Program and Miller Waste contract renewal. Regional Councillor Crawford responded to questions from Council Members.

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Moved by: S. Lee
Seconded by: J. Dies

That the Regional Councillors' Reports of September 26, 2022 be received for information.
CARRIED

9. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Deputy Mayor Crawford assumed the Chair.

9.1 Support for the Federal Electoral Boundary Review as it Relates to Ajax

Regional Councillor Lee and Mayor Collier introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: S. Collier

WHEREAS under the Constitution of Canada, the federal electoral districts must be reviewed every 10-years following the census to reflect changes and movements in Canada's population;

AND WHEREAS the Federal Electoral Boundaries Commission ("the Commission") for Ontario was allocated one additional district for the province (totaling 122 electoral districts) and found it necessary to propose many new electoral boundaries to correct wide variations in voter equality due to population changes;

AND WHEREAS because of population change, the Commission is proposing adding a sixth riding to the Eastern GTA and changing the boundaries to the existing five ridings, except for Ajax which remains unchanged. With the boundary changes to the Eastern GTA proposed electoral districts, the range of most populous to least populous riding varies by 7,799, ensuring fair representation by population;

AND WHEREAS by keeping the federal electoral district boundary in line with the Town of Ajax boundary the federal riding representative will be equipped to take a singular focus in speaking and acting on behalf of the people of Ajax;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council support the Commission's decision to leave the Ajax federal electoral district unchanged; and

2. A copy of this motion be sent to Commission Secretary Paula Puddy, and Ajax MP Mark Holland.

CARRIED

Mayor Collier resumed the Chair.

10. By-laws

Council Members asked if there were any subsequent changes to the Parkland Dedication By-law. Sean McCullough, Supervisor, Planning Policy & Research, responded to the question from Council Members, noting no substantive changes to the by-law.

Moved by: L. Bower
Seconded by: A. Khan

That By-law numbers 54-2022 to 63-2022 be read a first, second and third time and passed.
CARRIED

11. Notice of Motion

None

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12. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including Ajax Candidate Meet & Greets hosted by Carea Community Health Centre (CAREA) and Community Development Council Durham for the Ward 1 Candidates (at McLean Community Centre), Ward 2 Candidates (at Audley Recreation Centre), and Ward 3 Candidates (at Ajax Community Centre) on October 3, October 5 and October 13, 2022, respectively, and community forums hosted by Christian Faith Outreach Centre and CAREA under the theme 'Making Every Voice Heard' for the Mayoral and Ward 3 Councillors on September 28 and October 5, 2022, respectively, at Ajax Community Centre.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: J. Dies

That By-law number 64-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on September 26, 2022, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: A. Khan

That the September 26, 2022 meeting of the Council of the Town of Ajax be adjourned (10:26 a.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically Tuesday, November 8, 2022

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 9:31 a.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Delegations and Presentations

3.1 **Delegation: By-law to Name a Private Road**

Alexander Suriano, Partner, Aird & Berlis LLP, spoke on behalf of Village Creek Developments Incorporated (Village Creek) regarding By-law 66-2022, a by-law to name a private road. A. Suriano discussed background information related to the development project, subject lands, and limited use of the private road. A. Suriano noted that Village Creek proposed naming the road “Manhattan Place” and provided rationale for the proposed name, noting that it is an opportunity for the Town to recognize indigenous heritage and culture. A. Suriano referenced the Town’s street-naming policy citing exemptions to the Town policy, the Town’s Diversity and Community Engagement Plan including recommendations to review the street-naming policy, and public notice requirements. A. Suriano urged Council to abstain from adopting By-law 66-2022 in its current form but rather engage in discussions with Village Creek regarding the naming of the private road.

Council Members asked questions regarding historical street-naming conventions adopted by Village Creek, the Town’s street-naming approval process, plans to review the Town’s street-naming policy, location of the subject lands, and construction timelines. A. Suriano responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked A. Suriano for the presentation.

4. Reports

Mayor Collier vacated the Chair. Regional Councillor Crawford assumed the Chair.

4.1 **CAO-2022-13: 27 Station Street Lease Agreement**

Samantha Paterson, Government Relations & Strategic Initiatives Coordinator, reviewed the contents of the written report and recommendations contained therein.

Council Members asked questions regarding communication strategies, opportunities to connect with Community Development Council Durham (CDCD), project timelines, priority sheltering, term of the rental agreement, emergency sheltering initiatives in the Town of Whitby, costs to the Town, opportunities to collaborate with existing homelessness programs and services, construction timelines, occupancy date, and support from Durham

Regional Police Service. S. Paterson responded to questions from Council Members.

Moved by: S. Collier
Seconded by: J. Dies

1. That Council approve in principle the draft Lease Agreement for 27 Station Street (ATT-1)

2. That the Mayor and Clerk be authorized to execute the agreement once finalized.

CARRIED

Mayor Collier resumed the Chair.

5. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

5.1 Amendments to the Council Code of Conduct

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked what penalties are available when a Council Member is found to have breached the Code of Conduct. Nicole Cooper, Director of Legislative & Information Services/Clerk, responded to the question from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS section 223.2 (1) of the Municipal Act, 2001, requires municipalities to establish codes of conduct for members of the council of the municipality and of its local boards;

AND WHEREAS the Town of Ajax Code of Conduct for Members of Council ("Code of Conduct") was last revised on September 21, 2020;

AND WHEREAS certain amendments to the Code are desired in order to clarify and strengthen the expectation of Members of Council;

NOW THEREFORE BE IT RESOLVED THAT:

The Code of Conduct be amended as follows:

1. Amend Sec. 4.1.7 as follows: [each member shall…] refrain from making any statement known to be false or with the intent to mislead **or disparage** other Members, Staff, Local Board Members, or the public;

2. Amend Sec. 5.4.1 as follows: [members shall not…] publicly criticize a member of Staff **or another member of Council**;

3. Amend Sec. 5.4.2 as follows: [members shall not…] falsely or maliciously injure the reputation of any member of Staff **or Council**, whether professional, ethical, or otherwise;

4. Amend Sec. 6.4 as follows: Members shall not make comments or conduct themselves in any manner that is or ought reasonably to be known to be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, **socioeconomic status** or record of offences;

5. Amend Sec. 8.6.1 as follows: [When communicating on Social Media, members shall not…] be false or with the intent to mislead **or disparage** other Members, Staff, Local Board Members, or the public;

6. Amend Sec. 8.6.2 as follows: [When communicating on Social Media, members shall not…] be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, **socioeconomic status** or record of offences;

7. Amend Sec. 8.7 as follows: Nothing in this Code prevents a Member from operating personal Social Media accounts that do not serve the purpose of representing the Member to the public in their official capacity as a Member. **However, member behavior must still conform to the Council Code of Conduct even while using unofficial or personal Social Media Accounts**;

8. Amend Sec. 11.6 a follows: Members shall respect the right to confidentiality and privacy of all clients, volunteers**, other council members**, and staff, and should be aware of their responsibilities under applicable legislation, municipal policies, procedures and rules, ethical standards and, where appropriate, professional standards;

AND THAT the necessary amending by-law to the Code of Conduct be presented to Council for approval.

CARRIED

Mayor Collier resumed the Chair.

Recorded Vote

In Favour: Councillor Tyler Morin, Councillor Bower, Mayor Collier, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee

Opposed: None

Mayor Collier resumed the Chair.

6. By-laws

Council Members asked questions regarding the street-naming approval process, authority to name private roads, and historical naming practices for private roads in Ajax. Eric Simpson, Senior Planner, responded to questions from Council Members, noting that a municipality may name or change the name of a private road after giving public notice of its intention to pass a by-law, in accordance with the Municipal Act, 2001, Section 48 (Naming Private Roads).

Members requested that the question be divided and that by-law 66-2022 be voted on separately.

Motion 1

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 65-2022 be read a first, second and third time and passed.

CARRIED

Motion 2

Moved by: S. Lee
Seconded by: R. Tyler Morin

That By-law number 66-2022 be read a first, second and third time and passed.

CARRIED

7. Confirming By-law

Moved by: R. Tyler Morin
Seconded by: A. Khan

That By-law number 67-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on November 8, 2022 be read a first, second and third time and passed.

CARRIED

8. Adjournment

Moved by: A. Khan
Seconded by: J. Dies

That the November 8, 2022 special meeting of the Council of the Town of Ajax be adjourned. (10:30 a.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Inaugural Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers of the Town Hall on Monday, November 28, 2022 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Piping in of Council

Mr. Glen Healy, Piper, led Council-elect to their respective positions on the dais.

2. Acknowledgement of Traditional Treaty Lands and Opening Remarks

Nicole Cooper, Director of Legislative & Information Services/Town Clerk, opened the inaugural meeting, acknowledged traditional treaty lands, and welcomed members of the audience to the inaugural meeting of Council for the 2022-2026 Term of Office. N. Cooper discussed local democracy and highlighted positive indicators of a healthy democracy in Ajax. On behalf of the senior management team and Town staff, N. Cooper congratulated each of the successful members of Council on their election.

3. Declarations of Office

The Deputy Clerk issued the Declaration of Office to each of the Council members-elect, who recited and signed the declaration.

N. Cooper officially presented Members of the 2022-2026 term of Council.

4. Presentation of Chain of Office to Mayor

The Clerk presented the Chain of Office to Mayor Shaun Collier. Mayor Collier assumed the chair for the remainder of the meeting.

DRAFT

5. National Anthem

The Mayor introduced Alex Whorms who performed the National Anthem.

6. Indigenous Blessing and Smudging Ceremony

Elder Kim Wheatley, introduced herself, offered greetings, and congratulated all members of Council, new and returning. Elder Wheatley discussed the importance of accountability, responsibility, and kindness. Elder Wheatley performed a traditional smudging ceremony, offered a prayer and a song, and addressed those gathered for the meeting.

7. Inaugural Address

Mayor Collier opened his inaugural address by thanking his family, friends, and volunteers for their support throughout the election campaign, and highlighted accomplishments from the previous term of Council. Mayor Collier highlighted some of the priorities of the new Council, including the creation and implementation of an indigenous consultation process for future development plans, the official opening of the indigenous community healing garden at Ajax Pickering Hospital, housing affordability and homelessness strategies, funding for charities and community organizations through the Ajax Partnership Fund, and enhancing public safety. Mayor Collier invited all residents to engage with the Members of Council during the term.

Mayor Collier invited each member of Council to make further comments. Members of Council offered their sincere thanks to their family, friends, and supporters, and commented on important issues in the upcoming term of Council.

8. Confirming By-Law

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That By-law number 68-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its inaugural meeting held on November 28, 2022 be read a first, second and third time and passed.

CARRIED

On behalf of Council, Mayor Collier thanked Dave Lang, Fire Chief for his service to the Town of Ajax and wished him luck in his retirement. Further, Mayor Collier extended best wishes to Aaron Burridge in his new role as Acting Fire Chief.

Mayor Collier thanked all in attendance and congratulated Regional Chair John Henry on his re-election.

DRAFT

9. Adjournment

Moved by: S. Lee
Seconded by: J. Dies

That the November 28, 2022 inaugural meeting of the Council of the Town of Ajax be adjourned. (8:03 p.m.)

CARRIED

10. Piping out of Council

Mr. Glen Healy, Piper, concluded the meeting by leading Council out of the chambers.

_____
Mayor

_____
D-Clerk

DRAFT

DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically Tuesday, November 29, 2022

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 1:07 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Business to be Considered

3.1 Tilling of the Lower Duffins Creek Wetland

Regional Councillor Dies and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding the Town's authority over land use planning decisions in a neighbouring municipality, opportunities to consult with Pickering Council, status of the Toronto and Region Conservation Authority (TRCA) investigation, and who is responsible for altering the wetlands. Stev Andis, Manager of Planning and Christie McLardie, Manager of Public & Strategic Affairs, responded to questions from Council Members.

Main Motion

Moved by: J. Dies
Seconded by: M. Crawford

WHEREAS Ajax Council passed a motion on November 9, 2020, opposing the development of the provincially significant Lower Duffins Creek Wetland, and worked closely with environmental groups, First Nations stakeholders, and community members to successfully halt plans to pave over the 57 acres of wetland for a massive warehouse development;

AND WHEREAS the Narwhal reported on November 4, 2022, that approximately 90% of the Lower Duffins Creek Wetland in the Bayly Street and Squires Beach Road area of Pickering, had been cleared and tilled;

AND WHEREAS the issue is under investigation by the Toronto and Region Conservation Authority as the activity is in contravention to Ontario regulation 166/06 under the Conservation Authorities Act, which states no person may change or interfere in any way with a wetland without the permission of a conservation authority;

AND WHEREAS Kelly LaRocca, Chief of the Mississaugas of Scugog Island First Nation (MSIFN), released a statement on November 21, 2022 expressing the shock of the MSIFN at the "reckless and unnecessary destruction" and calling for the "protection of this significant part of our ecosystem";

AND WHEREAS revisions to the Ontario Wetland Evaluation System have been proposed under Bill 23, *the More Homes Built Faster Act, 2022* which would result in a tilled site no

longer being considered a wetland;

AND WHEREAS Ajax has serious concerns regarding any devaluing of protections for Ontario's wetlands, and has been a proponent of local wetlands, as exemplified by the Kerrison Road Wetland Restoration Project, which has expanded marsh and swamp wetland habitat, decommissioned old farm ponds and associated infrastructure, restored and stabilized existing stream bank erosion, and managed invasive species;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council strongly opposes the blatant and purposeful damage of any wetland;

2. Ajax Council joins Mississaugas of Scugog Island First Nation in its shock regarding the destruction of the Lower Duffins Creek Wetland;

3. Ajax Council opposes proposed revisions to the Ontario Wetland Evaluation System which changes the classification of a wetland after tillage; and

4. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable David Piccini, Minister of Environment, Conservation and Parks, Patrice Barnes, MPP Ajax, the Honourable Peter Bethlenfalvy, Minister of Finance and MPP Pickering, John Henry, Durham Region Chair, Kevin Ashe, Pickering Mayor, and John MacKenzie, CEO at Toronto and Region Conservation Authority.

Amendment

Moved by: N. Henry
Seconded by: None

That recommendation no. 1 be amended by removing the words "blatant and purposeful".

MOTION LOST (no seconder)

Main Motion

Moved by: J. Dies
Seconded by: M. Crawford

WHEREAS Ajax Council passed a motion on November 9, 2020, opposing the development of the provincially significant Lower Duffins Creek Wetland, and worked closely with environmental groups, First Nations stakeholders, and community members to successfully halt plans to pave over the 57 acres of wetland for a massive warehouse development;

AND WHEREAS the Narwhal reported on November 4, 2022, that approximately 90% of the Lower Duffins Creek Wetland in the Bayly Street and Squires Beach Road area of Pickering, had been cleared and tilled;

AND WHEREAS the issue is under investigation by the Toronto and Region Conservation Authority as the activity is in contravention to Ontario regulation 166/06 under the Conservation Authorities Act, which states no person may change or interfere in any way with a wetland without the permission of a conservation authority;

AND WHEREAS Kelly LaRocca, Chief of the Mississaugas of Scugog Island First Nation (MSIFN), released a statement on November 21, 2022 expressing the shock of the MSIFN at the "reckless and unnecessary destruction" and calling for the "protection of this significant part of our ecosystem";

AND WHEREAS revisions to the Ontario Wetland Evaluation System have been proposed under Bill 23, *the More Homes Built Faster Act, 2022* which would result in a tilled site no longer being considered a wetland;

AND WHEREAS Ajax has serious concerns regarding any devaluing of protections for Ontario's wetlands, and has been a proponent of local wetlands, as exemplified by the Kerrison Road Wetland Restoration Project, which has expanded marsh and swamp wetland habitat, decommissioned old farm ponds and associated infrastructure, restored and stabilized existing stream bank erosion, and managed invasive species;

NOW THEREFORE BE IT RESOLVED THAT:

5. Ajax Council strongly opposes the blatant and purposeful damage of any wetland;

6. Ajax Council joins Mississaugas of Scugog Island First Nation in its shock regarding the destruction of the Lower Duffins Creek Wetland;

7. Ajax Council opposes proposed revisions to the Ontario Wetland Evaluation System which changes the classification of a wetland after tillage; and

8. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable David Piccini, Minister of Environment, Conservation and Parks, Patrice Barnes, MPP Ajax, the Honourable Peter Bethlenfalvy, Minister of Finance and MPP Pickering, John Henry, Durham Region Chair, Kevin Ashe, Pickering Mayor, and John MacKenzie, CEO at Toronto and Region Conservation Authority.

CARRIED

Recorded Vote

In Favour: Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Mayor Collier

Opposed: None

3.2 Requesting More Time and Consultation on Bill 23, the More Homes Built Faster Act, 2022

Regional Councillor Dies and Regional Councillor Lee introduced the motion and reviewed its contents. Council Members asked about the outcome of conversations with MPP Barnes, namely changes to development charges. Mayor Collier responded to the question.

Moved by: J. Dies
Seconded by: S. Lee

WHEREAS on October 25, 2022, the province introduced Bill 23, the More Homes Built Faster Act, 2022 (Bill 23) which, if passed, will make substantial changes to multiple pieces of existing legislation and result in significant impacts to municipal responsibilities, planning processes, and finances;

AND WHEREAS keeping in mind the scale and significance of the proposed changes, the province has not provided sufficient time to engage in fulsome, effective, and meaningful consultation with municipalities or to identify the unintended consequences and serious implications that may arise from these changes, and which may ultimately frustrate the goal of building more homes faster;

AND WHEREAS the Town of Ajax supports Ontario's goal to build 1.5 million homes over the next decade to address the housing crisis, and has already taken steps to address the issue locally, by undertaking numerous studies, including the Town of Ajax Housing Strategy, the Central Ajax Intensification, Servicing & Transportation Strategy, and identifying areas within the existing urban area appropriate for increased residential density;

AND WHEREAS Town staff have reviewed the proposed changes to Development Charges, Parkland Dedication, and Community Benefit Charges and have quantified the anticipated financial impact on Development Charges over a 10-year period to be a reduction of approximately $19.3M, equating to $1.9M per year or an annual tax levy increase of 2.5% and which does not include funding shortfalls related to other exclusions, discounts, Parkland Dedication and Community Benefits Charges;

AND WHEREAS the resulting budget constraints are expected to significantly delay investments in growth-related infrastructure in the Town of Ajax;

AND WHEREAS Bill 23 may result in serious impacts to climate protections and a downloading of costs, in relation to changes to Conservation Authorities and Ontario's Wetland Evaluation System (OWES), may limit the Town's ability to improve energy performance, reduce greenhouse gas emissions and create a climate resilient community through the Ajax Green Standard, and may lead to increased flooding;

AND WHEREAS Bill 23 would enact the Supporting Growth and Housing in York and Durham Regions Act, 2022, which despite the opposition of Ajax Council, would require the expansion of the existing York Durham Sewage System to bring wastewater from York Region to the Duffin Creek Water Pollution Control Plant (WPCP). The Town of Ajax has asked for assurance that all conditions outlined by the York Region Wastewater Advisory Panel are met, including modeling to confirm the accommodation of flow within the existing and expanded infrastructure and that the Intrabasin Transfer Agreement will be sufficient to support the servicing strategy to 2051 and beyond, that the newest innovative treatment technologies will be utilized at the Duffin Creek WPCP, and that additional costs associated with supporting growth in Upper York would not be paid for by residents of Durham Region;

AND WHEREAS Mayor Shaun Collier sent a letter on November 11, 2022, to the Honourable Steve Clark, Minister of Municipal Affairs and Housing, requesting that the comment period on postings related to Bill 23 be extended to at least December 31, 2022, and on November 28, 2022, to the Honourable David Piccini, Minister of Environment, Conservation and Parks requesting that he address questions and concerns regarding the expansion of the York Durham Sewage System;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council requests the province engage in a fulsome consultation with municipalities and adopt amendments to Bill 23 that will mitigate the unintended consequences of the bill, including financial burdens that will prevent municipalities from getting more homes built faster, result in a greater burden on municipal taxpayers, and lead to significant negative environmental impacts; and

2. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, Patrice Barnes, MPP Ajax, all local Durham MPPs, the Ontario Big City Mayors, and the Association of Municipalities of Ontario.

CARRIED

Recorded Vote

In Favour: Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councilor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Mayor Collier

Opposed: None

4. Confirming By-law

Moved by: L. Bower
Seconded by: R. Tyler Morin

That By-law number 69-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on November 29, 2022 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: M. Crawford
Seconded by: J. Dies

That the November 29, 2022 special meeting of the Council of the Town of Ajax be adjourned. (1:48 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk

TOWN OF AJAX
REPORT TO COUNCIL

TO: Mayor and Members of Council

FROM: N. Cooper, Clerk

DATE: December 12, 2022

SUBJECT: Items of Correspondence

The following items of correspondence are attached for Council's information:

Durham Region Municipalities

1. **Town of Ajax:** Proclamations issued by the Mayor's Office 22

2. **The Regional Municipality of Durham** – Interim Suspension of Service Line Warranties of Canada Inc. Program 23
   - **Background Material:** Report #2022-COW-27

3. **The Regional Municipality of Durham** – Envision Durham – Growth Management Study – Phase 2 – Draft Settlement Area Boundary Expansions and Area Municipal Growth Allocations 24
   - **Background Material:** Report #2022-INFO-91

4. **The Regional Municipality of Durham** – Durham Agricultural Advisory Committee 2022 Farm Tour.....26
   - **Background Material:** Report #2022-INFO-83 (page 5)

5. **The Regional Municipality of Durham** – Census of Population – Age, Gender, and Dwelling Type (Release 2) and 2021 Census of Population – Families, Households, Marital Status, and Income (Release 3) 27
   - **Background Material:** Report #2022-INFO-77 (page 36) and Report #2022-INFO-79 (page 9)

6. **The Regional Municipality of Durham** – Census of Population – Language (Release 4)...28
   - **Background Material:** Report #2022-INFO-80 (page 3)

7. **City of Pickering** – Support for Autism.....29

8. **City of Oshawa** – Amendments to Bill 3, Strong Mayors, Building Homes Act, 2022.....32

9. **City of Oshawa** – City Comments on Bill 23, 'More Homes Built Faster Act, 2022' 35
   - **Background Material:** Report #CNCL-22-78 (page 53)

10. **Town of Whitby** – Bill 23, More Homes Built Faster Act, 2022 37
    - **Background Material:** Report #PDP-65-22, Attachment #1

Other Municipalities, Organizations and Individuals

11. **Municipality of Grey Highlands** – Increased Speeding Fines 39

12. **Municipality of East Ferris** – Child Care Workforce Shortage 40

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14. Ministry of Municipal Affairs and Housing – Letter from Minister Steve Clark.....47

15. The Corporation of the County of Prince Edward – More Homes Built Faster Act (Bill 23) 49

16. The Corporation of the County of Prince Edward – Strong Mayors, Building Act (Bill 3)..51

17. Municipality of Lambton Shores – Bill 23 – More Homes Built Faster Act, 2022 53

18. City of Mississauga – Bill 23 "More Homes Built Faster Act" 56

- **Background Material:** Report titled "Bill 23 'More Homes Built Faster' and Implications for City of Mississauga, Appendix 1: Detailed Comments to Province, Appendix 2: List of All ERO and Related Postings

19. Central Lake Ontario Conservation Authority – Provincial Consultation on Replacing Provincial Policy Statement and Growth Plan 57

- **Background Material:** Report #5804-22 (page 22)

20. Central Lake Ontario Conservation Authority – Amendments to the Greenbelt Plan 59

- **Background Material:** Report #5808-22 (page 44)

21. Town of Aurora – Opposition to Bill 23, More Homes Built Faster Act, 2022.....61

22. Town of Aurora – Modifications to York Region Official Plan 63

23. The Corporation of Norfolk County – Bill 23 "More Homes Built Faster Act, 2022" 65

24. The Corporation of the City of Stratford – Funding and Support for VIA Rail Service.....67

25. Town of Orangeville – Bill 23, More Homes Built Faster Act.....70

N. Cooper
Clerk

MEMO

TO: Mayor and Members of Council

FROM: Linsey Joseph

DEPARTMENT: Legislative and Information Services - Legislative Services

SUBJECT: PROCLAMATIONS ISSUED BY THE MAYOR'S OFFICE

DATE: December 12, 2022

The following Proclamations have been approved during the months of November/ December 2022.

Name of Person/Group(s)	Title of Proclamation	Date(s) Proclaimed
Sankat Mochan Hanuman Mandir & Cultural Centre	* National Hindu Heritage Month	Month of November
Durham Alliance Outreach	* Trans Day of Remembrance	20-Nov-22
Violence Prevention Coordinating Council of Durham	* International Day for the Elimination of Violence Against Women- Wrapped in Courage	25-Nov-22

Linsey Joseph
Legislative & Information Services
/CC* flag

THIS LETTER HAS BEEN FORWARDED
TO THE EIGHT AREA CLERKS

The Regional Municipality of Durham

Corporate Services Department
Legislative Services

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102
Fax: 905-668-9963

durham.ca

Don Beaton, BCom, M.P.A.
Commissioner of Corporate Services

September 28, 2022

Nicole Cooper
Clerk
Town of Ajax
65 Harwood Avenue South
Ajax ON L1S 2H9

Dear Nicole Cooper:

RE: Interim Suspension of Service Line Warranties of Canada Inc. Program (2022-COW-27) - Our File: D04

Council of the Region of Durham, at its meeting held on September 28, adopted the following recommendations of the Committee of the Whole:

"A That to the extent possible, the recommendations approved in Report #2021-W-31 of the Commissioner of Works be repealed;

B) That Regional staff are directed to continue to carry out repairs to sanitary sewer service connections on private property in accordance with By-law #90-2003;

C) That Regional staff are directed to reimburse residential customers for repairs carried out pursuant to Council's direction in Recommendation B) of Report #2022-COW-27 with appropriate documentation with funding from user rate financing at the discretion of the Commissioner of Finance; and

D) That a copy of Report #2022-COW-27 be forwarded to the Durham Local Area Municipalities for information."

Please find enclosed a copy of Report #2022-COW-27 for your information.

Alexander Harras

Alexander Harras
Regional Clerk/Director of Legislative Services

AH/sc

c: J. Presta, Commissioner of Works
E. Baxter-Trahair, Chief Administrative Officer

If you require this information in an accessible format, please contact 1-800-372-1102 extension 2097.

Sent via email

November 10, 2022

Maya Harris
Manager, Community Planning & Development
Ministry of Municipal Affairs and Housing
777 Bay Street, 13th Floor
Toronto, ON M7A 2J6

Dear Ms. Harris:

RE: Envision Durham – Growth Management Study, Phase 2 – Draft Settlement Area Boundary Expansions and Area Municipal Growth Allocations (Report #2022-INFO-91), Our File: D12-01

The purpose of this letter is to advise that the first phase of the Growth Management Study (GMS) on the Land Need Assessment process is complete and that Regional staff have now initiated the second phase of the GMS.

Phase 2 of the GMS includes identifying, assessing and consulting on proposed area municipal growth allocations and proposed geographic locations for Settlement Area Boundary Expansion (SABE).

A Regional information report and draft mapping showing the extent and location of draft SABEs (#2022-INFO-91), along with the Growth Management Study consultant's Area Municipal Growth Allocations and Land Needs Report, was released today for public and agency review and comment.

To solicit feedback on the draft SABEs, an interactive map viewer was developed to help facilitate input. To provide input, use the interactive map available at durham.ca/DraftSABE, or submit comments by mail or via email at EnvisionDurham@durham.ca. The final growth allocations and locations for Settlement Area Boundary Expansions will come forward for Regional Council approval in 2023 as part of a draft new Regional Official Plan.

A copy of this report is being forwarded to all Envision Durham Interested Parties, Durham's area municipalities, Indigenous communities, conservation authorities, the Building Industry and Land Development (BILD) – Durham Chapter, and the Ministry of

The Regional Municipality of Durham

Planning and Economic Development Department

Planning Division

605 ROSSLAND RD. E.
LEVEL 4
PO BOX 623
WHITBY, ON L1N 6A3
CANADA

905-668-7711

1-800-372-1102

Fax: 905-666-6208

Email:
planning@durham.ca

durham.ca

Brian Bridgeman, MCIP, RPP
Commissioner of Planning and Economic Development

If this information is required in an accessible format, please contact Planning Reception at 1-800-372-1102 ext. 2551.

The Regional Municipality of Durham

Planning and Economic Development Department

Planning Division

605 ROSSLAND RD. E.
LEVEL 4
PO BOX 623
WHITBY, ON L1N 6A3
CANADA

905-668-7711

1-800-372-1102

Fax: 905-666-6208

Email:
planning@durham.ca

durham.ca

Brian Bridgeman, MCIP, RPP
Commissioner of Planning and Economic Development

Municipal Affairs and Housing. Circulation is also being provided to agencies and service providers that may have an interest in long-term growth planning in the region (school boards, hospitals, utility providers, etc.).

To ensure you receive the most up to date project information, please subscribe directly through the Envision Durham project web page at durham.ca/EnvisionDurham and click on the blue "Receive email updates" at the bottom of the page.

Please call if you would like any additional information.

Yours truly,

Gary Muller

Gary Muller, MCIP, RPP
Director of Planning

c: Circulation list
B. Bridgeman, Commissioner of Planning and Economic Development, Region of Durham
J. Kelly, Region of Durham – for distribution to all other Interested Parties

If this information is required in an accessible format, please contact Planning Reception at 1-800-372-1102 ext. 2551.

From:	Margret Rzymski
To:	Clerks; Fernando.Lamanna@Brock.ca; ClerksExternalEmail; clerks@oshawa.ca; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca; "janet@whitfieldfarms.com"; farmer.ed@gmail.com
Cc:	Michael Scott
Subject:	Report #2022-INFO-83 Durham Agricultural Advisory Committee 2022 Farm Tour
Date:	Tuesday, October 11, 2022 8:17:02 AM
Attachments:	image003.png 2022-INFO-83 Durham Agricultural Advisory Committee 2022 Farm Tour.pdf

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Good morning,

Please find attached Commissioners Report #2022-INFO-83 Durham Agricultural Advisory Committee 2022 Farm Tour, dated October 7, 2022, for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

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From:	Margret Rzymski
To:	Clerks; Fernando.Lamanna@Brock.ca; ClerksExternalEmail; clerks@oshawa.ca; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Subject:	Report #2022-INFO-77 2021 Census of Population – Age, Gender, and Dwelling Type (Release 2) & Report #2022-INFO-79 2021 Census of Population – Families, Households, Marital Status, and Income (Release 3)
Date:	Monday, September 26, 2022 8:52:46 AM
Attachments:	image003.png 2022-INFO-77 2021 Census of Population – Age, Gender, and Dwelling Type (Release 2).pdf 2022-INFO-79 2021 Census of Population - Families, Households, Marital Status, and Income (Release 3).pdf

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Good morning,

Please find attached Commissioners Report #2022-INFO-77 2021 Census of Population – Age, Gender, and Dwelling Type (Release 2), and #2022-INFO-79 2021 Census of Population – Families, Households, Marital Status, and Income (Release 3), for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

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From:	Margret Rzymski
To:	Clerks; Fernando.Lamanna@Brock.ca; ClerksExternalEmail; clerks@oshawa.ca; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Subject:	Report #2022-INFO-80 2021 Census of Population - Language (Release 4)
Date:	Thursday, September 29, 2022 10:14:11 AM
Attachments:	image001.png 2022-INFO-80 2021 Census of Population - Language (Release 4).pdf

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Good morning,

Please find attached Commissioners Report #2022-INFO-80 2021 Census of Population – Language (Release 4) dated September 29, 2022, for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

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Sent by Email

September 28, 2022

The Right Honourable Justin Trudeau
Prime Minister of Canada
80 Wellington Street
Ottawa, ON K1A 0A2
pm@pm.gc.ca

Subject: Re: Support for Autism
File: A-1400-001-22

The Council of The Corporation of the City of Pickering considered the above matter at a meeting held on September 20, 2022 and adopted the following resolution:

WHEREAS an Autism Spectrum Disorder (ASD) diagnosis is a neurodiverse condition that applies to an estimated 135,000 Ontarians, characterized by differences in the way that the individual communicates and relates to the world around them. As the word “spectrum” suggests, ASD impacts and challenges each individual differently, and in some cases includes co-occurring health concerns;

And Whereas specifically, once a person turns 18, they typically lose access to most ASD government funding and services, which are largely geared toward children. Some of the most significant gaps in supports include long wait times and inaccessible or unaffordable respite care and housing. A group home setting can offer 24-hour care, firm routine, access to social workers and other care providers, as well as appropriate supervision for social interactions and outings that working parents simply cannot provide. The need for appropriate and timely care has been highlighted and exacerbated by the Covid-19 pandemic;

And Whereas over 14,000 individuals (and growing) with ASD are on waitlists for affordable housing, and individuals receiving funding from the Ontario Disability Support Program (ODSP) do not receive enough money to sustain access to private group home accommodations. The maximum single rate for ODSP in 2020 was $1,169/month ($14,028), compared to the cost of private group home living at $90,000/year, and parents are often financially unable to bridge the gap while providing necessities for themselves and other family members;

Now therefore be it resolved that the Council of The Corporation of the City of Pickering:

1. Calls on the Province of Ontario to increase the supply of affordable, supportive housing and respite care options for both children and adults diagnosed with Autism

Spectrum Disorder, equipped with access to wrap-around services, and prioritized by need;

2. Requests that the Province of Ontario consider increasing the Ontario Disability Support Program allocations to provide individuals and families with more housing options for adults with Autism Spectrum Disorder;

3. Calls on the Federal government to expedite the development of a National Autism Strategy; and,

4. That a copy of this resolution be distributed to the Hon. Doug Ford, Premier of Ontario, the Hon. Peter Bethlenfalvy, MPP for Pickering-Uxbridge, all Durham Region MPPs, Chair John Henry, Region of Durham, all Durham Region municipalities, all Durham Region MPs, and Prime Minister Justin Trudeau.

Should you require further information, please do not hesitate to contact the undersigned at 905.420.4660, extension 2019.

Yours truly,



Susan Cassel
City Clerk

SC:am

Enclosure

Copy: The Hon. Doug Ford, Premier of Ontario
The Hon. Erin O'Toole, Member of Parliament, Durham
The Hon. Mark Holland, Member of Parliament, Ajax
Ryan Turnbull, Member of Parliament, Whitby
Colin Carrie, Member of Parliament, Oshawa
Jamie Schmale, Member of Parliament, Haliburton-Kawartha Lakes-Brock
Jennifer O'Connell, Member of Parliament, Pickering-Uxbridge
The Hon. Peter Bethlenfalvy, Member of Provincial Parliament, Pickering-Uxbridge
Patrice Barnes, Member of Provincial Parliament, Ajax
Lorne Coe, Member of Provincial Parliament, Whitby
Jennifer French, Member of Provincial Parliament, Oshawa
Todd McCarthy, Member of Provincial Parliament, Durham
Laurie Scott, Member of Provincial Parliament, Haliburton-Kawartha Lakes-Brock
John Henry, Regional Chair, Regional Municipality of Durham
Alexander Harras, Regional Clerk, Regional Municipality of Durham

Becky Jamieson, Director of Corporate Services/Clerk, Township of Scugog
Nicole Cooper, Director of Legislative & Information Services, Town of Ajax
June Gallagher, Municipal Clerk, Municipality of Clarington
Chris Harris, Clerk, Town of Whitby
Fernando Lamanna, Clerk, Township of Brock
Debbie Leroux, Clerk, Township of Uxbridge
Mary Medeiros, City Clerk, City of Oshawa

Chief Administrative Officer

File: 03-05

November 2, 2022

DELIVERED BY E-MAIL
(clerks@durham.ca)

Regional Municipality of Durham

Re: Amendments to Bill 3, Strong Mayors, Building Homes Act, 2022

Oshawa City Council considered the above matter at its meeting of September 26, 2022 and adopted the following recommendation:

"Whereas, on August 10, 2022, the Ontario government introduced Bill 3, Strong Mayors, Building Homes Act, 2022 ("Strong Mayors, Building Homes Act"), which amends the Municipal Act, 2001, the City of Toronto Act, 2006, and the Municipal Conflict of Interest Act to advance provincial priorities; and,

Whereas, the Strong Mayors, Building Homes Act provides the mayors of Toronto and Ottawa with new powers, which alters the governance and public administration of the cities of Ottawa and Toronto; and,

Whereas, changes to the Strong Mayors, Building Homes Act gives the mayors of Toronto and Ottawa, as head of council, broader scope of authority including, but not limited to, the following powers:

Direct municipal employees to:

- undertake research and provide advice to the head of council and the municipality on policies and programs of the municipality;
- carry out duties related to the exercise of the power or performance of the duty, including implementing any decisions made by the head of council;

Appoint a chief administrative officer:

- the powers of a municipality under section 229 of the Municipal Act, 2001, with respect to the chief administrative officer, are assigned to the head of council;

Powers regarding organizational structure:

- determine the organizational structure of the municipality are assigned to the head of council;

Employment matters:

- hire, dismiss or exercise any other prescribed employment powers with respect to the chief administrative officer, head of any division or the head of any other part of the organizational structure (excluding those positions appointed by statute or any other prescribed persons);

Powers re local boards:

- appoint, dismiss or revoke the appointment of chairs and vice-chairs of local boards;

Powers re committees:

- establish or dissolve committees;
- appoint, dismiss or revoke chairs and vice-chairs of committees;
- assign functions to committees;

Powers re meetings:

- despite any procedure by-law passed by the municipality, if a particular matter could potentially advance a prescribed provincial priority, the head of council may require the council to consider the matter at a meeting;

Veto powers:

- despite any procedure by-law passed by the municipality, if the head of council is of the opinion that all or part of a by-law could potentially interfere with a prescribed provincial priority, the head of council may provide written notice to the council of that municipality regarding intent to consider vetoing the by-law;

Powers and duties re budget:

- the powers and duties of a municipality with respect to proposing and adopting a budget are assigned to the head of council;
- prepare a proposed budget for the municipality and provide the proposed budget to the council for the council's consideration; and,

Whereas, these additional powers could extend to other municipal mayors; and,

Whereas, the amendments could have unintended consequences including reducing the role and responsibilities of municipal Councils on such matters, thereby detrimentally affecting local democracy; and,

Whereas, at the August 2022 AMO Conference, the Premier of Ontario stated the importance of working with municipal partners and the power of collaboration in building Ontario together; and,

Whereas, there was limited consultation with members of the public, Ontario municipalities including mayors, chief administrative officers / city managers as well as key stakeholders such as the Association of Municipalities of Ontario (“AMO:), Ontario Municipal Administrators’ Association (“OMAA”), Association of Municipal Managers, Clerks and Treasurers of Ontario (“AMCTO”); and,

Whereas, the current municipal governance is democratic and is effective and efficient in achieving provincial priorities; and,

Whereas, the changes to Bill 3 are intended to take effect on November 15, 2022,the start date of a new municipal council term;

Therefore be it resolved:

1. That Mayor Dan Carter send a letter to the Premier of Ontario, Minister of Municipal Affairs and Housing, Deputy Minister of Municipal Affairs and Housing, Secretary of the Cabinet, Head of the Ontario Public Service, Deputy Attorney General of Ontario, Attorney General, MPP Parliamentary Assistant to the Attorney General advising that:

    i. Oshawa City Council does not support the amendments to Bill 3, Strong Mayors, Building Homes Act, 2022; and,

    ii. Oshawa City Council does not support the amendments applying to the City of Oshawa;

2. That a copy of the Council resolution be provided to the Region of Durham, all Durham Region municipalities, Durham Region Members of Provincial Parliament, AMO, OMAA and AMCTO.”

If you need further assistance concerning the above matter, please contact me at the address listed below or by telephone at 905-436-3311.

Mary Medeiros
City Clerk

/fb

c. Corporate Services Department
Durham Region Municipalities
Durham Region Members of Provincial Parliament
Association of Municipalities of Ontario
Association of Municipal Managers, Clerks and Treasurers of Ontario
Ontario Municipal Administrators’ Association

File: 03-05

November 28, 2022

DELIVERED BY E-MAIL
(resolutions@amo.on.ca)

Association of Municipalities of Ontario

Re: City Comments on Bill 23, 'More Homes Built Faster Act, 2022' (All Wards)

Oshawa City Council considered the above matter at its meeting of November 21, 2022 and adopted the following recommendation:

1. That Report CNCL-22-78 dated November 16, 2022, including Attachments 4 to 9, be endorsed as the City's comments on the Province's proposed amendments under Bill 23, "More Homes Built Faster Act, 2022" to the Planning Act, to Ontario Regulations 232/18 and 299/19 under the Planning Act, the Development Charges Act, the Ontario Heritage Act and the Conservation Authorities Act, as well as the Province's review of the Provincial Policy Statement, 2020 and "A Place to Grow: Growth Plan for the Greater Golden Horseshoe."; and,

2. That staff be authorized to submit the comments contained in Report CNCL-22-78 dated November 16, 2022 relating to the proposed amendments under Bill 23 to the Planning Act (including two regulations under this Act), the Development Charges Act, the Ontario Heritage Act and the Conservation Authorities Act, as well as the review of the Provincial Policy Statement, 2020 and the Growth Plan in response to the associated proposals posted on the Environmental Registry of Ontario website; and,

3. That staff be authorized to forward a copy of Report CNCL-22-78 dated November 16, 2022 and the related Council resolution to the Association of Municipalities of Ontario, Ontario Big City Mayors, the Region of Durham, Durham area municipalities, Durham area M.P.P.s and the City's Building Industry Liaison Team, which includes the Durham Chapter of the Building Industry and Land Development Association and the Durham Region Home Builders' Association.

…/2

If you need further assistance concerning the above matter, please contact me at the address listed below or by telephone at 905-436-3311



Mary Medeiros
City Clerk

/jl

Attachment: Report CNCL-22-78

c: Ontario Big City Mayors
Region of Durham
Durham Area Municipalities
Durham Area MPP's
Building Industry Liaison Team
Durham Chapter of the Building Industry
Land Development Association
Durham Region Homebuilders Association

Town of Whitby
575 Rossland Road East,
Whitby, ON L1N 2M8
905.430.4300
whitby.ca

November 24, 2022

Via Email:

The Honourable Doug Ford
Premier of Ontario
premier@ontario.ca

Re: Planning and Development Department (Planning Services) Report PDP 65-22
Re: Bill 23, More Homes Built Faster Act, 2022

Please be advised that at its meeting held on November 24, 2022, the Council of the Town of Whitby adopted the following Resolution:

1. That Report PDP 65-22 be endorsed as the Town's comments on key elements of the Province of Ontario's Bill 23 – the More Homes Built Faster Act, 2022, and other associated proposed changes;

2. That the Clerk forward a copy of Report PDP 65-22 to the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Premier of Ontario, Doug Ford, and MPP Lorne Coe; and,

3. That the Clerk forward a copy of Report PDP 65-22 to Durham Regional Council and the area municipalities.

Should you require further information, please do not hesitate to contact the Planning and Development Department at 905-430-4306.

Kevin Narraway
Deputy Clerk

Attachment: Staff Report PDP 65-22

Copy: R. Saunders, Commissioner of Planning and Development - saundersr@whitby.ca

The Honourable Steve Clark, Minister of Municipal Affairs and Housing - steve.clark@pc.ola.org
Lorne Coe, M.P.P., Whitby - lorne.coe@pc.ola.org

A. Harras, Regional Clerk - clerks@durham.ca
N. Cooper, Director of Legislative and Information Services, Town of Ajax clerks@ajax.ca
F. Lamanna, Clerk/Deputy CAO, Township of Brock - Fernando.lamanna@brock.ca
J. Gallagher, Municipal Clerk, Municipality of Clarington - clerks@clarington.net
M. Medeiros, City Clerk, City of Oshawa - clerks@oshawa.ca
S. Cassel, City Clerk, City of Pickering - clerks@pickering.ca
B. Jamieson, Director of Corporate Services/Municipal Clerk - bjamieson@scugog.ca
D. Leroux, Clerk, Township of Uxbridge - dleroux@town.uxbridge.on.ca

September 26, 2022

Ministry of the Solicitor General
Hon. Michael Kerzner
25 Grosvenor Street
Toronto, ON M7A 1Y6

Sent via email: Michael.kerzner@ontario.ca

Hon. Minister Kerzner:

Re: Grey Highlands Municipal Resolution 2022-571 re: Increased Speeding Fines

Please be advised that the following resolution was passed at the September 7, 2022 meeting of the Council of the Municipality of Grey Highlands.

2022-571
Dane Nielsen, Danielle Valiquette
Whereas speeding has become a growing concern on our residential streets; and
Whereas the culture of driver's is that 20 km/h over the speed limit is considered normal; and
Whereas the fines for street racing have increased significantly and we have seen a reduction in number of charges laid; and
Whereas the fines for other speed infractions have remained unchanged; now Therefore be it resolved that the municipality of Grey Highlands lobby the Ministry of the Solicitor General to increase the fines for all levels of speeding; and
That this motion be sent to AMO, ROMA, and all municipalities of Ontario to garner support.
CARRIED.

If you require anything further, please contact this office.

Sincerely,

Raylene Martell
Director of Legislative Services/Municipal Clerk
Municipality of Grey Highlands

Cc: Association of Municipalities of Ontario
Rural Ontario Municipalities
All Ontario Municipalities

REGULAR COUNCIL MEETING
HELD
October 11th, 2022

2022-273

Moved by Councillor Champagne
Seconded by Councillor Lougheed

WHEREAS the province of Ontario is currently experiencing an early years and child care workforce shortage;

AND WHEREAS access to quality licensed child care is an essential component of Ontario's social and economic well-being and enables children to grow up with a sense of community;

AND WHEREAS lack of licensed child care is a barrier for parents to return or enter into the workforce, thus putting a strain on families, hindering economic participation, and forcing parents to remain at home to care for their children;

AND WHEREAS in the District of Nipissing, there is a higher demand for child care spaces than the number of spaces available creating waitlists that have parents waiting for several years prior to getting a space, if they receive a space at all;

AND WHEREAS in recent years the recruitment and retention of qualified Registered Early Childhood Educators (RECEs) and child care staff has been a challenge that has been exasperated by the COVID-19 pandemic;

AND WHEREAS the workforce crisis in the early years and child care sector has been further exasperated by the significant wage disparity between the compensation paid to RECEs employed by school boards and those employed in licensed child care centers due to lack of funding which has created an inequity for workers with equal qualifications;

T: 705-752-2740
E: municipality@eastferris.ca
390 Hwy 94, Corbeil, ON. P0H 1K0

AND WHEREAS Ontario has signed the Canada-Wide Early Learning and Child Care Agreement putting Ontario on the path to reducing child care fees to an average of $10/day which will create a demand for more child care spaces when a workforce shortage already exists;

AND WHEREAS the province of Ontario committed to creating an additional 86,000 licensed child care spaces in Ontario without an explicit solution for increasing the number of RECEs and child care staff to fulfill this commitment;

AND WHEREAS the province of Ontario's commitment to a minimum wage of $18/hour for RECEs with $1 annual increases until reaching $25/hour does not provide an immediate response to attracting and retaining child care staff and will take many years to correct the wage disparity;

THEREFORE BE IT HEREBY RESOLVED that Council of the Municipality of East Ferris advocates for the Province of Ontario to address the child care workforce shortage in Ontario by immediately increasing the $18/hour minimum wage and providing benefits to RECEs in licensed child care centres to an equitable level to that which is paid to RECEs employed by school boards;

AND FURTHER that the Province of Ontario launch and financially support an accelerated Early Childhood Education program, to be completed within 14 to 16 months, similar to the program launched in March 2022 for Personal Support Workers (PSWs), where funding supported the costs of tuition, books, and other mandatory fees, to help address the shortage of RECEs in Ontario;

AND FURTHER that a certified copy of this resolution be forwarded to OMSSA (Ontario Municipal Social Services Association), Ontario Coalition for Better Child Care, Childcare Resource and Research Unit, NOSDA (Northern Ontario Service Deliverers Association), FONOM (Federation of Northern Ontario Municipalities), AMO (Association of Municipalities of Ontario), all 10 District Social Services Administration Boards in Northern Ontario, and all Ontario Municipalities to request their support and advocacy for this resolution;

AND FURTHER that a certified copy of this resolution be forwarded to Minister of Education Stephen Lecce, Minister of Economic Development, Job Creation and Trade and Nipissing MPP Vic Fedeli.

Carried Mayor Rochefort

CERTIFIED to be a true copy of
Resolution No. 2022-273 passed by the
Council of the Municipality of East Ferris
on the 11th day of October 2022.

Monica L. Hawkins
Monica L. Hawkins, AMCT
Clerk

T: 705-752-2740
E: municipality@eastferris.ca
390 Hwy 94, Corbeil, ON. P0H 1K0

DURHAM REGIONAL POLICE SERVICES BOARD

B. Drew Chair * G. Cubitt, Vice-Chair
K. Ashe Member * S. Bhatia, Member
K. Fisher, Member * J. Henry, Member

October 25, 2022

The Honourable Doug Downey
Attorney General of Ontario

BY EMAIL

Dear Minister Downey,

The Durham Regional Police Services Board passed the following motion at its Board meeting held on October 20, 2022:

> **THAT the Board endorse the East Ferris Police Services Board "Let's Remember Adam" Bus Cameras Resolution; and**
>
> **THAT the Resolution be circulated to the Provincial Government, Regional Council, and local Councils.**

We are hopeful that the Provincial Government will take the required action to address this serious community safety concern.

Sincerely,

Bobbie Drew
Chair

c.c.: Chief Rollauer
Durham Regional Council
Pickering Council
Ajax Council
Whitby Council
Oshawa Council
Clarington Council
Scugog Council

605 Rossland Road East, Box 911, Whitby, ON L1N 0B8
Phone: 905-579-1520, Ext. 4307 * Fax: 905-721-4249
Email: alongo@drps.ca

Uxbridge Council
Brock Council
Municipality of East Ferris Police Services Board
Ontario Association of Police Services Boards

Attachment: Municipality of East Ferris Police Services Board “Let’s Remember Adam” Bus Cameras Resolution

605 Rossland Road East, Box 911, Whitby, ON L1N 0B8
Phone: 905-579-1520, Ext. 4307 * Fax: 905-721-4249
Email: alongo@drps.ca

POLICE SERVICES BOARD

September 22nd, 2022

To All Ontario Police Services Boards:

The Municipality of East Ferris Police Services Board is concerned that not enough is being done to protect children getting on and off school buses. Since the beginning of the 2022 school year, all school buses operating in Ontario have been equipped with a new eight-light amber light system, as well as text added to the back of the bus to remind drivers not to pass when the red lights are flashing. These changes are all intended to help drivers do the right thing. Unfortunately, the results since the beginning of this school year show no change in driver behavior. The East Ferris Police Services Board is convinced we must now proceed with the addition of the third component of the school bus safety program: camera equipped stop arms to ensure safety compliance.

A recent study by Nipissing-Parry Sound Student Transportation Services regarding illegal school bus passing found 552 incidents for the school year 2021 / 22 or 2.95 per school day. As part of the "Let's Remember Adam" campaign in the Municipality of East Ferris, illegal passing noted in the first three weeks of the 2022 / 23 school year by buses carrying East Ferris children shows no change in driver behavior. Therefore, it is time to move to Step 3: mandatory installation of cameras on all school buses. For change to happen, education plus enforcement are needed. The East Ferris Police Services Board is asking all Police Services Boards, given their mandate to ensure safety and well-being, to bring forward to their next Police Services Board Meeting the following resolution to adopt and circulate to the appropriate parties in their area.

WHEREAS in Ontario it is unlawful for a stopped school bus to fail to stop when the red overhead lights or the stop arm is activated, and

WHEREAS, an eight-light yellow and red light system and education campaign to encourage drivers to stop is now in place in Ontario, and

WHEREAS data collected to date by the East Ferris Police Services Board indicates that there has been no change in driver habits since the beginning of the 2022 school year; and
WHEREAS over 837,000 students travel in a school vehicle in Ontario each school day; and

T: 705-752-2740
E: municipality@eastferris.ca
390 Hwy 94, Corbeil, ON. P0H 1K0

WHEREAS the East Ferris Police Services Board believes that school buses should be as safe as possible and that safety standards should be higher than they are;

THEREFORE BE IT RESOLVED that the Police Services Board of the Municipality of East Ferris request the Attorney General of Ontario to enforce laws that protect students by prohibiting drivers from passing a school bus when dropping off or picking up passengers.
FURTHER, that the Attorney General request that the appropriate provincial government officials review recent proposed changes to school bus regulations by Transport Canada regarding required equipment, including:

- *Infraction cameras*
- *Extended stop sign arms*
- *360 degree exterior cameras*

FURTHER, that the Attorney General examine the application of camera and fine collection technologies similar to those used on electronically controlled toll highways to ensure that no offending driver is excluded from the law.

FURTHER, that a copy of this resolution be forwarded to Nipissing MPP Vic Fedeli, local school boards and the Ontario Good Roads Association.

In closing, the Municipality of East Ferris Police Services Board wish to thank you for your support on this matter.

Regards,

Pauline Rochefort
Pauline Rochefort, Chair
East Ferris Police Services Board

T: 705-752-2740
E: municipality@eastferris.ca
390 Hwy 94, Corbeil, ON. P0H 1K0

From: Minister (MMAH)
To: Clerks
Subject: Letter from Minister Steve Clark (4885)
Date: Tuesday, November 15, 2022 1:12:57 PM
Attachments: image001.png
image003.png
image004.png

Caution: This email originated from outside of the organization. DO NOT click links or open attachments unless you recognize the sender and know the content is safe.

Ministry of Municipal Affairs and Housing

Office of the Minister

777 Bay Street, 17th Floor
Toronto ON M7A 2J3
Tel.: 416 585-7000

Ministère des Affaires municipales et du Logement

Bureau du ministre

777, rue Bay, 17e étage
Toronto (Ontario) M7A 2J3
Tél. : 416 585-7000

234-2022-4885

November 15, 2022

Your Worship
Mayor Shaun Collier
Town of Ajax
clerks@ajax.ca

Dear Mayor Collier and Council:

Please accept my congratulations on your success in the recent municipal elections. I want to thank you for your decision to serve the public, and I look forward to working with you throughout the upcoming term.

As a former mayor, I know firsthand just how important municipal government is to Ontarians. I also know your constituents expect local government to be effective and responsive as you deliver critical local services, and that you expect the same in our relationship.

Throughout my time as Minister of Municipal Affairs and Housing, I have been proud to work with mayors and councils across Ontario to deliver on our shared priorities. I

value the expertise and advice I have received from local governments, which has helped shape our decision-making to date.

There is much work ahead of us. Our government is working hard to make living in Ontario more affordable. Bill 23, the More Homes Built Faster Act, takes bold action to advance our plan to address the housing crisis by building 1.5 million homes across Ontario over the next 10 years. We will continue to work with all our municipal partners to get shovels in the ground and build more homes faster.

As we work together to serve the people of our great province, I want to hear about the challenges you face. I know that local representatives understand their communities and that you can help us ensure that local government is working harder, smarter and more efficiently. Best wishes to you and to council for success over the next four years.

Sincerely,

Steve Clark
Minister

From the Office of the Clerk
The Corporation of the County of Prince Edward
T: 613.476.2148 x 1021 | F: 613.476.5727
clerks@pecounty.on.ca | www.thecounty.ca

November 15, 2022

Please be advised that during the regular Council meeting of November 8, 2022 the following motion regarding a response to the *More Homes Built Faster Act* (Bill 23) was carried:

RESOLUTION NO. **2022-448**

DATE: **November 8, 2022**

MOVED BY: **Councillor Hirsch**

SECONDED BY: **Councillor MacNaughton**

WHEREAS; there has been an exceptionally small timeframe to comment on the *More Homes Built Faster Act* (Bill 23);

WHEREAS; the bulk of the changes contemplated in Bill 23 will be enacted by regulation;

WHEREAS; those regulations have been published on the government of Ontario website for comment by November 24, 2022;

AND WHEREAS; the following elements of Bill 23 and its proposed regulations are not in the best interest of The County:

- provision regarding inclusionary zoning for affordable housing has a proposed limit of only 5% of units in a subdivision of 10 or more units which should be increased to 15% to be effective.
- provisions regarding the *Heritage Act* which would have the effect of forcing municipalities to quickly make designation decisions on all properties currently on the heritage register.
- provisions relating to the *Conservation Authorities Act* which would have the effect of removing the Conservation Authority from providing effective and necessary comments on planning applications.
- provisions relating to the Conservation Authorities Act which would allow development in certain wetlands on an offset basis.
- proposed changes to municipal development charged, parkland, dedication levies, and community benefits charges that may contradict the goal of building more housing in the long-term.

From the Office of the Clerk
The Corporation of the County of Prince Edward
T: 613.476.2148 x 1021 | F: 613.476.5727
clerks@pecounty.on.ca | www.thecounty.ca

THEREFORE, **BE IT RESOLVED THAT**; the Council of the Corporation of the County of Prince Edward advise the Provincial government that it does not support certain aspects of the More Homes Built Faster Act (Bill 23);

THAT; the Council of the Corporation of the County of Prince Edward direct the Mayor to submit objections with respect to the provisions listed above through the formal comment process within the timeframes for comment;

THAT; the Council of the Corporation of the County of Prince Edward advise the provincial government that it supports the submission made by Conservation Authorities in Ontario; and,

THAT; this resolution be shared with all 444 municipalities, FCM, AMCTO, AMO and Quinte Conservation.

CARRIED

Yours truly,

Catalina Blumenberg, **CLERK**

From the Office of the Clerk
The Corporation of the County of Prince Edward
T: 613.476.2148 x 1021 | F: 613.476.5727
clerks@pecounty.on.ca | www.thecounty.ca

November 15, 2022

Please be advised that during the regular Council meeting of November 8, 2022 the following motion regarding a response to the *Strong Mayors, Building Act*, (Bill 3) was carried:

RESOLUTION NO. **2022-446**

DATE: **November 8, 2022**

MOVED BY: **Councillor Nieman**

SECONDED BY: **Councillor Roberts**

WHEREAS; the Government of Ontario, through the Minister of Municipal Affairs and Housing; has introduced Bill 3 which is described as "An Act to amend various statutes with respect to special powers and duties of heads of council" for the head of council of Toronto and Ottawa that will be expanded to include other growing municipalities;

WHEREAS; Council must work together in concert with the Mayor as a consensus-builder in order to accomplish local initiatives, and Bill 3 presents a very significant shift within the system of local governance in Ontario;

WHEREAS; this Bill will give Mayors additional authority and powers, and correspondingly take away authority and powers from councils and professional staff, which include but is not limited to giving the mayor the authority to propose and adopt the municipal budget, determine the organizational structure of the municipality, establish, dissolve and assign functions to committees, and veto decisions of Council;

WHEREAS; new section 284.2 to the *Municipal Act, 2001* provides that the Minister of Municipal Affairs and Housing may, by regulation, designate municipalities to which the strong mayor system will apply, thereby eroding municipal autonomy and independence while creating instability for council and municipal administration;

AND WHERAS; these are surprising and unnecessary changes to the historical balance of power between a Mayor and Council, and which historically gave the final say in all matters to the will of the majority of the elected Council;

THEREFORE, **BE IT RESOLVED THAT** the Council of the Corporation of the County of Prince Edward strongly opposes these unnecessary changes to the *Municipal Act, 2001* and *Municipal Conflict of Interest Act*;

From the Office of the Clerk
The Corporation of the County of Prince Edward
T: 613.476.2148 x 1021 | F: 613.476.5727
clerks@pecounty.on.ca | www.thecounty.ca

THAT Council further directs the Clerk to ensure that a copy of this resolution be provided to the Premier of Ontario, the Minister of Municipal Affairs and Housing, MPP Todd Smith, all 444 municipalities, FCM, AMCTO, and AMO.

CARRIED

Yours truly,



Catalina Blumenberg, **CLERK**

THE MUNICIPALITY OF
LAMBTON SHORES

Administration
7883 Amtelecom Parkway
Forest, ON N0N 1J0
T: 519-243-1400 / 1-866-943-1400
www.lambtonshores.ca

November 22, 2022 by email: schicp@ola.org

Standing Committee on Heritage, Infrastructure and Cultural Policy

To Whom It May Concern

Re: Proposed Legislation
Bill 23 – More Homes Built Faster Act, 2022

Thank-you for the opportunity to comment on the above-noted proposed legislation.

Please be advised that the Council of the Municipality of Lambton Shores passed Resolution 22-1108-11 at its November 8, 2022 regular Council meeting:

> *THAT staff draft a letter to the province outlining Lambton Shores' concerns with Bill 23 and circulate to AMO and all Ontario municipalities.*

Lambton Shores is a thriving, growing community on the shores of Lake Huron. It includes several communities experiencing appreciable growth in residential and commercial developments. Lambton Shores' beaches, lakeshore communities, places like Grand Bend and Pinery Provincial Park, and its provincially and internationally significant natural heritage areas make Lambton Shores a well-known tourist destination and desirable place to live and work. Like much of rural Ontario and perhaps more so, it has experienced housing shortages, increased development activity, and a sharp rise is housing costs in the last several years.

In general, Bill 23 seems to be intended to address approval process problems that exist in larger centers more so than portions of rural Ontario like Lambton Shores. Lambton Shores, on the whole, works well with the development community and issues timely planning and other development approvals. In Lambton Shores' case, Bill 23 will "fix" many things that are not really broken and will have the unintended effect of substituting relatively efficient processes with additional processes, time, and costs to development.

The Province conducted a very narrow, developer and real estate-focused, consultation in developing its strategy to address the housing crisis. It is misleading to lay so much blame on the easy target of municipalities. Delays are often due to a development proponent's reluctance to provide information, meet requirements, and follow processes that are overseen by municipalities, but provincially-established. If the Province wishes to speed up Municipal approvals, it should look at its own approval processes, legislation, and responsiveness with respect to matters related to the *Endangered Species Act*, Records of Site Conditions, archaeological assessments, Environmental Compliance Approvals, and the like.

The limiting factor in addressing the housing crisis is labour and material shortages, caused by government policy and the demographics of aging baby-boomers. The Province would better address the housing crisis by finding ways to increase the capacity of the building industry and direct that capacity towards forms of housing that produce more units (e.g. medium and high rather than low density), rather than placing expectations on municipalities that increase staffing needs and put more pressure to draw labour away from construction and manufacturing.

Conservation Authorities

With respect to Conservation Authorities, the Municipality of Lambton Shores has an excellent working relationship with our two Conservation Authorities (Ausable Bayfield and St Clair Region). They are responsive given the level of resources they have and provide valuable expertise, resources, and services to the Municipality. These would not be practical for a Municipality of our size to provide internally. The Municipality wishes to retain the ability to obtain these services through memorandums of understanding.

- If the CAs are prohibited from commenting on natural heritage matters, the Municipality will need to instead refer development proposals to third party consultants, which will add time and cost to development proponents, contrary to the intent of Bill 23.
- Municipalities will be reluctant to grant planning approvals that would exempt development from Conservation Authority approvals. The Municipality lacks the expertise to assess natural hazards and does not wish for assume the liability. Just as planning approval processes were not designed to address Ontario Building Code matters, planning approval processes and Municipalities lack the unique tools and mechanisms of CAs and the *Conservation Authorities Act* to ensure development can proceed while appropriately addressing hazards.
- Repeal of the Regulations specific to each CA, in favour of a province-wide Regulation, will eliminate the local flavor of each CA and its ability to provide for the needs of its constituent municipalities, which are different in rural Ontario than in larger centers.

Additional Dwelling Units

With respect to allowing three units as-of-right on residentially zoned lands:

- This permission potentially creates additional dwelling units in areas where existing municipal services are at full capacity.
- For a second or third unit to be permitted in a particular form of dwelling, it should be clarified that the applicable zone must permit that form of housing in the first place. The current wording of the legislation would seem to permit, for example, a single detached dwelling with a basement apartment on lands zoned and intended for medium and high density, contrary to the intent to Bill 23 to create more units.
- How will the province ensure that these additional dwelling units are used as primary residences, as intended by Bill 23? In significant tourist areas like the Municipality of Lambton Shores, these provisions will promote additional

conversions of existing primary residences into two or three short term rental accommodations, contrary to the intent of Bill 23.

Waiving Fees

With respect to waiving development charges, parkland dedication and other requirements for additional dwelling units, not-for-profit housing, inclusionary housing, etc., the Municipality questions whether these savings to developers will be passed on in lower unit purchase prices. (Consumer demand and willingness to pay remains higher than the building industry's capacity to supply.) Development will however increase municipal service and infrastructure needs, the costs of which will be a burden passed on to the existing tax base, if not collected through development charges.

Site Plan Approval

Waiving site plan approval for residential developments of ten or fewer dwelling units will create adverse impacts to public and municipal interests and developments. The site plan approval process currently provides a single mechanism to address relevant items such as parking, site grading, stormwater management, site servicing, servicing capacity, entrances, work on municipal lands, and sidewalk and road closures. These are important considerations even for smaller developments. In the absence of site plan approval, municipalities will be forced to rely on (or create) a variety of other mechanisms and by-laws to address these interests, which will be less efficient than site plan approval and contrary to the intent of Bill 23 to reduce process.

Yours Respectfully,



Stephen McAuley,
Chief Administrative Officer

cc. Honourable Doug Ford, Premier of Ontario, premier@ontario.ca
Hounourable Steve Clark, Minister of Municipal Affairs and Housing, minister.mah@ontario.ca
Honourable Graydon Smith, Minister of Natural Resources and Forestry, minister.mnrf@ontario.ca
Honourable David Piccini, Minister of Environmental Conservation and Parks. Minister.mecp@ontario.ca
Honourable Monte McNaughton, MPP Lambton – Kent – Middlesex, Monte.McNaughtonco@pc.ola.org
PlanningConsultations@ontario.ca
Association of Municipalities of Ontario
Ontario municipalities

RESOLUTION 0231-2022
adopted by the Council of
The Corporation of the City of Mississauga
at its meeting on November 23, 2022

0231-2022 Moved by: D. Damerla Seconded by: C. Fonseca

1. That Council endorse positions and recommendations contained and appended to the report titled *"Bill 23 'More Homes Built Faster' and Implications for City of Mississauga,"* and authorize staff to prepare additional detailed comments on Bill 23 and any associated regulations, as needed. In particular, the City be made whole for any revenue losses from changes to the imposition of development changes and parkland dedication.

2. That the Mayor or designate be authorized to make submissions to the Standing Committee with respect to issues raised in this report, or to otherwise provide written or verbal comments as part of the Ministry's public consultation process.

3. That the City Clerk forward this report to the Ministry of Municipal Affairs and Housing; Mississauga's Members' of Provincial Parliament, the Association for Municipalities Ontario, and the Region of Peel.

Recorded Vote	YES	NO	ABSENT	ABSTAIN
Mayor B. Crombie			X	
Councillor S. Dasko	X			
Councillor A. Tedjo	X			
Councillor C. Fonseca	X			
Councillor J. Kovac	X			
Councillor C. Parrish	X			
Councillor J. Horneck	X			
Councillor D. Damerla	X			
Councillor M. Mahoney	X			
Councillor M. Reid	X			
Councillor S. McFadden	X			
Councillor B. Butt	X			

Carried (11, 0, 1 Absent)

Healthy watersheds for today
and tomorrow.

November 24, 2022

Via email

Nicole Cooper
Town Clerk
Town of Ajax
65 Harwood Ave. S.
Ajax, On L1S 2H9

Dear Nicole Cooper:

Subject: **Central Lake Ontario Conservation Authority Resolution Regarding Provincial Consultation on Replacing Provincial Policy Statement and Growth Plan Environmental Registry of Ontario Notice Number 019-6177 CLOCA File# PGDP27**

At their meeting of November 23, 2022, the Central Lake Ontario Conservation Authority (CLOCA) Board of Directors passed the following Resolution:

Res. #65 ***Moved by R. Hooper***
Seconded by B. Nicholson

THAT the CLOCA Board of Directors considers Regional Municipal Planning in Durham, Natural Heritage and Water Conservation Policies, Exiting Natural Hazard Policies, and Watershed, Subwatershed and Stormwater Management Policies to be essential for the health and safety of present and future generations in Durham Region and not barriers to the supply of housing;

THAT the Province of Ontario should Focus on Provincial Policy Implementation, including technical support at the Ontario Land Tribunal, as opposed to further re-writing of high-level provincial policy;

THAT the Commentary in Staff Report #5804-22 and attachments be endorsed and submitted to the Province of Ontario and Conservation Ontario as CLOCA's comments regarding Environmental Registry Posting 019-6177;

THAT Staff Report #5804-22 be circulated to Watershed Municipalities with a request for endorsement of this resolution; and,

THAT Staff Report #5804-22 be circulated to Members of Provincial Parliament, Members of Parliament, Conservation Ontario and adjacent Conservation Authorities for their information.

CARRIED

Accordingly, please place the motion captioned above on the relevant agenda for endorsement by Regional Council.

Please contact me if you have any questions with respect to this matter.

Yours truly,



Chris Jones, MCIP, RPP
Director of Planning and Regulation
CJ/lv

Encl. CLOCA Staff Report 5804-22 and attachments

Cc: Alexander Harras clerks@durham.ca
June Gallagher, Municipality of Clarington, clerks@clarington.net
Mary Madeiros, City of Oshawa, clerks@oshawa.ca
Debbie Shields, City of Pickering, clerks@pickering.ca
JP Newman, Township of Scugog, jnewman@scugog.ca
Debbie Leroux, Township of Uxbridge dleroux@town.uxbridge.ca
Chris Harris, Town of Whitby, harrisc@whitby.ca
Chris Darling, CLOCA, cdarling@cloca.com
Jamie Davidson, CLOCA, jdavidson@cloca.com

h:\pgdp27 cloca comments - pps growth plan clerks letter ajax.docx

Central Lake Ontario Conservation Authority

Healthy watersheds for today and tomorrow.

November 24, 2022

Via email

Nicole Cooper
Town Clerk
Town of Ajax
65 Harwood Ave. S.
Ajax, On L1S 2H9

Dear Nicole Cooper:

Subject: **Central Lake Ontario Conservation Authority Resolution Regarding Amendments to the Greenbelt Plan**
Environmental Registry of Ontario Notice Numbers 019-6216, 019-6217 and 019-6218
CLOCA File# PGDP22

At their meeting of November 23, 2022, the Central Lake Ontario Conservation Authority (CLOCA) Board of Directors passed the following Resolution:

Res. #66 ***Moved by R. Hooper***
Seconded by B. Nicholson

WHEREAS The Ontario Housing Affordability Task Force's Recommended Goal of 1.5 million homes in the next 10 years explicitly excluded building on the Greenbelt Protected Countryside;

WHEREAS As Recently as March 24 of this year, the Government of Ontario Stated that "government will not consider the removal of any lands from the Greenbelt";

WHEREAS Removal Proposals Include Portions of the Greenbelt Natural Heritage System Containing Irreplaceable Provincially Significant Wetlands and Woodlands in the CLOCA Watershed;

WHEREAS CLOCA Previously Commented on Greenbelt Expansion Proposals with the Premise of Improving the Quantity and Quality of the Greenbelt for Future Generations and Not to Facilitate Future Removals;

THEREFORE BE IT RESOLVED THAT the CLOCA Board of Directors requests that the Province of Ontario withdraw the Proposed Amendments to the Greenbelt Plan;

THAT the Commentary in Staff Report #5808-22 and attachments be endorsed and submitted to the Province of Ontario and Conservation Ontario as CLOCA's comments regarding Environmental Registry Posting 019-6216, 019-6217, 019-6218;

THAT Staff Report #5808-22 be circulated to Watershed Municipalities with a request for endorsement of this resolution; and,

THAT Staff Report #5808-22, be circulated to Members of Provincial Parliament, Members of Parliament, Conservation Ontario and adjacent Conservation Authorities for their information.

CARRIED

Accordingly, please place the motion captioned above on the relevant agenda for endorsement by Regional Council.

Please contact me if you have any questions with respect to this matter.

Yours truly,



Chris Jones, MCIP, RPP
Director of Planning and Regulation
CJ/lv

Encl. CLOCA Staff Report 5808-22 and attachments

Cc: Alexander Harras clerks@durham.ca
June Gallagher, Municipality of Clarington, clerks@clarington.net
Mary Madeiros, City of Oshawa, clerks@oshawa.ca
Debbie Shields, City of Pickering, clerks@pickering.ca
JP Newman, Township of Scugog, jnewman@scugog.ca
Debbie Leroux, Township of Uxbridge dleroux@town.uxbridge.ca
Chris Harris, Town of Whitby, harrisc@whitby.ca
Chris Darling, CLOCA, cdarling@cloca.com
Jamie Davidson, CLOCA, jdavidson@cloca.com

h:\pgdp22 cloca comments - greenbelt removals 2022 clerks letter ajax.docx

Legislative Services
Michael de Rond
905-726-4771
clerks@aurora.ca

Town of Aurora
100 John West Way, Box 1000
Aurora, ON L4G 6J1

November 23, 2022

The Honourable Doug Ford, Premier of Ontario
Premier's Office, Room 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

Delivered by email
premier@ontario.ca

Dear Premier:

Re: Town of Aurora Council Resolution of November 22, 2022; Re: Motion 7.2 – Mayor Mrakas – Opposition to Bill 23, More Homes Built Faster Act, 2022

Please be advised that this matter was considered by Council at its meeting held on November 22, 2022, and in this regard, Council adopted the following resolution:

Whereas Bill 23, the More Homes Built Faster Act, omnibus legislation that received first reading in the provincial legislature on October 25, 2022, proposes changes to nine Acts. Many of these proposed changes are significant and will restrict how municipalities manage growth through implementation of the official plan and the ability to provide essential infrastructure and community services; and

Whereas the effect of Bill 23 is that the Conservation Authority will no longer be able to review and comment on development applications and supporting environmental studies on behalf of a municipality; and

Whereas Bill 23 proposes to freeze, remove, and reduce development charges, community benefits charges, and parkland dedication requirements; and

Whereas Bill 23 will remove all aspects of Site Plan Control of some residential development proposals up to 10 units. Changes would also remove the ability to regulate architectural details and aspects of landscape design;

1. **Now Therefore Be It Hereby Resolved That the Town of Aurora oppose Bill 23, More Homes Built Faster Act, 2022, which in its current state will severely impact environmental protection, heritage preservation, public participation, loss of farmland, and a municipality's ability to provide future services, amenities, and infrastructure, and negatively impact residential tax rates; and**

2. **Be It Further Resolved That the Town of Aurora call upon the Government of Ontario to halt the legislative advancement of Bill 23, More Homes Built Faster Act, 2022 to enable fulsome consultation with Municipalities to ensure that its objectives for sound decision-making for housing growth that meets local needs will be reasonably achieved; and**

3. **Be It Further Resolved That a copy of this Motion be sent to The Honourable Doug Ford, Premier of Ontario, The Honourable Michael Parsa, Associate Minister of Housing, The Honourable Steve Clark, Minister of Municipal Affairs and Housing, Peter Tabuns, Interim Leader of the New Democratic Party, local Members of Parliament Tony Van Bynen for Newmarket—Aurora and Leah Taylor Roy for Aurora—Oak Ridges—Richmond Hill, and all MPPs in the Province of Ontario; and**

4. **Be It Further Resolved That a copy of this Motion be sent to the Association of Municipalities of Ontario (AMO) and all Ontario municipalities for their consideration.**

The above is for your consideration and any attention deemed necessary.

Yours sincerely,

Michael de Rond
Town Clerk
The Corporation of the Town of Aurora

MdR/lb

Copy: Hon. Michael Parsa, Associate Minister of Housing
Hon. Steve Clark, Minister of Municipal Affairs and Housing
Peter Tabuns, Interim Leader, New Democratic Party
Tony Van Bynen, MP Newmarket—Aurora
Leah Taylor Roy, MP Aurora—Oak Ridges—Richmond Hill
All Ontario Members of Provincial Parliament
Association of Municipalities of Ontario (AMO)
All Ontario Municipalities

Legislative Services
Michael de Rond
905-726-4771
clerks@aurora.ca

Town of Aurora
100 John West Way, Box 1000
Aurora, ON L4G 6J1

November 23, 2022

The Honourable Doug Ford, Premier of Ontario
Premier's Office, Room 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

Delivered by email
premier@ontario.ca

Dear Premier:

Re: Town of Aurora Council Resolution of November 22, 2022; Re: Motion 7.1 – Mayor Mrakas – Modifications to York Region Official Plan

Please be advised that this matter was considered by Council at its meeting held on November 22, 2022, and in this regard, Council adopted the following resolution:

Whereas the Province on November 4, 2022, approved the York Region Official Plan with 80 modifications; and

Whereas these modifications to the Regional Official Plan have been made by the Minister including two in the Town of Aurora; and

Whereas these modifications have been made without consultation or support by the Town of Aurora; and

Whereas Section 4.2 is modified by adding a new policy subsection after policy 4.2.29, titled "Special Provisions", followed by new policies: "4.2.30 Special provisions for the lands known municipally as 1289 Wellington Street East in the City of Aurora (PIN 036425499). Notwithstanding any other policies in this Plan to the contrary, the minimum density target to be achieved is 330 units per hectare and minimum building height of 12 storeys.";

1. **Now Therefore Be It Hereby Resolved That the Town of Aurora opposes the modification by the Minister of Municipal Affairs and Housing for the lands known municipally as 1289 Wellington Street East in the Town of Aurora (PIN 036425499); and**

2. **Be It Further Resolved That the Town of Aurora requests the Minister to revoke special provision 4.2.30 to allow for the normal planning process to occur, as the Modification to the Regional Official Plan is contrary to the**

planning applications (OPA and ZBA) currently before the OLT (case files: OLT-22-004187 and OLT-22-004188); and

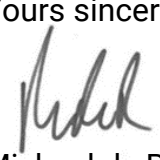
3. **Be It Further Resolved That a copy of this Motion be sent to The Honourable Doug Ford, Premier of Ontario, The Honorable Sylvia Jones, Deputy Premier of Ontario, The Honourable Steve Clark, Minister of Municipal Affairs and Housing, Peter Tabuns, Interim Leader of the New Democratic Party, and all MPPs in the Province of Ontario; and**

4. **Be It Further Resolved That a copy of this Motion be sent to the Association of Municipalities of Ontario (AMO) and all Ontario municipalities for their consideration; and**

5. **Be It Further Resolved That a letter be submitted to The Honourable Doug Ford, Premier of Ontario, The Honourable Steve Clark, Minister of Municipal Affairs and Housing, The Honourable Michael Parsa, Associate Minister of Housing and MPP Aurora—Oak Ridges—Richmond Hill, and Dawn Gallagher Murphy, MPP Newmarket—Aurora, expressing our disappointment with the lack of consultation and communication with the Town of Aurora and requesting that an explanation as to why this significant change was warranted be provided.**

The above is for your consideration and any attention deemed necessary.

Yours sincerely,



Michael de Rond
Town Clerk
The Corporation of the Town of Aurora

MdR/lb

Copy: Hon. Sylvia Jones, Deputy Premier of Ontario
Hon. Steve Clark, Minister of Municipal Affairs and Housing
Peter Tabuns, Interim Leader, New Democratic Party
All Ontario Members of Provincial Parliament
Association of Municipalities of Ontario (AMO)
All Ontario Municipalities

Clerks and Bylaw

November 17, 2022

SENT VIA E-MAIL TO:

Hon. Steve Clark
Minister of Municipal Affairs and Housing
Steve.Clark@pc.ola.org

Dear Minister Clark:

Re: Bill 23 "*More Homes Built Faster Act, 2022*"

On behalf of the Council of The Corporation of Norfolk County, please be advised that Council passed the following resolution at the November 16, 2022 Council-in-Committee meeting:

Resolution No. 13

Moved By: Mayor Martin
Seconded By: Councillor Columbus

WHEREAS on October 25, 2022, the Provincial government introduced Bill 23 known as the "More Homes Built Faster Act, 2022";

AND WHEREAS the overall stated purpose of Bill 23 is to introduce several legislative changes to increase housing supply throughout Ontario and to achieve the province's goal of 1.5 million homes over the next ten years;

AND WHEREAS the proposed changes include significant changes to six pieces of legislation including but not limited to development charges reform, diminished role of conservation authorities, removal of legislated planning responsibilities from some upper-tier municipalities, removal of public consultation in relation to subdivisions, adjusting the rights of appeal by third parties, and adjusting how growth-related capital infrastructure is paid for;

AND WHEREAS commenting timelines for these new proposed changes is constricted with some comments due on November 24, 2022, for many of the proposed changes;

Office of the Chief Administrative Officer
50 Colborne St., S. · Simcoe ON N3Y 4H3 · **T:** 519.426.5870 · **F:** 519.426.8573 ·
norfolkcounty.ca

AND WHEREAS given the enormity of the proposed changes and potential long-term financial impacts to municipalities, including Norfolk County, additional time is needed to review, engage, and analyze the proposal to provide informed feedback;

NOW THEREFORE BE IT RESOLVED THAT

1. the County formally request the Ministry of Municipal Affairs and Housing extend the commenting period for all components of the proposed Bill 23 to at least January 15, 2023 to allow for a more informed consultation period.
2. That the Mayor be directed to submit a letter on behalf of Norfolk County Council to the Ontario Minister of Municipal and Affairs MP, and local MPP, expressing concerns with the proposed legislation as detailed in staff memo CD-22-110, and the letter be circulated to all municipalities in the Province of Ontario.

Carried.

Should you have any questions regarding this matter or should you require additional information, please contact the Office of the County Clerk at 519-426-5870 x. 1261, or email: Clerks@norfolkcounty.ca.

Sincerely,

Teresa Olsen
County Clerk
Norfolk County

CC:

- Leslyn Lewis, M.P., Haldimand-Norfolk
  leslyn.lewis@parl.gc.ca
- Bobbi Ann Brady, M.P.P., Haldimand-Norfolk
  BABrady-CO@ola.org
- All Ontario municipalities

Corporate Services Department
Clerk's Office
CITY of STRATFORD
City Hall, P.O. Box 818
Stratford ON N5A 6W1

519-271-0250 Ext. 5237
Fax: 519-273-5041
www.stratford.ca

November 28, 2022

Right Hon. Justin Trudeau
Prime Minister of Canada
Office of the Prime Minister
80 Wellington Street
Ottawa, ON K1A 0A2

justin.trudeau@parl.gc.ca

Dear Prime Minister:

Re: Resolution – Funding and Support for VIA Rail Services

At their November 14, 2022, Regular Council meeting, Stratford City Council adopted a resolution petitioning the federal government to adequately fund and fully support VIA Rail Canada in increasing the frequency, reliability and speed of VIA Rail service.

A copy of the resolution is attached for your consideration. We kindly request your support and endorsement.

Sincerely,

Tatiana Dafoe
Clerk

Encl.
/ja

cc: Premier Doug Ford
MPP Matthew Rae
MP John Nater
Association of Municipalities of Ontario
Federation of Canadian Municipalities
All Ontario municipalities

THE CORPORATION OF THE CITY OF STRATFORD

Resolution: Funding and Support for VIA Rail Service

WHEREAS The Corporation of the City of Stratford supports the National Transportation Policy and Section 5 of the *Canada Transportation Act*, S.C. 1996, c. 10 (as amended), which states in part:

"a competitive, economic and efficient national transportation system that meets the highest practicable safety and security standards and contributes to a sustainable environment, makes best use of all modes of transportation at the lowest cost is essential to serve the needs of its users, advance the well-being of Canadians, enable competitiveness and economic growth in both urban and rural areas throughout Canada. Those objectives are achieved when:

(a) competition and market forces among modes of transportation, are prime agents in providing viable and effective transportation services;

(b) regulation and strategic public intervention are used to achieve economic, safety, security, environmental or social outcomes

(c) rates and conditions do not constitute an undue obstacle to the movement of traffic within Canada or to the export of goods from Canada;

(d) the transportation system is accessible without undue obstacle to the mobility of persons, including persons with disabilities; and

(e) governments and the private sector work together for an integrated transportation system."

WHEREAS the Government of Canada has stated: "*we are serious about climate change*" and "*smart investments in transit help connection communities …. We will continue to work with communities and invest in the infrastructure they need today and into the future*";

WHEREAS Abacus data has indicated that Canadians are focused on building transit to reduce congestion and connect communities;

WHEREAS the Canadian Transport Commission main finding at public hearings in 1977 was that there should be no further reductions to passenger rail services;

WHEREAS the frequency of VIA trains running in Canada has been reduced significantly since 1977, causing a subsequent significant drop in ridership;

WHEREAS there is a need for balanced transportation with more using transit and less using automobiles;

WHEREAS the changing demographic relating to house prices, housing affordability will require further expansions of transit;

WHEREAS there is a need to visit tourist sites located along rail lines;

WHEREAS the annual cost of congestion to the Greater Toronto Hamilton Area economy alone is between $7.5 and $11 billion;

WHEREAS there are 10 million more vehicles on the road today than there were in 2000; and

WHEREAS the City of Stratford requests the support of this resolution from all communities served by VIA;

NOW THEREFORE BE IT RESOLVED THAT the Council of the Corporation of The City of Stratford recommends to the Government of Canada to adequately fund and fully support VIA Rail Canada in increasing the frequency, reliability and speed of VIA rail service in 2022 and successive years.

Adopted by City Council of The Corporation of the City of Stratford on November 14, 2022

The Corporation of the City of Stratford, P.O. Box 818, Stratford ON N5A 6W1
Attention: City Clerk, 519-271-0250 extension 5329, clerks@stratford.ca

Orangeville
Historic Charm Dynamic Future
www.orangeville.ca

Office of the Mayor
Lisa Post

Town of Orangeville
87 Broadway, Orangeville, ON L9W 1K1
Tel: 519-941-0440 Ext. 2240 Toll Free: 1-866-941-0440

November 30, 2022

Hon. Steve Clark
Ontario Ministry of Municipal Affairs and Housing
777 Bay Street, 17th Floor
Toronto, ON M7A 2J3
Via Email: minister.mah@ontario.ca

Re: Bill 23, More Homes Built Faster Act

Dear Minister Clark,

Town of Orangeville acknowledges Bill 23, titled the More Homes Built Faster Act, 2022 is part of a long-term strategy to provide attainable housing options for families across Ontario. We at the Town understand that Bill 23 is focused on the provincial government's stated goal of having 1.5 million homes built over the next 10 years and aims to do so by reducing bureaucratic costs and delays in construction. While the Province's goals to resolve the housing crisis in the next decade is ambitious and necessary, it could potentially have unintended long-term financial and planning related consequences on municipalities, such as the Town of Orangeville.

On behalf of the Town of Orangeville Council, I put forward a list of concerns of potential unintended consequences arising from Bill 23:

1. Bill 23 could have a direct impact on the state of good repair mandate rolled out by the province in their recent legislation, O.Reg. 588/17. If growth is no longer paying for growth, that means **we may have to reallocate some of our lifecycle asset management dollars**, as required by the same legislation, towards growth related infrastructure.

2. Although we support the overarching message and intention of Bill 23 as it relates to housing affordability, we do question whether **overall quality of life and affordability of our citizens would be severely impacted due to higher taxes** and user fees. The Town of Orangeville has limited cost-recovery avenues, meaning Bill 23 may require cost-recovery within the recent Asset Management plan, resulting in a more significant infrastructure funding gap. This situation will be further exasperated if specific provisions of Bill 23 dilute our ability to cover infrastructure improvements through Development Charges.

3. Town of Orangeville is a fast-growing community with a comprehensive economic outlook for Industrial and Commercial developments. This could be compromised if we find ourselves having to **levy higher development charges for industrial, commercial and institutional (ICI) developments to mitigate loss of Residential Development Charges**.

4. Under the current climate of impending global inflation, the Town is already struggling to keep its service levels affordable. Without any direct financial incentive from the province such as interest-free loans from Infrastructure Ontario, **we will lose our ability to build capacity for growth in service areas like Water and Wastewater.**

5. Improving residential development efficiencies and costs by limiting the role and scope of Conservation Authorities (CA) in the planning approval process is unclear. Like many municipalities, Orangeville relies on Conservation Authority support to provide guidance on natural hazard avoidance and ecological protection to ensure that the provincial policy framework around these issues is upheld in our planning decisions. **If CAs are removed from this advisory role, we must find alternative means in assuring such policies remain adhered-to**. It is unclear how this would improve approval timing efficiencies or save costs to residential developments. It could inevitably shoulder more costs to development in subsidizing municipal costs and/or consultant peer review support.

6. Orangeville supports the province's objectives of lowering costs and improving efficiency for residential development to deliver more housing to Ontarians; However, like many municipalities, our challenges for facilitating more housing within our community are not simply costs and process inefficiencies for developments. Instead, we are challenged by our limited municipal land availability and servicing capacity constraints. We ask that the province **explore actionable measures and tangible resource deployment to support our efforts to increase our land supply and infrastructure servicing capacity.**

According to the Association of Municipalities of Ontario's (AMO) recent submission to the Steering Committee of Bill 23, it states "The province has offered no evidence that the radical elements of the bill will improve housing affordability. It is more likely that the bill will enhance the profitability of the development industry at the expense of taxpayers and the natural environment." As the frontline level of government, municipalities are also eager to resolve the housing crisis and are the most informed on what is needed to create complete communities that Ontarians want and expect. We ask that the province view us as one of the strategic partners in further refining the More Homes Built Faster Act, and open more robust channels of communication and consultation.

Sincerely,



Lisa Post
Mayor

CC Doug Ford, Premier of Ontario
The Honourable Michael Parsa, Associate Minister of Housing
The Hounourable Sylvia Jones, Dufferin-Caledon Member of Provincial Parliament
Association of Municipalities of Ontario (AMO)
All Ontario Municipalities

TOWN OF AJAX
REPORT OF THE COMMUNITY AFFAIRS AND PLANNING COMMITTEE

For consideration by the Council of the Town of Ajax on December 12, 2022

The Community Affairs and Planning Committee met at 7:00 p.m. on December 5, 2022

Present: Regional Councillor S. Lee, Chair
Regional Councillor M. Crawford
Regional Councillor J. Dies
Councillor N. Henry
Councillor R. Tyler Morin
Councillor L. Bower
Mayor S. Collier

The Community Affairs & Planning Committee recommends as follows:

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

Moved by: S. Lee
Seconded by: M. Crawford

That the Minutes of the Community Affairs and Planning Committee Meeting held on September 6, 2022, be adopted.

CARRIED

4. Public Meetings

4.1 PDS-2022-26: Bill 13 and Bill 109: Planning Process Changes and Town Initiated Official Plan Amendment No. 71 (All Wards)

Moved by: S. Collier
Seconded by: R. Tyler Morin

1. That the report entitled “Bill 13 and Bill 109: Planning Process Changes and Town Initiated Official Plan Amendment No. 71” be received for information;

2. That Official Plan Amendment No. 71, included as ATT-1 to this report, be approved, and that the implementing by-law be forwarded to the December 12, 2022, Council meeting for approval;

3. That Council delegate authority to the Director of Planning and Development Services, or their designate, to approve the removal of a holding (H) provision, and the establishment or extension of a temporary use by-law in accordance with the policies of the Official Plan; and, that the Delegation of Authority By-law, included as ATT-2 to this report, be forwarded to the December 12, 2022, Council meeting for approval;

4. That Pre-consultation By-law 51-2019 be repealed and the proposed new Pre-consultation By-law, included as ATT-4 to this report, be forwarded to the December 12, 2022, Council meeting for approval;

5. That the interim amending By-law to the Town of Ajax Fees and Charges By-law No. 54-2022, included as ATT-5 to this report, be forwarded to the December 12, 2022 Council meeting for approval; and

6. That the proposed By-law to amend Council Procedural By-law 34-2022, included as ATT-6 to this report, be forwarded to the December 12, 2022, Council meeting for approval.

CARRIED

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Mayor Collier, Regional Councillor Crawford, Councillor Henry, Regional Councillor Dies

Opposed: None

5. Presentations / Reports

None

6. Adjournment

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the December 5, 2022 meeting of the Community Affairs and Planning Committee be adjourned. (8:04 p.m.)

CARRIED

J. Dies, Chair

The Corporation of the Town of Ajax
December 12, 2022

Motion

Council Participation in OMERS Pension Plan

Moved by: **Regional Councillor Lee**
Seconded by: **Regional Councillor Crawford**

WHEREAS the Ontario Municipal Employees Retirement System (OMERS) is a defined benefit pension plan and provides a guaranteed stream of income in retirement;

AND WHEREAS the OMERS Plan pension can grow into an important financial asset and play a key role in financial and retirement security;

AND WHEREAS both the employee and employer contribute equal amounts to the OMERS plan, increasing the total contribution being invested;

AND WHEREAS the Council Members of Whitby, Clarington and Uxbridge participate in the OMERS program and the Region of Durham provides the option to do so for Members of Regional Council;

AND WHEREAS the Town of Ajax currently contributes 10% of a Council Member's base salary to a personal Registered Retirement Savings Plan (RRSP) as a pension compensation benefit;

AND WHEREAS if members of Council were enrolled in the OMERS plan, the Town would contribute 9% of earnings up to the Year's Maximum Pensionable Earnings (YMPE) earnings limit and 14.6% of earnings over the YMPE limit, with Members being required to match the Town's contributions;

AND WHEREAS existing council members can individually choose to join OMERS at the effective date of enrolment and members who decline can join OMERS at any point in the future provided they continue to be eligible;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Manager of HR Services be directed to contact OMERS indicating Council's intent to participate in the OMERS Plan and obtain the necessary information and documentation to commence the process;

2. Staff be directed to provide the option to replace Council's Registered Retirement Savings Plan (RRSP) benefit with participation in the OMERS Plan; and

3. The Town continue to provide the Registered Retirement Savings Plan (RRSP) benefit to current members of Council who opt out of the OMERS Plan.

The Corporation of the Town of Ajax
December 12, 2022

Motion

Harmonizing Regional Councillor Remuneration

Moved by: **Regional Councillor Crawford**
Seconded by: **Regional Councillor Lee**

WHEREAS Ajax regional councillors are paid for their local duties by the Town of Ajax and for their Regional Council duties by the Regional Municipality of Durham;

AND WHEREAS by receiving separate payments, regional councillors may be subject to higher taxation deductions on both Canadian Pension Plan and Employment Insurance contributions, which are subject to maximum annual contribution ceilings;

AND WHEREAS By-law Number 42-2022 of the Regional Municipality of Durham gives municipalities the opportunity to enter into a joint services agreement with the Region for the harmonization of councillors' remuneration and benefits. Under the agreement, the Region reimburses the municipality for the cost of providing remuneration and benefits on a quarterly basis;

AND WHEREAS Whitby, Clarington, and Uxbridge currently participate in payment harmonization with the Region;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax staff implement all measures necessary to administer the harmonization of the Regional Remuneration in accordance with By-law Number 42-2022 of the Regional Municipality of Durham.

The Corporation of the Town of Ajax
December 12, 2022

Motion

Residential Parking Permit Program

Moved by: **Regional Councillor Lee**
Seconded by: **Councillor Henry**

WHEREAS a Residential Parking Permit (RPP) Feasibility Study was completed in 2008 to examine the feasibility of implementing a RPP program in the Town of Ajax;

AND WHEREAS the Council of the day did not vote in favour of implementing the RPP program on the recommendation of staff at the time;

AND WHEREAS the makeup and built form of our community has changed dramatically since 2008, including new developments that have been built and are planned for the future, and an increase in multi-family homes with multiple vehicles requiring increased parking;

AND WHEREAS some residents of Ajax have expressed concerns to members of Council regarding a perceived lack of residential parking supply, particularly in Ajax's newer communities;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to present a report to Council or the appropriate Standing Committee on the cost, timeline, scope and potential funding sources for an updated Town-wide Residential Parking Permit (RPP) Study by no later than March 2023; and

2. The RPP Study shall include, at minimum, an examination of existing on-street parking supply, potential scope of the program, estimated costs and cost recovery mechanisms for the Town, integration with the Town's existing on-street parking programs and by-laws, estimated participation rates of residents and visitors, and estimated timelines for development and implementation.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 70-2022

A By-law to amend By-law 45-2020, being a By-law to regulate traffic on highways in the Town of Ajax.

WHEREAS the Council of The Corporation of the Town of Ajax may pass By-laws pursuant to the Highway Traffic Act, R.S.O.1990 and amendments thereto:

NOW THEREFORE, the Council of the Corporation of the Town of Ajax enacts as follows:

That By-law Number 45-2020 as amended be further amended as follows:

SCHEDULE 21

FIRE ROUTES

ADD:

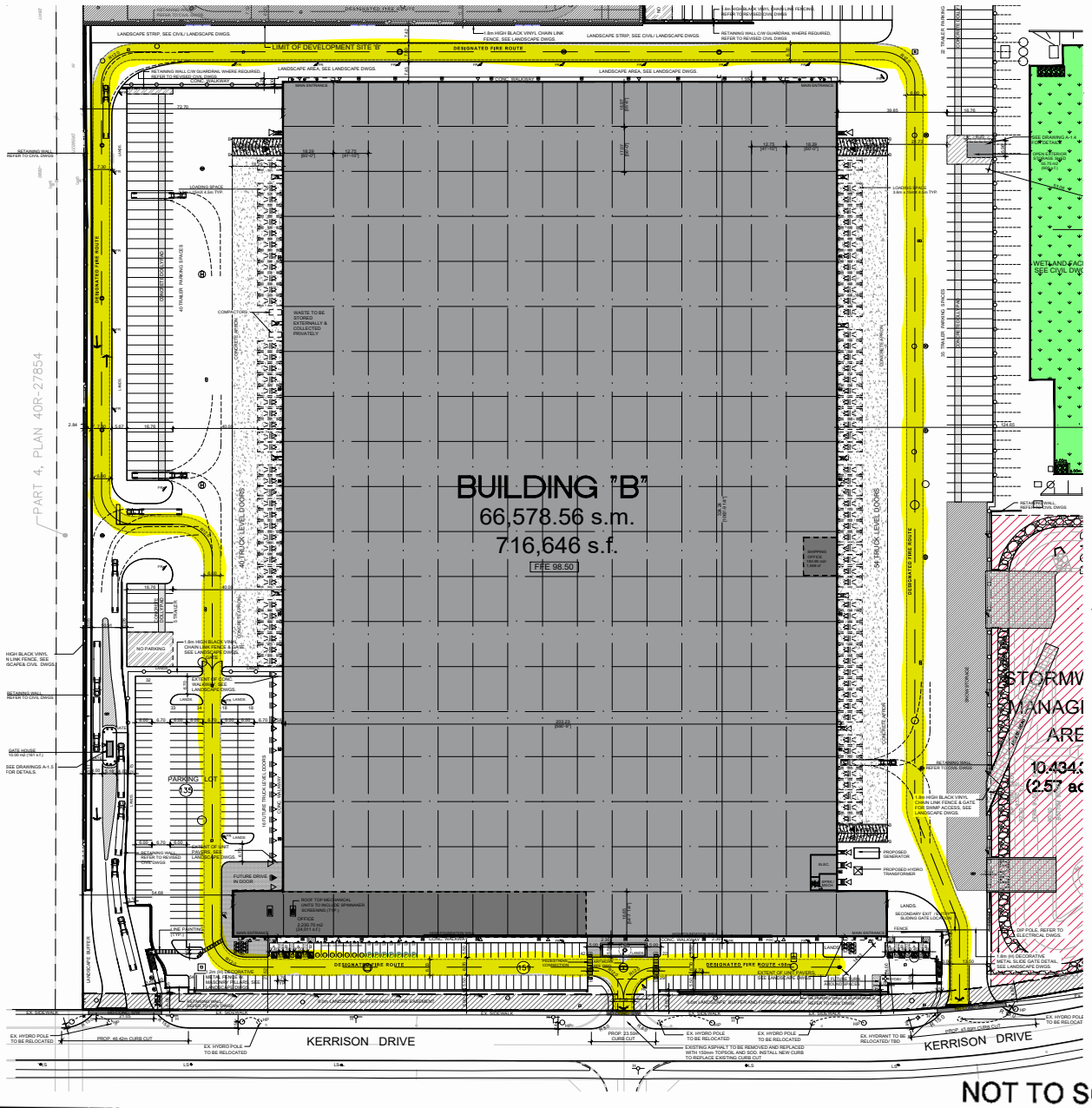
Municipal Address	Name of Property	Approval Date
210 Kerrison Dr E	Industrial Warehouse “Building B”	December 12, 2022

READ a first and second time this Twelfth Day of December, 2022

READ a third time and passed this Twelfth Day of December, 2022

_____
Mayor

_____
D-Clerk



NOT TO SCALE

LEGEND

APPROXIMATE LOCATION OF PROPERTY LINE

FIRE ROUTE SHOWN AS

FIRE ROUTE SIGN ON STREET LIGHT POLE

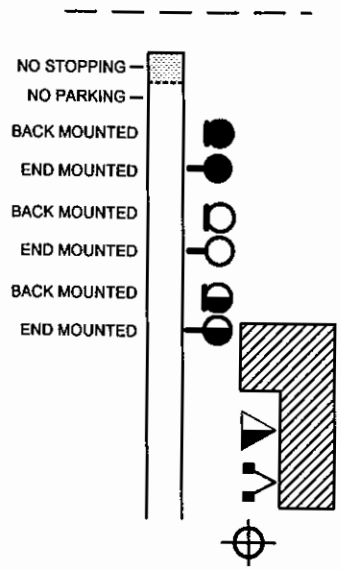
FIRE ROUTE SIGN ON SIGN POST

FIRE ROUTE SIGN ON BUILDING OR STRUCTURE

ENTRANCE TO BUILDING

FIRE (SIAMESE) CONNECTION

FIRE HYDRANT



LOCATION / DESCRIPTION

210 Kerrison Drive East, Ajax, Ontario, L1Z 0R8

DESIGNATED FIRE ROUTE

TYPE	QTY.

Town of Ajax By the Lake

DATE: 2022 10 26

SCHEDULE NUMBER

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 71-2022

A By-law to amend By-law 45-2020, being a By-law to regulate traffic on highways in the Town of Ajax.

WHEREAS the Council of The Corporation of the Town of Ajax may pass By-laws pursuant to the Highway Traffic Act, R.S.O.1990 and amendments thereto:

NOW THEREFORE, the Council of the Corporation of the Town of Ajax enacts as follows:

That By-law Number 45-2020 as amended be further amended as follows:

SCHEDULE 21

FIRE ROUTES

ADD:

Municipal Address	Name of Property	Approval Date
65 Blowers Crescent	Commercial Hotel Building	December 12, 2022

READ a first and second time this Twelfth day of December, 2022

READ a third time and passed this Twelfth day of December, 2022

_____
Mayor

_____
D-Clerk



Legend

APPROXIMATE LOCATION OF PROPERTY LINE

FIRE ROUTE AS SHOWN

FIRE ROUTE SIGN ON STREET POLE

FIRE ROUTE SIGN ON SIGN POST

FIRE ROUTE SIGN ON BUILDING OR STRUCTURE

ENTRANCE TO BUILDING

FIRE (SIAMESE CONNECTION)

FIRE HYDRANT

BUILDING

NO STOPPING –
NO PARKING –
BACK MOUNTED
END MOUNTED
BACK MOUNTED
END MOUNTED
BACK MOUNTED
END MOUNTED

LOCATION/DESCRIPTION: 65 BLOWERS CRESCENT

	TYPE	QTY.
DESIGNATED FIRE ROUTE	FR-1	FR-1
	FR-2	FR-2
	FR-3	FR-3
	FR-4	FR-4

Town of Ajax By the Lake

DATE

SCHEDULE NUMBER

PATH: S:\2018\24. 518-024 Ajax, ON - Hilton Combo\30 - Drawings\3.2 - SPA\22-11-04 Fire Route App\

DWG NAME: Fire Route Site Plan

PLOT DATE: November/10/22

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 72-2023

A By-law to Provide For a 2023 Interim Tax Levy for the Town of Ajax.

WHEREAS Section 317 (1) of the *Municipal Act, 2001, S.O. 2001* as amended, provides that the Council of a local municipality may, before the adoption of the estimates for the year under Section 290, pass a by-law levying amounts on the assessment of property in the local municipality rateable for local municipality purposes;

AND WHEREAS Section 342(1)(b) of the *Municipal Act, 2001, S.O. 2001* as amended states in part that a municipality may pass by-laws providing for alternative instalments and due dates to allow taxpayers to spread the payment of taxes more evenly over the year;

AND WHEREAS Section 345(1) of the *Municipal Act, 2001, S.O. 2001* as amended, provides that a local municipality may, in accordance with this section, pass by-laws to impose late payment charges for the non-payment of taxes or any instalment by the due date;

AND WHEREAS Section 345(2) of the *Municipal Act, 2001, S.O. 2001* as amended, provides that a percentage charge, not to exceed 1 1/4 per cent (1.25%) of the amount of taxes due and unpaid, may be imposed as a penalty for the non-payment of taxes on the first day of default or such later date as the by-law specifies;

AND WHEREAS Section 345(3) of the *Municipal Act, 2001, S.O. 2001* as amended, provides that interest charges, not to exceed 1 1/4 per cent (1.25%) each month of the amount of taxes due and unpaid, may be imposed for the non-payment of taxes in the manner specified in the by-law but interest may not start to accrue before the first day of default;

NOW THEREFORE, the Council of the Corporation of the Town of Ajax enacts as follows:

1. The amounts levied shall be as follows:

    1.1 For the Residential, Farm, Pipelines and Managed Forest property classes, there shall be imposed and collected an interim levy of 50% of the total taxes for municipal and school purposes levied on the property in 2022.

    1.2 For properties in the Commercial, Parking Lot, Office Building, Shopping Centre, Industrial, Large Industrial and Multi-Residential property classes, there shall be imposed and collected an interim levy of 50% of the total taxes for municipal and school purposes levied on the property in 2022.

2. For the purposes of calculating the total amount of taxes levied on the property for the year 2022 under paragraph 1, if any taxes for municipal and school purposes were levied on a property for only part of 2022 because assessment was added to the tax roll during 2022, an amount shall be added equal to the additional taxes that would have been levied on the property if the taxes for municipal and school purposes had been levied for the entire year.

3. The interim tax levy shall become due and payable in two (2) instalments on Friday, February 24, 2023 and Friday, April 28, 2023.

4. On application to the Town, a taxpayer may pay taxes by a pre-authorized payment plan. In the event of the default of payment on the pre-authorized payment plan, enrolment in the plan shall be terminated and the interim tax levy shall be due and payable on the instalment dates as set out in section 3.

5. Any person may make payment of the taxes into a financial institution to the credit of the Treasurer, and the person making the payment shall be entitled to be issued a receipt by the institution for the amount paid.

6. In the event an instalment is not paid on its due date, there shall be imposed a penalty of 1 1/4 percent (1.25%) on the first day of the calendar month following non payment.

7. In the event an instalment is not paid on its due date, interest shall be imposed at the rate of 1 1/4 per cent (1.25%) per month on the first day of the second calendar month following the due date and on the first day of every calendar month thereafter until the taxes are paid.

8. If any instalment remains unpaid at the due date, all future instalments become immediately due and payable.

9. The subsequent levy for the year 2023 to be made under the *Municipal Act, 2001, S.O. 2001* as amended, shall be reduced by the amount to be raised by the levy imposed by this by-law.

10. Nothing in this by-law shall prevent the Treasurer from proceeding at any time with the collection of any tax, or any part thereof, in accordance with the provisions of the statutes and by-laws governing the collection of taxes.

11. If any section or portion of this by-law is found by a court of competent jurisdiction to be invalid, it is the intent of the Council of the Corporation of the Town of Ajax that all remaining sections and portions of this by-law continue in force and effect.

READ a first and second time this
Twelfth day of December, 2022.

READ a third time and finally passed
this Twelfth day of December, 2022.

_____
Mayor

_____
Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 73-2022

Being a By-law to establish an Accessibility Advisory Committee.

WHEREAS The Town of Ajax is committed to improving access for members of the community, through the requirements and in the spirit of the *Ontarians with Disabilities Act, 2001* and the *Accessibility for Ontarians with Disabilities Act, 2005*, by identifying and mitigating barriers for persons with disabilities;

AND WHEREAS the Town of Ajax is required to establish an accessibility advisory committee under Section 12 of the *Ontarians with Disabilities Act, 2001.*

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax “Accessibility Advisory Committee” be established for the 2022 to 2026 term of Council.

2. The attached “terms of reference” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Accessibility Advisory Committee.

3. Where the *Ontarians with Disabilities Act, 2001* or the *Accessibility for Ontarians with Disabilities Act, 2005* and any other relevant legislation is silent, relevant by-laws, resolutions, policies and practices of the Town of Ajax shall govern the roles, expectations, conduct, structure and administration of the Accessibility Advisory Committee.

4. That By-law 4-2019 is hereby repealed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 74-2022

Being a By-law to establish a Committee of Adjustment

WHEREAS *Section 44 and 45 of the Planning Act, R.S.O. 1990,* Chapter 13, as amended, provides that Council may, by by-law, establish a Committee of Adjustment, if the municipality has passed a by-law under section 34 of the said Planning Act;

AND WHEREAS the Council of the Corporation of the Town of Ajax deems it advisable and expedient to establish a Committee of Adjustment;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax “Committee of Adjustment” be established for the 2022 to 2026 term of Council.

2. The attached “terms of reference and rules of procedure” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Committee of Adjustment.

3. Where the *Section 44 and 45 of the Planning Act, R. S. O. 1990,* Chapter 13, as amended, and the *Statutory Powers and Procedures Act R.S.O. 1990, c. S.22* are silent, relevant by-laws, resolutions and practices of the Town of Ajax shall govern the roles, expectations, conduct, structure and administration of the Committee of Adjustment.

4. That By-law 7-2019 is hereby repealed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____

Mayor

_____

D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 75-2022

Being a By-law to establish a Municipal Heritage Committee.

WHEREAS the Town of Ajax is committed to preserving and providing access to its collective local natural, cultural, architectural and historical heritage;

AND WHEREAS Section 28 (1) of the *Ontario Heritage Act, R.S.O. 1990* allows for the council of a municipality to establish a committee to advise and assist council on various heritage-related matters by by-law;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax establish a Municipal Heritage Committee for the 2022 to 2026 term of Council.

2. That the committee be called the “Heritage Advisory Committee”.

3. The attached “terms of reference” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Heritage Advisory Committee.

4. That By-law 5-2019 is hereby repealed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 76-2022

Being a By-law to establish a Property Standards Appeal Committee/Animal Services Appeal Committee.

WHEREAS the Building Code Act 1992, S.O. 1992, CHAPTER 23 provides for the establishment of a Property Standards Appeal Committee;

AND WHEREAS the Municipal Act, 2001, S.O. 2001, CHAPTER 25, mandates that the council of a municipality must hold a hearing at the request of an owner of a dog that has been subject to a muzzling order;

AND WHEREAS the Municipal Act 2001, S.O. 2001, CHAPTER 25, authorize a municipality to delegate its powers and duties under this or any other Act to a person or body;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax “Property Standards Appeal Committee/Animal Services Appeal Committee” be established for the 2022 to 2026 term of Council.

2. The attached “terms of reference and rules of procedure” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Property Standards Appeal Committee/Animal Services Appeal Committee.

3. Where the Building Code Act, 1992, S.O. 1992, CHAPTER 23 or the Municipal Act 2001, S.O. 2001, CHAPTER 25 or the Statutory Powers and Procedures Act R.S.O. 1990, c. S.22 is silent, relevant by-laws, resolutions and practices of the Town of Ajax shall govern the roles, expectations, conduct, structure and administration of the Property Standards Appeal Committee/Animal Services Appeal Committee.

4. That By-law 6-2019 is hereby repealed.

READ a first and second time this
Twelfth day of December, 2022.

READ a third time and passed this
Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 77-2022

A By-law to designate certain lands as not being subject to Part Lot Control.
[PLC3/22, 579813 Ontario Inc. and 368574 Ontario Limited, Blocks 1-9,
Registered Plan 40M-2623].

WHEREAS, Altonview Investments Inc., on behalf of 579813 Ontario Inc. and 368574 Ontario Limited, has requested relief from the provisions of Section 50 (5) of the *Planning Act,* R.S.O. 1990, c. P.13, as amended, with respect to Part Lot Control for certain lands;

AND WHEREAS Council is authorized to pass this By-law under Section 50 (7) of the *Planning Act,* R.S.O. 1990, c. P.13, as amended;

AND WHEREAS Council deems it expedient to pass this By-law granting relief from Part Lot Control with reference to the subject lands.

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That Subsection 5 of Section 50 of the *Planning Act,* R.S.O. 1990, c. P.13, as amended, shall be deemed not to apply to the following lands within a Registered Plan of Subdivision registered in the office of Land Titles at the Town of Whitby in the Region of Durham:

   Blocks 1, 2, 3, 4, 5, 6, 7, 8, and 9
   Registered Plan 40M-2623

2. This By-law shall be in force and effect for a period of two (2) years, ending December 12, 2024.

READ a first time and second time this twelfth day of December, 2022.

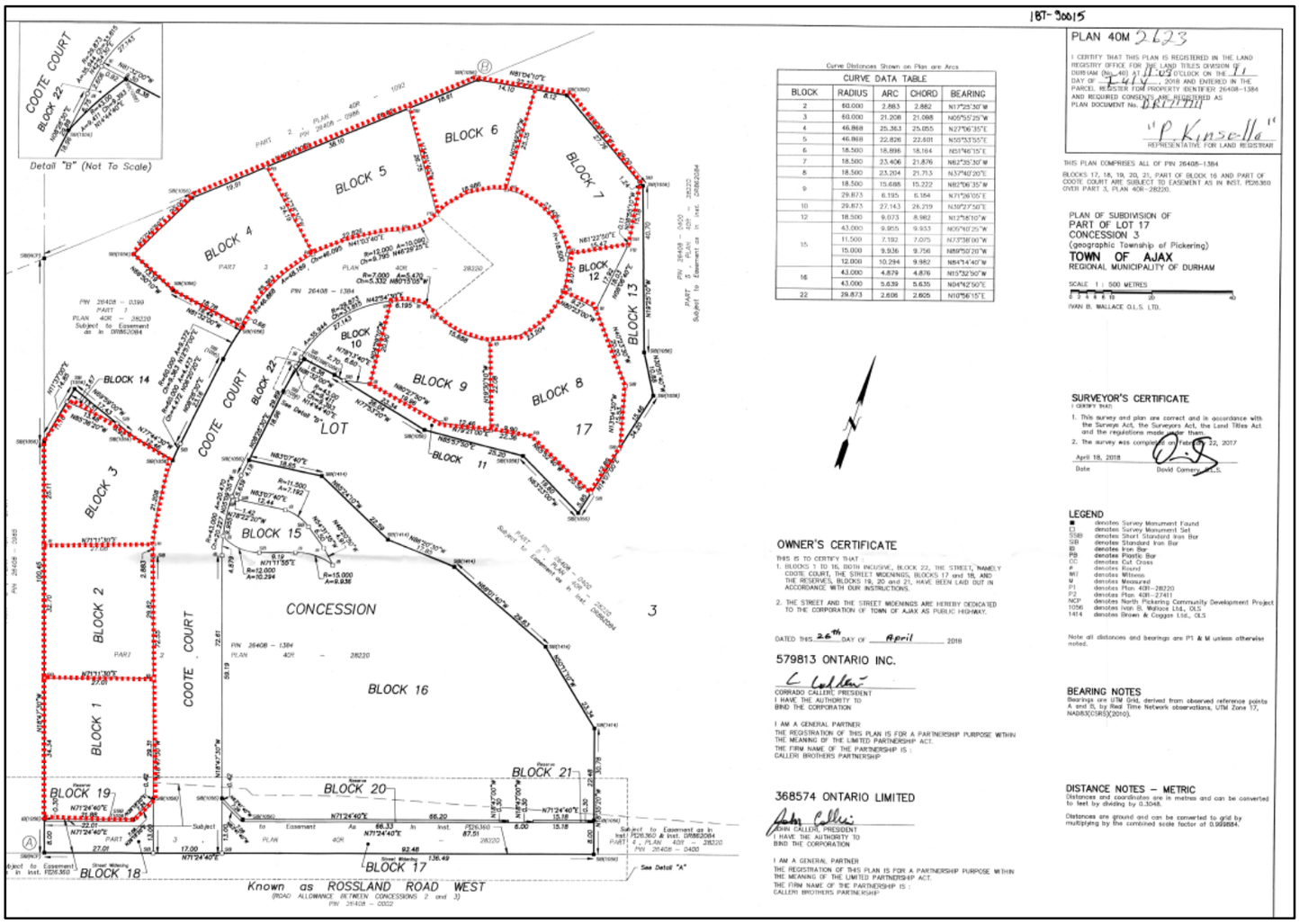
READ a third time and passed this twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

Schedule to By-law Number 77-2022

Blocks 1-9
Registered Plan 40M-2623



CURVE DATA TABLE				
BLOCK	RADIUS	ARC	CHORD	BEARING
2	60.000	2.883	2.882	N13°25'30"W
3	60.000	21.208	21.088	N05°50'25"W
4	46.868	25.363	25.055	N27°06'35"E
5	46.868	22.826	22.601	N55°53'55"E
6	18.500	18.896	18.164	N51°46'15"E
7	18.500	23.406	21.876	N62°35'30"W
8	18.500	23.204	21.713	N37°40'20"E
9	18.500	15.688	15.222	N82°06'35"W
	29.873	6.195	6.184	N71°26'05"E
10	29.873	27.143	26.219	N39°27'50"E
12	18.500	9.073	8.982	N12°58'10"W
15	43.000	9.955	9.933	N09°40'25"W
	11.500	7.192	7.075	N73°38'00"W
	15.000	9.936	9.756	N89°50'20"W
	12.000	10.294	9.982	N54°14'40"W
16	43.000	4.879	4.876	N15°32'50"W
	43.000	5.639	5.635	N04°42'50"E
22	29.873	2.606	2.605	N10°56'15"E

Curve Distances Shown on Plan are Arcs

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 80-2022

Being a By-law to adopt Amendment No. 71 to the Official Plan for the Town of Ajax (To require applicants to submit complete development applications for Site Plan Approval, update study and report requirements that can be required as part of a complete application, update pre-consultation requirements and delegate authority to a Committee of Council or staff to pass a Minor Zoning By-law Amendment.)

This Amendment applies to all lands located within the Town of Ajax.

WHEREAS the Regional Municipality of Durham Act and the Planning Act, as amended, authorize the Town of Ajax to pass by-laws for the adoption or repeal of the Official Plan and amendments thereto;

AND WHEREAS a Statutory Public Meeting was held on December 5, 2023 pursuant to the Planning Act to hear submissions respecting the proposed Amendment No. 71, to the Town of Ajax Official Plan;

NOW THEREFORE the Council of the Corporation of the Town of Ajax ENACTS as follows:

1. THAT Amendment No. 71, to the Official Plan for the Town of Ajax, included as Attachment 1 with this By-law, is hereby approved.

2. THAT this by-law shall come into force and take effect from and after the final passing hereof.

READ a first and second time this Twelfth day of December 2022.

READ a third time this Twelfth day of December 2022.

_____
Mayor

_____
Deputy Clerk

EXPLANATORY NOTE TO BY-LAW NUMBER 80-2022

This By-law implements Official Plan Amendment No. 71 (OPA22-A2) to the Town of Ajax Official Plan to extend the complete application requirements to Site Plan Approval, updates the list of supporting reports and studies that the Town may require to be submitted for a complete application, and updates pre-consultation requirements. This amendment also implements policy to delegate the approval of minor zoning by-law amendments to a Committee of Council or staff, specifically removal of a holding (H) provision, and establishing or extending a temporary use by-law.

Attachment '1'
Amendment No. 71 to the Town of Ajax Official Plan

1. Purpose

This Official Plan Amendment expands the complete application requirements to Site Plan Approval, requiring applicants to submit supporting information, drawings, reports, and studies; updates the list of reports and studies that may be required to be submitted in support of a complete application; establishes policies to allow the approval of minor Zoning By-law Amendments, specifically removal of a holding (H) provision, and passing or extending a temporary use by-law, to be delegated to a committee of Council or staff; and, updates pre-consultation requirements to align with the new Pre-Consultation By-law.

2. Location

This amendment applies to all lands within the Town of Ajax.

3. Basis

The *Planning Act*, as amended by *Bill 13: Supporting People and Businesses Act, 2021*, enables Council to pass a by-law to delegate the authority to pass by-laws under section 34 of the Planning Act (Zoning By-laws) that are of a minor nature, including by-laws to remove a holding (H) provision or establish or extend a temporary use, to a committee of Council, or an individual who is an officer, employee or agent of the municipality.

The Planning Act, as amended by *Bill 109: More Homes for Everyone Act, 2022,* established that a municipality may require information to be submitted in support of a site plan application, and that the municipality shall notify the applicant if the application is complete. The *Planning Act* also identifies that the municipality may require other information or materials it deems necessary for the review of the application, if the Official Plan contains provisions relating to the materials.

Ontario Regulations 543/06 and 545/06 identify prescribed information to be submitted in support of Official Plan and Zoning By-law Amendments respectively and identify that a prescribed strategy for consulting with the public with respect to an application is to be submitted.

4. Actual Amendment

This Amendment sets out a series of changes to the Text of the Town of Ajax Official Plan. New text is underlined and deleted text is shown with a ~~strikethrough~~.

That the Town of Ajax Official Plan is hereby amended as follows:

a) That the introductory paragraph in section 5.0 (DESCRIPTIONS OF STUDIES AND REPORTS THAT MAY BE REQUIRED FOR COMPLETE APPLICATIONS) be amended to read as follows:

> "As outlined in Section 7.1.15 of this Plan, the Planning Act permits Council to require an applicant to pre-consult with the Town prior to submitting an application, and to require an applicant to provide, at the time of the application submission, any information determined as necessary to properly assess the application. General descriptions for studies and reports that may be required of an applicant are outlined below. The ~~scope of the following~~ required studies and reports shall be determined by the Town, in consultation with any other government body, public authority and/or external agency, and is dependent on the nature of the proposal. Prior to the preparation of any of these studies and reports, applicants shall prepare terms of reference, in accordance with any Town guidelines and standards, and receive approval on the terms of reference from the Town, and/or any other government body, public authority and/or external agency as deemed necessary by the Town."

b) That section 5.0 (DESCRIPTIONS OF STUDIES AND REPORTS THAT MAY BE REQUIRED FOR COMPLETE APPLICATIONS) be amended by adding the following new subsections after subsection a) Planning Rationale Report:

c) **"Land Use Compatibility Report**
The purpose of a Land Use Compatibility Report is to evaluate any existing or potential land use compatibility issues between proposed or existing sensitive land uses, including residential uses, and any existing or planned employment uses within Employment Areas. The report shall examine reciprocal impacts of the sensitive land uses and employment uses on each other and identify any required

mitigation measures, including at-source, at-receptor, or other mitigation techniques, if required.

A Land Use Compatibility Report will be required for development or site alteration of a sensitive land use that is adjacent to, or within an area of influence as determined by the Town, of an Employment Area; and, for development or site alteration of an employment use within an Employment Area that is adjacent to, or within an area of influence as determined by the Town, of a sensitive land use.

d) **Development Compatibility Report**
A Development Compatibility Report may be required for *development* within the Downtown Regional Centre in accordance with Section 3.2.5 and *development* with the Village Centre in accordance with Section 3.2.3.10 g).

A Development Compatibility Report is separate and distinct from a Land Use Compatibility Report, although may contain similar components. Impacts to be assessed may include: shadow, privacy, noise, vibration, and any other matters considered appropriate by the Town.

e) **Public Consultation Strategy Report**
The purpose of a Public Consultation Strategy Report is to provide an overview of consultation activities planned or undertaken by the applicant and to provide a summary of the outcome of those activities. This report is required for all Official Plan Amendments, Zoning By-law Amendments and Draft Plans of Subdivision. A Public Consultation Strategy Report shall, at a minimum, identify the audience and scope of consultation, detail the consultation methods that are planned or have been undertaken, and summarize the results of the consultation and measures incorporated into the proposal as a result of consultation.

f) **Ajax Green Standard Checklist and Energy Modelling Report**
The purpose of the Ajax Green Standard checklist is to measure a developments performance against sustainability measures and guidelines identified in the Ajax Green Standard. The Ajax Green Standard Checklist is required for Site Plan and Draft Plan of Subdivision applications.

The purpose of an Energy Modelling Report is to measure the energy performance of a building(s) exterior design and identify appropriate energy conservation measures. An Energy Modelling Report is required for Site Plan and Draft Plan of Subdivision applications and is to be submitted in support of the Ajax Green Standard."

c) That subsections 5.0 b) to d) be renumbered as f) to h)

d) That subsection 5.0 d), now renumbered subsection 5.0 h) be amended by adding the word "Implementation" after "Management" to read "Traffic Management Implementation Plan"

e) That section 5.0 be amended by adding the following new subsection:

i) **"Cultural Heritage Evaluation Report**
A Cultural Heritage Evaluation Report is intended to provide background information and an independent evaluation of a property that is not designated under the Ontario Heritage Act but is suspected of being a *cultural heritage resource*. Cultural Heritage Evaluation Reports are required as part of any development application involving a suspected *cultural heritage resource*, as the findings of the report will influence how future *development* can proceed.

A Cultural Heritage Evaluation Report may be a standalone report or incorporated into a Heritage Impact Statement."

f) That subsection 5.0 e) Heritage Impact Statement be renumbered as j)

g) That section 5.0 be amended by adding the following new subsection:

k) "**Heritage Conservation Plan**
A Heritage Conservation Plan is intended to provide direction and strategies for the ongoing conservation and management of a *cultural heritage resource*. Heritage Conservation Plans are typically required for *cultural heritage resources* that are undergoing significant *development or site alteration*. The requirement to complete a Heritage Conservation Plan is often cited as a recommendation in a Heritage Impact

Statement where impacts to the property have been identified. A Heritage Conservation Plan must clearly identify all work proposed for a *cultural heritage resource* that involves, or has the potential to impact, any of its *heritage attributes*."

h) That subsections 5.0 f) to n) be renumbered as l) to t)

i) That section 5.0 be amended by adding the following new subsections:

u) **"Waste Management Report**
The purpose of a Waste Management Report is to evaluate the type and amount of waste generated by a development, and to establish how waste, recycling, and organics will be stored, managed, sorted, and collected on-site. It is to also include any waste diversion methods to be utilized. It may include vehicle maneuvers, and demonstrate compliance with technical requirements established by legislation, or other Regional or external agency policy or standards.

v) **Construction Management Plan and/or Report**
The purpose of a Construction Management Report is to identify potential impacts resulting from construction activities, establish monitoring programs, outline required operational, mitigation, and/or safety measures. Impacts and measures that may be required to be evaluated include construction vibration, noise, dust, sediment and erosion, temporary stormwater management, site staging, signage, parking, construction waste and demolition, pedestrian and traffic management."

j) That subsections 5.0 o) to gg) be renumbered as w) to oo)

k) That subsection 5.0 u), now renumbered as 5.0 cc), be amended by adding "/ Arborist Report" after "Plan" to read "Tree Inventory and Preservation Plan / Arborist Report"

l) That subsection 5.0 cc), now renumbered as 5.0 kk) be amended by adding "Pedestrian Level" before "Wind Study" to read "Pedestrian Level Wind Study".

m) That section 7.1.7 c) be deleted in its entirety.

n) That section 7.1.15 b) be amended to read as follows:

b) "Pre-consultation meetings shall be held with the Town, the applicant and any other government body, public authority and/or external agency as deemed appropriate by the Town. The Town may also require proponents to pre-consult with Provincial Ministries, the Region and/or other agencies, such as Conservation Authorities, to address the impacts of ~~Provincial legislation, such as the Endangered Species Act, and regulations on~~ the proposed *development*, and obtain clearance prior to submission of a Complete Application, if needed."

o) That section 7.1.15 c) be amended to read as follows:

c) "Any application for an Official Plan Amendment, Zoning By-law Amendment, Draft Plan of Subdivision, Draft Plan of Condominium, Site Plan or Site Plan Amendment shall:

- comply with the statutory complete application submission requirements of the Planning Act;
- include a fully completed application form with all the submission requirements and supporting documentation identified in the Town's Pre-Consultation meeting minutes for the proposed development; and,
- include the prescribed application fee.

Any application for a Zoning By-law Amendment, Site Plan, Site Plan Amendment, or Draft Plan of Subdivision shall also submit a Zoning Compliance Certificate."

p) That section 7.1.15 d) be amended to read as follows:

d) "Any application for an Official Plan Amendment, Zoning By-law Amendment, Draft Plan of Subdivision, ~~or~~ Draft Plan of Condominium, Site Plan or Site Plan Amendment shall be deemed to be a complete application once all required studies, reports, drawings and information outlined in Sections c) above and i) below are prepared and provided by the applicant. Studies, reports and information outlined in Section i) below identified as necessary for the proper evaluation of a complete application will be determined by the Town, in consultation with the applicant and any other government body, public authority and/or external agency, as deemed necessary by the Town."

q) That section 7.1.15 f) be amended as follows:

f) “The scope, details and timing of required studies, reports, reports and information is dependent on the nature of the proposal, its relationship to *adjacent land* uses and the type of planning approval. The scope and timing of required studies, reports, reports and information shall be identified by the Town in consultation with the applicant and any other government body, public authority and/or external agency, as deemed necessary by the Town.”

r) That section 7.1.15 g) be amended as follows:

g) “Any required studies or reports listed in Section i) below and any additional studies shall be prepared in accordance with any terms of reference, standards and/or specifications applicable with the Town and the Region, and may, at the Town’s discretion, require a peer review by a qualified consultant retained by the Town at the applicant’s expense prior to deeming an application complete.”

s) That section 7.1.15 i) be amended to read as follows:

i) “The following studies, reports, drawings and information may be required, as determined by the Town in consultation with the applicant and any other government body, public authority and/or external agency as deemed necessary by the Town, to be submitted as part of a pre-consultation application and/or complete application for an Official Plan Amendment, Zoning By-law Amendment, Draft Plan of Subdivision, ~~and~~ Draft Plan of Condominium, Site Plan and Site Plan Amendment. As noted in subsection b) above, the Town may also require proponents to obtain clearance from Provincial Ministries, the Region and/or other agencies prior to submission of a Complete Application, if needed:

Planning:

1) Planning Rationale Report

2) Land Use Compatibility Report

3) Development Compatibility Report

4) Public Consultation Strategy Report

5) Ajax Green Standards Checklist and Energy Modelling Report

Transportation:

~~2~~6) Traffic Impact Study and/or Transit Impact Study

~~3~~7) Parking Utilization Study

~~4~~8) Traffic Management Plan

Heritage/Cultural:

9) Cultural Heritage Evaluation Report

~~5~~10) Heritage Impact Statement

11) Heritage Conservation Plan

~~6~~12) Archaeological Assessment

Engineering:

~~7~~13) Noise and Vibration Study

~~8~~14) Grading, Drainage and Stormwater Management Plan

~~9~~15) Hydrogeological Report and Servicing Options Report

~~10~~16) Functional Servicing Report

~~11~~17) Geotechnical Report

~~12~~18) Slope Stability Report

~~13~~19) Master Environmental Servicing Plan (MESP)

~~14~~20) Flood Plain Management Report

21) Waste Management Plan

22) Construction Management Plan

Environmental:

~~15~~23) Environmental Impact Study

~~16~~24) Reliance Letter, and Phase ~~1~~ One and ~~2~~ Two Environmental Site Assessment or Site Screening Questionnaire

~~17~~25) Statement of Conformity with Minimum Distance Separation (MDS) Formulae and/or Agricultural Assessment

~~18~~26) Air Quality Study

~~19~~27) Contamination Management Plan

Urban Design:

~~20~~28) Lighting/Photometric Plan

~~21~~29) Tree Inventory and Preservation Plan

~~22~~30) Urban Design Guidelines

~~23~~31) Sun/Shadow Study

~~24~~32) Master Block Plan

~~25~~33) Cross-Section Drawings/Profile

~~26~~34) View and Vista Renderings

~~27~~35) Park Facility Fit Plan

~~28~~36) Architectural Design Guidelines

~~29~~37) Pedestrian Level Wind Study

Economic:

~~30~~38) Rental Housing Conversion Study

~~31~~39) Retail Impact Study

~~32~~40) Market Impact Study

~~33~~41) Financial Impact Study"

t) That section 7.1.15 j) be amended by adding a new sentence after the first sentence that reads as follows:

"Prior to the preparation of any of these studies, reports, drawings and information, applicants shall prepare terms of reference, in accordance with any Town guidelines and standards, and receive approval on the terms of reference from the Town, and/or any other government body, public authority and/or external agency as deemed necessary by the Town."

u) That subsection 7.2.4 a) be amended by adding the phrase "and/or Zoning By-law" after "Official Plan".

v) That subsection 7.2.4 c) be amended to read as follows:

c) "The Town may eliminate notice to the public and a public meeting for a minor adjustment to the Official Plan or Zoning By-Law that does the following:

- changes the numbers of sections or the order of sections ~~in the Official Plan~~, but does not add or delete sections;
- consolidates previously approved ~~Official Plan~~ Amendments in a new document without altering any approved policies, or maps;
- corrects grammatical or typographical errors ~~in the Official Plan~~ which do not affect the intent or affect the policies or maps; ~~and,~~
- translates measurements to different units of measure or changes reference to legislation or changes to legislation where the legislation has changed~~.~~; and

In all other instances, notification to the residents of the Town of public meetings held by Council shall be given in accordance with the procedures of the Planning Act."

That new subsection 7.2.4 d) be added to read as follows:

d) "A public meeting will not be required for a by-law to approve or extend a temporary use, where authority has been delegated to staff, provided that notification is issued in accordance with the Planning Act and no written submissions objecting to the amendment were received within 20 days of such notice being given. If written comments objecting the to temporary use by-law are received during the 20-day comment period, then the application will be considered by Council."

w) That a new section 7.2.6 be added after section 7.2.5 that reads as follows:

"**7.2.6 Delegation of Authority**

a) Town of Ajax Council may, by by-law, delegate authority to pass a by-law under Section 34 of the *Planning Act*, that is minor in nature, to a committee of Council or an individual who is an officer or employee of the municipality.

b) Delegation of authority to pass a by-law that is minor in nature under Section 34 of the *Planning Act* will be limited to:

i. Removal of a holding (H) provision;

ii. A by-law to authorize the temporary use of land, building or structure, or the extension of an existing temporary use by-law, in accordance with the policies of Section 7.1.11, for a period not exceeding three (3) years; and

iii. Minor housekeeping or technical amendments as outlined in subsection 7.2.4 c).

c) The delegation of authority authorized in this section may be subject to conditions of Council.

d) Where delegated authority has been granted to pass a by-law to remove a holding (H) provision, or a temporary use by-law, notification shall be given in accordance with the Planning Act and/or this Plan.

e) Town of Ajax Council may withdraw delegated authority, by by-law, for one more by-laws to remove a holding (H) provision, or to pass or extend a temporary use by-law, prior to a decision being made by the committee of Council or individual that was granted delegated authority."

5. Implementation

The provisions set forth in the Town of Ajax Official Plan regarding the implementation of the Plan shall apply to this Amendment.

6. Interpretation

The provisions set forth in the Town of Ajax Official Plan that are not in conflict with this Amendment shall continue to apply.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 81-2022

Being a By-law to delegate various powers and duties of Council under the *Planning Act*

WHEREAS in accordance with Section 270 of the *Municipal Act*, 2001, S.O. 2001, Chapter 25, The Council of the Corporation of the Town of Ajax has established a policy to delegate its powers and duties to persons or bodies, subject to restrictions set out in the *Act*;

AND WHEREAS delegated authority assists in the overall management of the municipality and improves the timeliness of work in an environment where activity levels continually increase;

AND WHEREAS By-law 17-2017 establishes a "Delegation of Powers & Duties Policy" for the Town of Ajax whereby Council may, by By-law, delegate a legislative or administrative power, authority, or responsibility, subject to certain provisions, conditions and limitations;

AND WHEREAS Section 39.2 of the *Planning Act*, as amended, allows Council to delegate by By-law the authority to pass By-laws under Section 34 of the *Planning Act* that are of a minor nature to a Committee of Council or an individual who is an officer, employee or agent of the municipality (Director of Planning and Development Services or their designate);

AND WHEREAS Official Plan Amendment No. 71 was adopted by Council on December 12, 2022, to add Section 7.2.6 of the Official Plan that specifies the types of By-laws that the Town considers appropriate to delegate approval authority to a Committee of Council or an individual who is an officer, employee or agent of the municipality (Director of Planning and Development Services or their designate);

AND WHEREAS The Council of the Corporation of the Town of Ajax deems it expedient to delegate its powers and duties with regard to various minor *Planning Act* applications;

NOW THEREFORE The Council of The Corporation of the Town of Ajax hereby enacts as follows:

1. That the Director of Planning and Development Services or their designate is hereby delegated authority to pass a minor Zoning By-law Amendment under Section 34 of the *Planning Act* to:

    i. Remove a holding (H) provision;

    ii. Authorize the temporary use of land, building or structure, or the extension of an existing temporary use By-law, in accordance with the policies of Section 7.1.11 of the Official Plan for a period not exceeding three (3) years; and

    iii. Minor housekeeping or technical amendments for the purposes of updating language or other changes to assist in interpreting the Zoning By-law.

2. Council may, at any time prior to the Director of Planning and Development Services or their designate, making a decision on a minor Zoning By-law Amendment referenced in Section 1 of this By-law, withdraw delegation of authority by By-law.

3. Council may, at any time prior to the Director of Planning and Development Services or their designate, making a decision on a minor Zoning By-law Amendment referenced in Section 1 of this By-law, add conditions by By-law.

4. By-law 11-2014 (Site Plan Control), as amended by By-law 74-2017 is hereby further amended by striking out part of section 8 and substituting the following:

    "8. Council of The Corporation of the Town of Ajax hereby delegates its approval authority for site plan applications to the Director of Planning and Development Services or their designate~~, subject to the following limitations:~~

        a) ~~Any member of Council retains the right to withdraw the delegated~~

~~approval authority on any site plan application~~."

5. This By-law, as amended, shall come into force and effect as of the date that Official Plan Amendment No. 71 is in force and effect.

READ a first and second time this Twelfth day of December 2022.

READ a third time and passed this Twelfth day of December 2022.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX
BY-LAW NUMBER 82-2022

A By-law to require development applicants to consult with the Town of Ajax prior to submission of certain planning applications titled “Pre-consultation By-law”.

WHEREAS authority is granted under sections 22(3.1), 34(10.0.1), 41(3.1) and 51(16.1) of the Planning Act, R.S.O. 1990, c. P. 13, as amended, for Council to pass this By-law requiring applicants to consult with the Town of Ajax prior to the submission of an Official Plan Amendment, Zoning By-law Amendment, Draft Plan of Subdivision, Draft Plan of Condominium, Site Plan, and/or Site Plan Amendment application.

AND WHEREAS, the Town of Ajax has a long-established pre-consultation process for all types of planning applications intended to benefit applicants in determining and fulfilling submission requirements.

AND WHEREAS, pre-consultation is an important and essential component of the application review and approvals process.

AND WHEREAS, the Town of Ajax encourages applicants to consult with the Town of Ajax prior to the submission of Consent and Minor Variance Applications.

AND WHEREAS, The Town of Ajax discerns that a two-stage pre-consultation process will expedite the review of complete development applications.

NOW THEREFORE, the Council of the Corporation of the Town of Ajax enacts as follows:

Short Title

1. This By-law may be cited as the Pre-Consultation By-law.

Repeal of Previous By-law

2. By-law 51-2019 is hereby repealed.

Definitions

3. In this By-law,

   (a) “Applicant” means any person who intends to submit a pre-consultation or planning application.

   (b) “Director” means Director of Planning & Development Services.

   (c) “Town” means The Corporation of the Town of Ajax.

Requirement for Pre-Consultation

4. Every Applicant is required to pre-consult with the Town prior to formal submission of any of the following planning applications:

   (a) Official Plan Amendment

   (b) Zoning By-law Amendment

   (c) Draft Plan of Subdivision

   (d) Draft Plan of Condominium

   (e) Site Plan

   (f) Site Plan Amendment

   (g) Telecommunication Facilities

5. An Applicant is required to pre-consult separately for each application listed in Section 4 of this By-law except where a proposal:

(a) requires an Official Plan Amendment and Zoning By-law Amendment, in which case both application types are required to proceed through the Pre-Consultation process concurrently; or

(b) requires a Zoning By-law Amendment and Draft Plan of Subdivision, in which case both applications may proceed through the Pre-Consultation process concurrently.

6. Where a Site Plan, Site Plan Amendment or Draft Plan of Subdivision requires an Official Plan Amendment and/or a Zoning By-law Amendment, a Phase 1 or Phase 2 Pre-Consultation will not be processed until the Official Plan Amendment and/or a Zoning By-law Amendment are in effect.

7. Where a Site Plan is for a block within a Draft Plan of Subdivision, a Phase 1 or Phase 2 Pre-Consultation for the Site Plan will not be processed until the Draft Plan of Subdivision is draft approved.

8. An Applicant for a Minor Variance or Consent (Land Division) is not subject to the Pre-Consultation requirements of this By-law. These Applicants are encouraged to consult with the Town prior to formally submitting their application.

Pre-Consultation Process: Phase 1 and Phase 2

9. Pre-Consultation is composed of two consecutive and mandatory application and review phases:

(a) Pre-Consultation Phase 1, where the submitted materials, as required in the Pre-Consultation: Phase 1 Preliminary Consultation application form, are reviewed for alignment with governing policies, by-laws, and technical standards, Applicants shall be provided with:

(i) General comments, identification of issues, and recommendations for revisions to the proposal;

(ii) A list of requirements for the submission of a Pre-Consultation: Phase 2 Final Consultation application; and,

(iii) Terms of Reference and/or Guidelines for any reports, studies or materials required for Pre-Consultation Phase 2. Applicants shall prepare and obtain approval of Terms of Reference for all reports and studies, in consultation with the Town and any other applicable external agency, prior to undertaking the report or study and proceeding to Phase 2. Studies requiring external peer review may also be identified.

(b) Pre-Consultation Phase 2, where the submitted materials, as required in the Pre-Consultation: Phase 2 Final Consultation application form, are reviewed for completeness, alignment with governing policies and by-laws, and compliance to Town technical standards, Applicants shall be provided with:

(i) Detailed comments on the submitted reports, studies, drawings and materials;

(ii) Comments and requirements for the submission of a complete planning application; and,

(iii) A list of clearance authorization, which may include finalization of the limits of development, from applicable utilities, ministries and/or agencies required prior to the submission of a complete planning application.

Submission of a Pre-Consultation Phase 1 and Phase 2 Application

10. A Pre-Consultation Phase 1 or Phase 2 application shall be submitted digitally, in accordance with the method(s) and format(s) determined by the Director or their designate.

11. The Director or their designate may request hard copies of pre-consultation materials:

(a) Where a request for pre-consultation is circulated to an external agency and the circulated agency requests hard copy materials; or

(b) Where the Director or their designate deems it appropriate to request hard copy materials.

12. A Pre-Consultation Phase 1 or Phase 2 application shall include payment of the fee as specified in the Town of Ajax Fees and Charges By-law, as amended.

13. A Pre-Consultation Phase 1 application shall include all the information identified on the application form and the Phase 1 submission materials, as determined by the Director or their designate, listed in Schedule A to this By-law.

14. A Pre-Consultation Phase 2 application shall include all the information identified on the application form and the applicable Phase 2 submission materials based on the proposal and/or application type, as determined by the Director or their designate, listed in Schedule A to this By-law. A Pre-Consultation Phase 2 application shall also include any additional material and information identified in the Pre-Consultation Phase 1 minutes.

15. Studies and reports submitted with a Pre-Consultation Phase 2 application may, at the discretion of the Director or their designate, require technical peer review services. Payment of all costs associated with the peer review of a study or report is the Applicant's responsibility.

16. The Town may refuse to process a Pre-Consultation Phase 1 or Phase 2 application if the application fee is not received and/or if the submission materials, as determined by the Director or their designate, listed in Schedule A to this By-law are not submitted.

Exemption from Pre-Consultation Phase 1

17. Applicants are exempt from Pre-Consultation Phase 1, where the Applicant intends to submit an application for Site Plan Amendment – Minor A, Site Plan Amendment – Minor B, or Telecommunication Facility.

18. The Director or their designate may, at their discretion, exempt Applicants from Pre-Consultation Phase 1, where the Applicant intends to submit an application for a Site Plan Amendment – Minor C.

19. For further clarity, an Applicant intending to submit any type of Site Plan Amendment application is required to undertake Pre-Consultation Phase 2.

Optional Application Review

20. An Applicant may request an Optional Application Review at any time after the completion of Pre-Consultation Phase 1 and before the formal submission of a complete planning application listed in Section 4 of this By-law.

21. If an applicant completes an Optional Application Review: Comprehensive application and fee, a partial fee credit may be applied to the complete application fee, as specified in the Town of Ajax Fees and Charges By-law.

Pre-Consultation Prior This By-law

22. Applicants who have completed Pre-Consultation prior to the coming into force of this By-law that have not submitted a complete planning application are required to re-apply for Pre-Consultation as outlined in this By-law.

23. Where an Applicant is required to re-apply for Pre-Consultation as outlined in this By-law, the Director or their designate, at their discretion, may:

(a) Waive the Pre-Consultation Phase 1 application fee; or

(b) Waive the requirement to apply for Pre-Consultation Phase 1 and permit the Applicant to apply directly for Pre-Consultation Phase 2, where the Applicant has initiated preparation of a complete planning application but has not substantially completed drawings, supporting studies and reports, and other materials and information outlined in their original Pre-Consultation comments and/or meeting minutes; or

(c) Waive the requirement to apply for Pre-Consultation Phase 2, where the Applicant has:

(i) Substantially addressed the comments of their original Pre-Consultation comments and/or meeting minutes, as determined by the Director or their designate;

(ii) Substantially completed the required reports, studies, drawings, and information as outlined in their original Pre-Consultation comments and/or meeting minutes, as determined by the Director or their designate; and,

(iii) Has agreed to participate in an Optional Application Review.

Coming Into Force

24. This By-law comes into force on the day it is passed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
Clerk

SCHEDULE A TO BY-LAW 82-2022

Pre-Consultation Phase 1 and Phase 2 Submission Materials	Simple OP	Complex OPA	Temp Use ZBA	Simple ZBA	Complex ZBA	Subdivision	Condominium	Site Plan	SPA Minor A	SPA Minor B	SPA Minor C	SPA Minor D	SPA Major
DRAWINGS													
Concept Plan • All buildings, drive aisles, parking, loading, queuing • Setbacks, area, height, density, site considerations • Lot/blocks, adjacent lands, street pattern, open space, landscape buffers, stormwater ponds	1	1	1	1	1	1	1	1	1	1	1	1	1
Elevations • Heights, setbacks, separations, angular planes	1	1	1	1	1	1	1	1	1	1	1	1	1
Zoning Compliance / Site Statistics Table • to be included in concept plan / full drawing set	1	1	1	1	1	1	1	1	1	1	1	1	1
Full Drawing Set • Architectural, Engineering, Transportation, and Landscape drawings as determined by Pre-Consultation Phase 1 comments	2	2	2	2	2	2	2	2	2	2	2	2	2
PLANNING													
Planning Rationale Report	1	1	1	1	1								
Land Use Compatibility Report	2	2		2	2			2				2	2
Development Compatibility Report			2	2	2	2		2				2	2
Public Consultation Strategy Report	2	2		2	2								
Ajax Green Standard Checklist and Energy Modelling Report						2		2					2
TRANSPORTATION													
Traffic Impact Study and/or Transit Impact Study	2	2	2	2	2	2		2			2	2	2
Parking Utilization Study	2	2	2	2	2			2			2	2	2
Traffic Management Implementation Plan						2		2				2	2
HERITAGE/CULTURAL													
Cultural Heritage Evaluation Report	1	1		1	1			1		1	1	1	1
Heritage Impact Statement	2	2		2	2	2		2		2	2	2	2
Heritage Conservation Plan	2	2		2	2	2		2		2	2	2	2
Archaeological Assessment	2	2		2	2	2		2				2	2
ENGINEERING													
Noise and Vibration Study	2	2		2	2	2		2			2	2	2

Pre-Consultation Phase 1 and Phase 2 Submission Materials	Simple OP	Complex OPA	Temp Use ZBA	Simple ZBA	Complex ZBA	Subdivision	Condominium	Site Plan	SPA Minor A	SPA Minor B	SPA Minor C	SPA Minor D	SPA Major
Grading, Drainage and Stormwater Management Plan / Report	2	2		2	2	2		2	2		2	2	2
Functional Servicing Report	2	2		2	2	2		2	2		2	2	2
Hydrogeological Report and Servicing Options Report	2	2		2	2	2		2				2	2
Civil Drawings (Site Servicing, Site Grading, SEC, Details, etc.)								2	2		2	2	2
Geotechnical Report	2	2		2	2	2		2				2	2
Slope Stability Report	2	2		2	2	2		2			2	2	2
Master Environmental Servicing Plan	2	2		2	2	2							2
Flood Plain Management Report	2	2		2	2	2		2					2
Waste Management Report						2		2			2	2	2
Construction Management Plan and/or Report						2		2			2	2	2
ENVIRONMENTAL													
Environmental Impact Study	2	2		2	2	2		2			2	2	2
Phase One Environmental Site Assessment and Reliance Letter or Site Screening Questionnaire	1	1	1	1	1	1		1			1	1	1
Phase Two Environmental Site Assessment and Reliance Letter	2	2	2	2	2	2		2			2	2	2
Statement of Conformity with Minimum Distance Separation (MDS) Formulae and/or Agricultural (Impact) Assessment	2	2				2		2					
Air Quality Study	2	2		2	2	2		2				2	2
Contamination Management Plan	2	2	2	2	2			2				2	2
URBAN DESIGN													
Lighting/Photometric Plan						2		2			2	2	2
Tree Inventory and Preservation Plan / Arborist Report	2	2		2	2	2		2			2	2	2
Urban Design Guidelines	2	2		2	2	2		2				2	2
Sun/Shadow Study	2	2		2	2			2				2	2
Master Block Plan		2			2	2		2				2	2
Cross-Section Drawings/Profiles	2	2		2	2			2				2	2
View and Vista Renderings	2	2		2	2			2				2	2
Park Facility Fit Plan						2		2					
Architectural Design Guidelines	2	2		2	2	2		2				2	2
Pedestrian Level Wind Study	2	2		2	2			2				2	2

Pre-Consultation Phase 1 and Phase 2 Submission Materials	Simple OP	Complex OPA	Temp Use ZBA	Simple ZBA	Complex ZBA	Subdivision	Condominium	Site Plan	SPA Minor A	SPA Minor B	SPA Minor C	SPA Minor D	SPA Major
ECONOMIC													
Rental Housing Conversion Study							1	2					2
Retail Impact Study								2				2	2
Market Impact Study	2	2		2	2								
Financial Impact Study	2	2		2	2								

Note: The Town will confirm which of the above studies, reports, plans or drawings are required for each pre-consultation phase, and will be determined by the Town based on the application type, proposal, location, site attributes, and whether a technical peer review is required.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 83-2022

Being a By-law to amend the 2023 Planning Act User Fees and Charges established in the Town of Ajax Fees and Charges By-law No. 54-2022.

WHEREAS on September 26, 2022, the Council of The Corporation of the Town of Ajax (the "Town") passed By-law 54-2022 to establish the required fees for information, services, activities and use of Town property;

AND WHEREAS by-laws imposing such fees and charges are authorized by section 391 of the *Municipal Act 2001,* S.O. 2001, c 25, as amended;

AND WHEREAS by-laws establishing a tariff of fees for the processing of applications made in respect of planning matters are authorized by Section 69(1) of the *Planning Act,* R.S.O.:

NOW THEREFORE the Council of The Corporation of the Town of Ajax enacts as follows:

1. That By-law 54-2022 is hereby amended by replacing the '2023 Planning Act User Fees' Schedule with Schedule 'B' Planning Act User Fees, appended to this by-law.

2. This By-law, as amended, shall come into force and effect on January 1, 2023, and all fees shall take effect at that time.

READ a first and second time this 12th day of December 2022.

READ a third time and passed this 12th day of December 2022.

_____
Mayor

_____
D-Clerk

Schedule ‘A’

2023 Planning Act User Fee and Charges

Fee/Charge	2023 Rate
PLANNING SECTION	
OFFICIAL PLAN	
Simple Local Official Plan Amendment Application	$20,615.50
Complex Local Official Plan Amendment Application	$47,642.50
Regional Official Plan Amendment Review Fee	$6,555.00
ZONING BY-LAW	
Zoning By-law Amendment Application: Simple	$12,192.70
Zoning By-law Amendment Application: Complex	$26,435.50
Removal of a Holding (H) Provision	$6,900.00
Temporary Use By-law Application	$12,192.70
Temporary Use By-law Extension	$2,766.20
Zoning Compliance Review	$1,400.00
NOTE: If an “*Optional Application Review: Comprehensive”* is completed for any Zoning By-law Amendment or combined Official Plan and Zoning By-law Amendment application, 75% of the Optional Application Review Fee shall be deducted from the requisite Zoning By-law Amendment or combined Zoning By-law Amendment and Official Plan Amendment Fee to a maximum of 25% of the requisite application fee. *NOTE: Complex Applications (OPA and/or ZBA) refers to: The introduction of a new use that has not been contemplated by the Town's Official and/or Zoning By-law, and/or is tied to an application for a Regional Official Plan Amendment, and/or is an application(s) deemed to propose a significant change to the Town's Official Plan, subject to the Town's discretion. The related fee will be discussed with the applicant through the Town's Pre-consultation Process.*	
SUBDIVISIONS AND CONDOMINIUMS	
Subdivision Application - Residential - Base Fee - (plus applicable unit fee below)	$18,638.10
Residential - fee per unit (first 200)	$437.20
Residential - fee per unit (over 200)	$218.70
Subdivision Application - Non-residential - Base fee	$18,057.20
Subdivision Application: Development Block (associated with a condominium/ or required for a site plan)	$18,638.10
Revisions to a Subdivision or Condominium Application (i.e. not draft approved, but requiring full recirculation)	$9,087.30
Revisions to a Draft Approved Plan of Subdivision or Condominium (i.e. red-line revision) - Major (where substantial changes are proposed and recirculation is required)	$9,316.40
Revisions to a Draft Approved Plan of Subdivision or Condominium (i.e. red-line revision) - Minor (change to condition and/or minor plan change)	$1,865.50
Request to Extend Draft Approval	$1,380.50
Final Approval, Subdivision Clearance Fee	$2,792.90
Condominium Application	$12,285.10
Final Approval, Condominium Clearance Fee	$2,281.10
Lift Part-Lot Control - base fee (total max. base + unit fees = $6,365)	$2,766.20
Lift Part-Lot Control - per unit fee	$291.30
Extension of Part Lot Control Exemption	$2,441.10
NOTE: Reactivation of Official Plan Amendment, Zoning By-law Amendment, Draft Plan of Subdivision or Condominium, Site Plan or Site Plan Amendment submitted prior to January 1, 2023: Where permission has been granted in accordance with the Town's Dormant File Policy 147 to reactivate a file that has not been closed, the applicant is required to pay current fees minus the fees paid to date for all applications.	
SITE PLAN APPROVAL	
Site Plan Approval Base Fee (plus per unit fee and/or per non-residential area of GFA as follows)	$9,263.10
Residential per unit (first 25 units)	$874.20

Schedule ‘A’

	Residential per unit (26-100 units)	$677.00
	Residential per unit (101-200 units)	$330.60
	Residential per unit (over 200 units)	$176.00
	Non-residential per 100m2 of gfa	$96.00
Site Plan Amendment (SPA)		
	Minor A: Minor site works including, but not limited to culvert modifications and fencing	$533.00
	Minor B: Updates/alterations to building facades and portable classroom additions	$1,130.00
	Minor C: Minor building additions (as determined by the Town), patios, accessory buildings / structures, outdoor play areas, and/or parking lot modifications	$2,563.70
	Minor D: Where the expansion to an existing building is less than 50% of the total gross floor area of the existing building or less than 5,000 m^2 (whichever is less), or an expansion to a parking area	$8,996.70
	Major: Where an additional building is proposed or an expansion to the building is greater than 50% of the total gross floor area of the existing building, or greater than 5,000m2 (whichever is less)	Site Plan Application Fee applies
Minor Site Plan: Conversion of a residential dwelling to a non-residential building		$4,077.30
Minor Site Plan: Model Homes and Sales Trailers		$3,496.40
Minor Site Plan: Pickering Beach		$1,279.20
Site Plan and Major Site Plan Amendment: Condition Clearance Fee		$6,800.00
Minor Site Plan and Minor Site Plan Amendment: Condition Clearance Fee		$2,400.00
Telecommunication Facility		$9,593.60
Note: If an “*Optional Application Review: Comprehensive”* is completed as part of any Site Plan or Site Plan Amendment Application, 75% of the Optional Application Review Fee shall be deducted from the requisite Site Plan or Site Plan Amendment Fee to a maximum of 25% of the requisite application fee.		
AGREEMENTS		
Preparation of a Subdivision, Condominium, Site Plan, Development Agreements, or Amending Agreements*		The Applicant is required to reimburse the Town for its legal costs associated with the preparation and registration of an agreement
MINOR VARIANCE AND LAND DIVISION		
Minor Variance Application		
	Accessory buildings, structures and platforms, driveway widenings, below grade entrances:	$692.90
	Residential Minor (single or semi-detached dwellings, duplex, triplex, or townhouse dwellings) - Single Variance	$852.80
	Residential Minor (single or semi-detached dwellings, duplex, triplex, or townhouse dwellings) - Multiple Variances	$1,066.00
	Residential/Mixed-Use Major (condominium, apartment, or mixed-use buildings) - Single Variance	$1,812.20
	Residential/Mixed Use Major (condominium, apartment, or mixed-use buildings) - Multiple Variances (up to 5 variance requests)	$2,131.90
	Residential/Mixed Use Major (condominium, apartment, or mixed-use buildings) - Multiple Variances (each additional variance request beyond 5)	$319.80
	Non-Residential - Single Variance	$2,131.90
	Non-Residential: Multiple Variances (up to 5variance requests)	$4,050.60

Schedule ‘A’

	Non-Residential - Multiple Variances (each additional variance request beyond 5)	$319.80
	Enlargement, expansion or, conversion of a legal non-conforming use/ uses defined in general terms	$2,712.90
	Tabling Fee - (Collected if the applicant requests that the application be tabled, or if the applicant has not met the legislated requirements, or if the applicant is not present at the meeting and the Committee decides to table the application)	$346.50
	Special Hearing - (Plus applicable application fee)	$4,381.20
	Authorization to apply for minor variance under Section 45(1.4) of the Planning Act	$1,599.00
	Post-development Minor Variance Application	Double the applicable application fee
Land Division Administration Fee - Processing Fee		$2,681.00
Land Division Administration Fee - Development Agreement (where applicable)		$213.20

NOTE: *Applicants are encouraged to Pre-consult with Staff, prior to application submission. Exception: if a minor variance is requested as a result of going through a site plan approval process.*

NOTE: 50% Discount from the requisite fee when applying for a minor variance application associated with the installation of an accessibility device, ramp or driveway widening for the purposes of providing barrier free access to single/semi-detached/link or townhouse dwelling units.

Pre-consultation and Optional Review	
Pre-consultation: Minor Variance and Land Division Applications (Optional)	$650.00
Pre-consultation: Phase 1 Preliminary Consultation (All applications excluding Site Plan Amendment Minor A and B, and Telecommunication Facility)	$2,800.00
Pre-consultation: Phase 2 Final Consultation (Minor Site Plans, Site Plan Amendment Minor A, B, and C, and Telecommunication Facility)	$650.00
Pre-consultation: Phase 2 Final Consultation (All Other Applications)	$5,000.00
Optional Application Review - Minor	$2,800.00
Optional Application Review - Comprehensive	$7,500.00
Technical Peer Review	Applicant to reimburse the Town for the full cost of completing the review

NOTE: Applications for Site Plan Approval, Site Plan Amendment D and Major, Zoning By-law Amendment (Simple and Complex), Official Plan Amendment (Simple and Complex), and Draft Plans of Subdivision are required to complete the two (2) pre-consultation fee. Fees may be paid separately at time of application.

NOTE: For an Optional Application Review – Minor, the Town will review up to 3 detailed technical reports/studies, or 5 individual drawings, provide comments and/or redlines, and host one meeting between the Town and applicant.

NOTE: For an Optional Application Review – Comprehensive, the Town will review all materials required for an application, provide comments and/or redlines, and host one meeting between the Town and applicant.

OTHER	
Property Information Request	
Zoning Information	$128.00
Building Information	$58.80
By-law Information	$58.80
Ontario Heritage Act	$58.80
Legal Inquiries	$117.40
Release of Agreements	$266.50

Schedule ‘A’

Sign By-law		
	Amendment	$2,766.20
	Variance	$1,385.80
Tree Cutting Permit		$932.80
Tree Cutting Permit - Appeal to Town of Ajax General Government Committee		$783.60
Additional Public Meeting - Where more than one public open house, or Community Affairs and Planning Committee meeting is required (per additional open house or meeting)		$1,083.40
Public Notification - Applicant Organized Public Meeting (Town to mail a notice prepared by an applicant		$200 plus applicable mailing and printing costs
Peer Reviews and Architectural Control Review*		The applicant shall be responsible for the Town’s full costs of undertaking the peer review or architectural control review.
Ontario Land Tribunal (OLT) Appeals - Committee of Adjustment		$400.00
Ontario Land Tribunal (OLT) Appeals - All other Appeals		$1,100.00
Note: Ontario Land Tribunal (OLT) Appeals - In addition, where the Town becomes involved in an appeal to the OLT, and where the Town is in support of the application, the applicant shall pay Town staff costs in terms of time and expenses for preparation for and attendance at hearings, mediation or arbitration.		
Commissioning Planning Applications (for up to 5 signatures)		$26.80
Refund Policy		
	Where any application is withdrawn after a file has been opened, but before it has been circulated	90%
	Where a Zoning By-law Amendment or Combined Official Plan and Zoning By-law Amendment applications are withdrawn within 45 days from date of submission of a complete application	50%
	Where a Site Plan or a Site Plan Amendment application are withdrawn within 30 days of submission of a complete application	50%
	Where a standalone Official Plan Amendment or a Subdivision application is withdrawn after 1st submission comments have been provided to the applicant, but before a 2nd submission has been submitted	50%
	Where a minor variance application is withdrawn after a file has been circulated, but before it has been considered at a public meeting	50%
	Where an application is withdrawn any time after the 2nd submission has been submitted	0%
	Where a minor variance application is withdrawn after the public meeting	0%
	Refunds will also be issued in accordance with the *Planning Act*	
Recirculation - Required on the 4th submission and any subsequent submission of an application requiring circulation to internal departments and/or external agencies		$1,022.00
BOULEVARD MODIFICATIONS/ENCROACHMENTS		
Curb Cuts and Sidewalk/Curb Restoration - up to 4.0 metres (Note: $125.00 application processing fee + $175.00 curb cut fee)		$300.00

Schedule ‘A’

Curb Cuts and Sidewalk/Curb Restoration – Additional charge per metre in excess of 4 metres (plus actual costs for sidewalk/curb restorations)	$40.00
Complex Boulevard Encroachment Application Fee (Proposed modifications)	$300.00
Complex Boulevard Encroachment Application Fee (Prior modifications)	$600.00
Complex Boulevard Encroachment Agreement Fee (Collected only if a Complex Boulevard Encroachment Application is approved) *	$1,000.00
OTHER FEES	
Municipal Council Support for Roof-top Solar Photovoltaic Projects	$490.60
Heritage Permit	$0.00
Printing - Plan of Roads	$12.80
Printing - Subdivision Summary (11x17) w/Chart	$10.30
Printing - Official Plan Schedules (24x36) – per schedule	$15.40
Printing - Official Plan Schedules (11x17) – per schedule	$10.30

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 84-2022

Being a By-law to amend the Procedure By-law for the Corporation of the Town of Ajax

WHEREAS Section 238 (2) of the Municipal Act, 2001 as amended requires Council to pass a procedure by-law governing the calling, place and proceedings of meetings;

AND WHEREAS Council for the Corporation of the Town of Ajax has adopted by-law 34-2022, being a by-law to govern the proceedings of Council and Standing Committees of Council ("the Procedure By-law");

AND WHEREAS the Town deems it necessary to amend by-law 34-2022 in response to recent changes to provincial statutes;

NOW THEREFORE the Council of the Corporation of the Town of Ajax hereby enacts as follows:

1. THAT Section 5.34 of By-law 34-2022 be amended to read as follows:

   Notwithstanding Section 5.32, a person wishing to make a delegation in-person with respect to a matter before the Community Affairs and Planning Committee **or Council** for which the public has been invited to make comment, or has been given notice of the Meeting under the Planning Act R.S.O. 1990 c. P. 13 (the "Planning Act") or any other legislation or regulation, as required, is not required to give written notice nor be listed on the agenda.

2. THAT Section 5.34.1 of By-law 34-2022 be amended to read as follows:

   Notwithstanding Section 5.34, a person wishing to make a delegation remotely via electronic means with respect to a matter before the Community Affairs and Planning Committee **or Council** for which the public has been invited to make comment, or has been given notice of the Meeting under the Planning Act R.S.O. 1990 c. P. 13 (the "Planning Act") or any other legislation or regulation, as required, is required to give written notice to the Clerk as soon as possible prior to the meeting in order to enable their participation remotely.

3. THAT Section 6.3 of By-law 34-2022 be amended to read as follows:

   The Clerk shall prepare and cause to be circulated for the use of Members at Meetings of Council, an agenda listing the Order of Business, which shall contain the following general headings:

   Call to Order & Acknowledgement of Traditional Treaty Lands
   Disclosure of Pecuniary Interest
   Adoption of Minutes
   Question Period
   Delegations, Presentations, **and Public Meetings**
   Correspondence
   Reports
   Regional Councillors' Reports
   Business Arising from Notice of Motion
   By-laws
   Notice of Motion
   New Business/Announcements
   Confirming Bylaw
   Adjournment

4. THAT Section 6.9 of By-law 34-2022 be amended to read as follows:

   Delegations, Presentations, and **Public Meetings**

   Persons desiring to verbally present information**, make submissions as part of a public meeting,** or make a request to Council may do so as per Sections 5.32 to 5.43 of this by-law.

5. THAT Section 8.1 of By-law 34-2022 be amended to read as follows:

> The Community Affairs and Planning Committee is mandated with holding statutory public meetings required under the Planning Act or other legislation or regulations, any other matter deemed to require public consultation, and such other matters as may be referred to the Committee. **Notwithstanding this section, statutory public meetings required under the Planning Act or other legislation may also be held at meetings of Council where deemed necessary.**

6. THAT this by-law shall come into force and effect immediately upon third and final reading.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D - Clerk

Ontario Land Tribunal
Tribunal ontarien de l'aménagement du territoire

ISSUE DATE:	September 20, 2022	**CASE NO.:**	OLT-22-002467
EFFECTIVE DATE:	September 16, 2022		(Formerly PL180017)

PROCEEDING COMMENDED UNDER subsection 22(7) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended

Applicant(s)/Appellant(s):	Medallion Developments (Castlefields) Limited
Subject:	Request to amend the Official Plan - Failure of the Town of Ajax to adopt the requested amendment
Property Address/Description:	Northeast corner of Rossland Road East and Audley Road North
Municipality:	Town of Ajax
Municipal File No.:	OPA17-A1
OLT Case No.:	OLT-22-002467
Legacy Case No.:	PL180017
OLT File No.:	OLT-22-002467
Legacy File No.:	PL180017
OLT Case Name:	Medallion Developments (Castlefields) Limited v. Ajax (Town)

PROCEEDING COMMENDED UNDER subsection 34(11) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended

Applicant(s)/Appellant(s):	Medallion Developments (Castlefields) Limited
Subject:	Application to amend Zoning By-law No. 95-2003 - Refusal or neglect of the Town of Ajax to make a decision
Property Address/Description:	Northeast corner of Rossland Road East and Audley Road North
Municipality:	Town of Ajax
Municipal File No.:	Z1/17
OLT Case No.:	OLT-22-002467
Legacy Case No.:	PL180017
OLT File No.:	OLT-22-002469
Legacy File No.:	PL180018
OLT Case Name:	Medallion Developments (Castlefields) Limited v. Ajax (Town)

BEFORE:

C. HARDY & B. RAJAEE MEMBER	)	Friday, 16th
	)	
	)	day of September, 2022

THESE MATTERS having come on for a public hearing before the Ontario Land Tribunal (the "**Tribunal**") and the Tribunal having issued a Decision on May 31, 2022 and determining that the appeals under subsections 22(7) and 34(11) of the *Planning Act* (the "**Appeals**") should be allowed in part, and that the Official Plan Amendment and Zoning By-law Amendment should be approved, in principle, with the final Order withheld pending the Tribunal being advised by the Town Solicitor that such conditions have been fulfilled;

THE TRIBUNAL HAVING BEEN ADVISED that the above-noted matters in the Decision of the Tribunal have been completed to the satisfaction of the Town of Ajax prior to the issuance of a final Order regarding the Official Plan Amendment and Zoning By-law Amendment.

THE TRIBUNAL ORDERS that the Appeals are allowed, in part, and the Town of Ajax Official Plan is hereby amended in the manner set out in Attachment "1" to this Order, and the Zoning By-law No. 95-2003, as amended, is hereby amended in the manner set out in Attachment "2" of this Order. The Tribunal authorizes the municipal clerk to format the By-laws in Attachment "1" and "2", as may be necessary, for record keeping purposes.

THE TRIBUNAL ORDERS that, pursuant to Rule 24.3 of the Tribunal's Rules of Practice and Procedure, notwithstanding the eventual date of the formal issuance of this Order, it shall be, and was, effective as of Friday, September 16, 2022, by which date the Tribunal received, considered and determined the request for the Final Order in this proceeding.

"Euken Lui"

EUKEN LUI
ACTING REGISTRAR

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 78- 2022

A By-law to adopt Amendment No. 66 to the Official Plan for the Town of Ajax.

The area subject to this amendment is located between Rossland Road East and Carberry Crescent, Mansbridge Crescent, Styles Crescent, and Whitlock Crescent, from the Carruthers Creek tributary to Audley Road North;

AND WHEREAS, an Ontario Land Tribunal hearing was held pursuant to the *Planning Act* in respect of an appeal from a non-decision in respect of an application for an amendment to the Town of Ajax Official Plan;

AND WHEREAS, the Ontario Land Tribunal deems it appropriate to approve an amendment to the Town of Ajax Official Plan;

NOW THEREFORE, the Ontario Land Tribunal Orders:

That the Amendment to the Official Plan of the Town of Ajax attached to this Order as Attachment “A”, is hereby approved as Amendment No. 66.

That this by-law shall come into force and take effect from and after the final passing hereof.

READ a first and second time this Twelfth day of December, 2022.

READ a third time this Twelfth day of December, 2022.

_____

Mayor

_____

Deputy Clerk

Amendment No. 66 to the Town of Ajax Official Plan

1. Purpose

The purpose of this amendment is to allow for an overall development consisting of one 15-storey residential apartment building, three 8-storey residential apartment buildings, one 8 storey mixed use apartment building, fifty-three block townhouse dwellings and a municipal neighbourhood park by:

a) establishing site specific permissions in the 'High Density Residential' designation by:
    i. increasing the maximum permitted residential density;
    ii. permitting high rise apartment and block townhouse dwelling built forms; and
    iii. permitting a minimum building height of 3 storeys; and

b) establishing site specific permissions in the 'Medium Density Residential' designation by:
    i. increasing the maximum permitted residential density;
    ii. permitting mid-rise apartment and block townhouse dwelling built forms; and
    iii. re-designating a portion of the subject lands to Open Space.

2. Location

The lands subject to this amendment are located between Rossland Road East and Carberry Crescent, Mansbridge Crescent, Styles Crescent, and Whitlock Crescent, from the Carruthers Creek tributary to Audley Road North, legally described as Parts 1, 2 and 3 on Registered Plan 40R-21195, Concession 3, Part of Lots 3 and 4 on Registered Plan 40M-2174, and Concession 3 South Part Lot 3 Now Parts 1, 2 and 3 on Registered Plan 40R-19840, as shown on Schedule "A" to this By-law.

3. Basis

The subject lands are designated High Density Residential and Medium Density Residential on Schedule 'A-1' and are subject to Area Specific Policy 6.2 as identified on Schedule 'G' within the Town of Ajax Official Plan.

The lands within Area Specific Policy 6.2 are generally bounded by Taunton Road to the north, Audley Road to the east, Kingston Road to the south, top-of-bank of the Carruthers Creek to the west, and then by the CP rail line as it proceeds westerly and northerly to meet Taunton Road (formerly known as the A8 Planning Area).

Area Specific Policy 6.2 provides direction on, but not limited to, the following: permitted housing types in the Low Density, Medium Density and High Density Designations; mitigation measures to reduce adverse effects of High Density Residential development in close proximity to development within a Low Density or Medium Density Residential designation; location of off-street parking areas for multiple-unit residential housing forms; stormwater management; and schools.

The proposed development of the subject lands consists of 1,304 residential dwelling units within a 15-storey apartment building (Block A), three 8-storey apartment buildings (Blocks B, C and D), one 8-storey mixed-use apartment building (Block E) with approximately 950 m^2 ground level commercial space, and 53 townhouse dwellings. The future development would also include a 0.96 hectare park block.

The 0.96 hectare park block and the other community benefits specifically identified in the associated amendment to Town of Ajax Zoning By-law No. 95-2003 for the proposed development on the subject lands reflects all contributions required pursuant to the Town of Ajax Official Plan, section 37.1 of the *Planning Act* and all parkland contributions under the *Planning Act*.

Notwithstanding any potential or future change to the Town of Ajax parkland contribution by-law, the Town of Ajax shall not request nor accept any further contributions or conveyances for community benefits and/or parkland in respect of the proposed development on the lands subject to this amendment save and except if the proposed development is modified in the future to further increase its density, in which case the owner of the subject lands and the Town of Ajax agree that any additional contribution(s) shall be based solely on the increase between the proposed development contemplated by this amendment and the increase in density proposed.

Notwithstanding the previous paragraph, if the proposed development is modified in the future to further increase its density, further contributions may be required provided they are commensurate with the increase between the proposed development contemplated by this amendment and the increase in density proposed.

The amendment meets the review criteria for amendments to the Official Plan under Section 7.2.2 of the Town of Ajax (Town) Official Plan by conforming to municipal goals and objectives of the Official Plan; contributing to the overall urban structure of the Town; being compatible with adjacent land uses; and being supported by infrastructure to service the development.

Studies and Reports that were completed to support this amendment were:

- Planning Rationale Report
  (prepared by Candevcon Limited)

- Transportation Impact Study
  (prepared by LEA Consulting Ltd.)

- Functional Servicing and Stormwater Management Report
  (prepared by Candevcon Limited)

- Noise Feasibility Study
  (prepared by HGC Engineering)

- Stage 2 Archaeological Assessment
  (prepared by Archaeological Services Inc.)

- Stage I-III Archaeological / Heritage Assessment
  (prepared by Sernas Associates)

- Arborist Report – Construction/Tree Protection
  (prepared by Central Tree Care Ltd.)

- Shadow Study
  (prepared by IBI Group Architects)

- Urban Design Brief
  (prepared by IBI Group Architects, Land Art Design, and Medallion Developments Inc.)

- Agricultural Assessment and Minimum Distance Separation Calculation
  (prepared by Candevcon Limited)

- Site Screening Questionnaire
  (prepared by Golder Associates Ltd.)

4. **Actual Amendment**

a) That Section 6.2 ‘Lands Bounded on the north by Taunton Road, on the east by Audley Road, on the south by Kingston Road, and on the west by the approximate top-of-bank of Carruthers Creek and then by the CP rail line as it proceeds westerly and northerly to meet Taunton Road (formerly known as the A8 Planning Area)’ is hereby amended by adding a new subsection, which reads as follows:

“w) Notwithstanding Subsection 6.2 b), ‘mid-rise apartments’ and ‘multiple attached dwellings / block townhouses’ are permitted on lands designated Medium Density Residential located between Rossland Road East, Audley Road North, Whitlock Crescent, Styles Crescent, Mansbridge Crescent, and Rushworth Drive (referred to as Blocks B, C, D and E).

Notwithstanding Subsection 6.2 b), ‘high-rise apartments’ and ‘multiple attached dwellings / block townhouses’ are permitted on lands designated High Density Residential located between Rossland Road East, Rushworth Drive, Carberry Crescent and the Carruthers Creek (referred to as Block A).

Notwithstanding Subsection 3.1.4 a) and Subsection 6.2 c), for lands designated Medium Density Residential located between Rossland Road East, Rushworth Drive, Mansbridge Crescents and the park block (referred to as Block B), a maximum density of 318 units per net hectare shall be permitted.

Notwithstanding Subsection 3.1.4 a) and Subsection 6.2 c), for lands designated Medium Density Residential located between Rossland Road East, Hilton Gate, Whitlock Crescent, and to an east limit of approximately 102 metres measured from the east side of the Hilton Gate right-of-way (referred to as Block C), a maximum density of 327 units per net hectare shall be permitted.

Notwithstanding Subsection 3.1.4 a) and Subsection 6.2 c), for lands designated Medium Density Residential located between Rossland Road East, Whitlock Crescent, an east limit of approximately 108 metres measured from the west side of the Audley Road North right-of-way that then runs east to meet the west interior side lot line of 41 Whitlock Crescent approximately 3.7 metres north measured from the rear lot line, and west limit of approximately 102 metres measured from the east side of the Hilton Gate right-of-way (referred to as Block D), a maximum density of 314 units per net hectare shall be permitted.

Notwithstanding Subsection 3.1.4 a) and Subsection 6.2 c), for lands designated Medium Density Residential located between Rossland Road East, Audley Road North, the rear of lots that contain semi-detached dwellings that front onto Whitlock Crescent, and to a west limit of approximately 108 metres measured from the west side of the Audley Road North right-of-way (referred to as Block E), a maximum density of 350 units per net hectare shall be permitted.

Notwithstanding Section 3.1.5 a) and Subsection 6.2 c), for lands designated High Density Residential located between Rossland Road East, Rushworth Drive, Carberry Crescent and the Carruthers Creek (referred to as Block A), a maximum density of 650 units per net hectare shall be permitted.

Notwithstanding Section 3.1.5 b) for lands designated High Density Residential located between Rossland Road East, Rushworth Drive, Carberry Crescent and the Carruthers Creek (referred to as Block A), dwelling units and buildings shall generally be between a minimum of 3 storeys and a maximum of 15 storeys. Exceptions to the maximum height limitation may be permitted in order to address topography and/or site grading matters.

In addition to the policies in Section 3.1.7 (Convenience Commercial Centre/Stores), for lands designated Medium Density Residential located between Rossland Road East, Audley Road North, the rear of lots that contain semi-detached dwellings that front onto Whitlock Crescent, and to a west limit of approximately 108 metres measured from the west side of the Audley Road North right-of-way (referred to as Block E), an individual retail or personal service use may have a gross leasable floor area greater than 250 square metres.

b) That Schedule A-1 (Land Use) is hereby amended as follows and as illustrated on Schedule 'B' attached hereto:

Re-designate a portion of the lands designated 'Medium Density Residential' to 'Open Space'.

c) Schedule B (Environment) is hereby amended as follows and as illustrated on Schedule 'C' attached hereto:

Adding a Neighburhood Park symbol located northwest and adjacent to the current intersection of Rossland Road East and Hilton Gate and delineate the 'Open Space'.

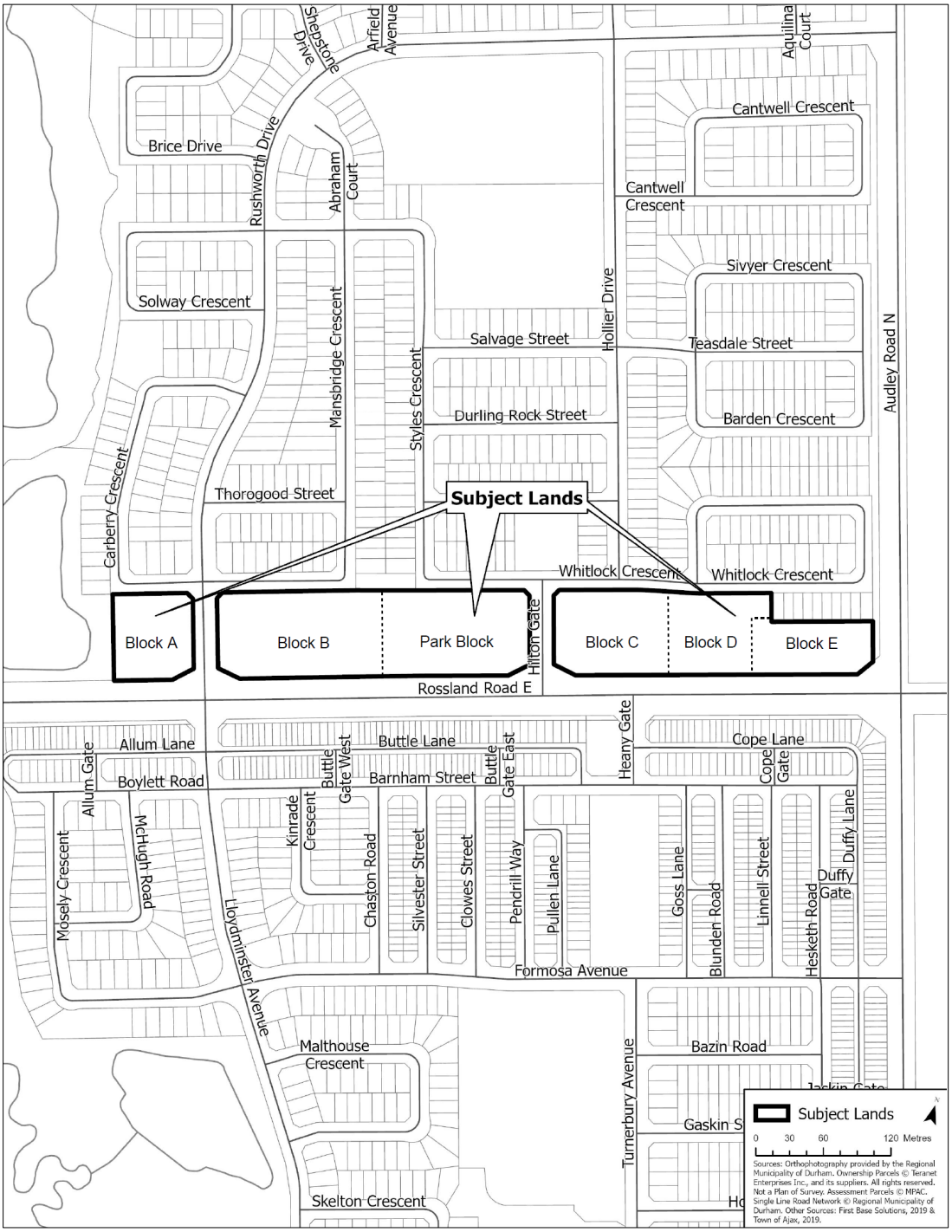
5. Implementation

The provisions set forth in the Town of Ajax Official Plan, regarding the implementation of the Plan, shall apply to this Amendment.

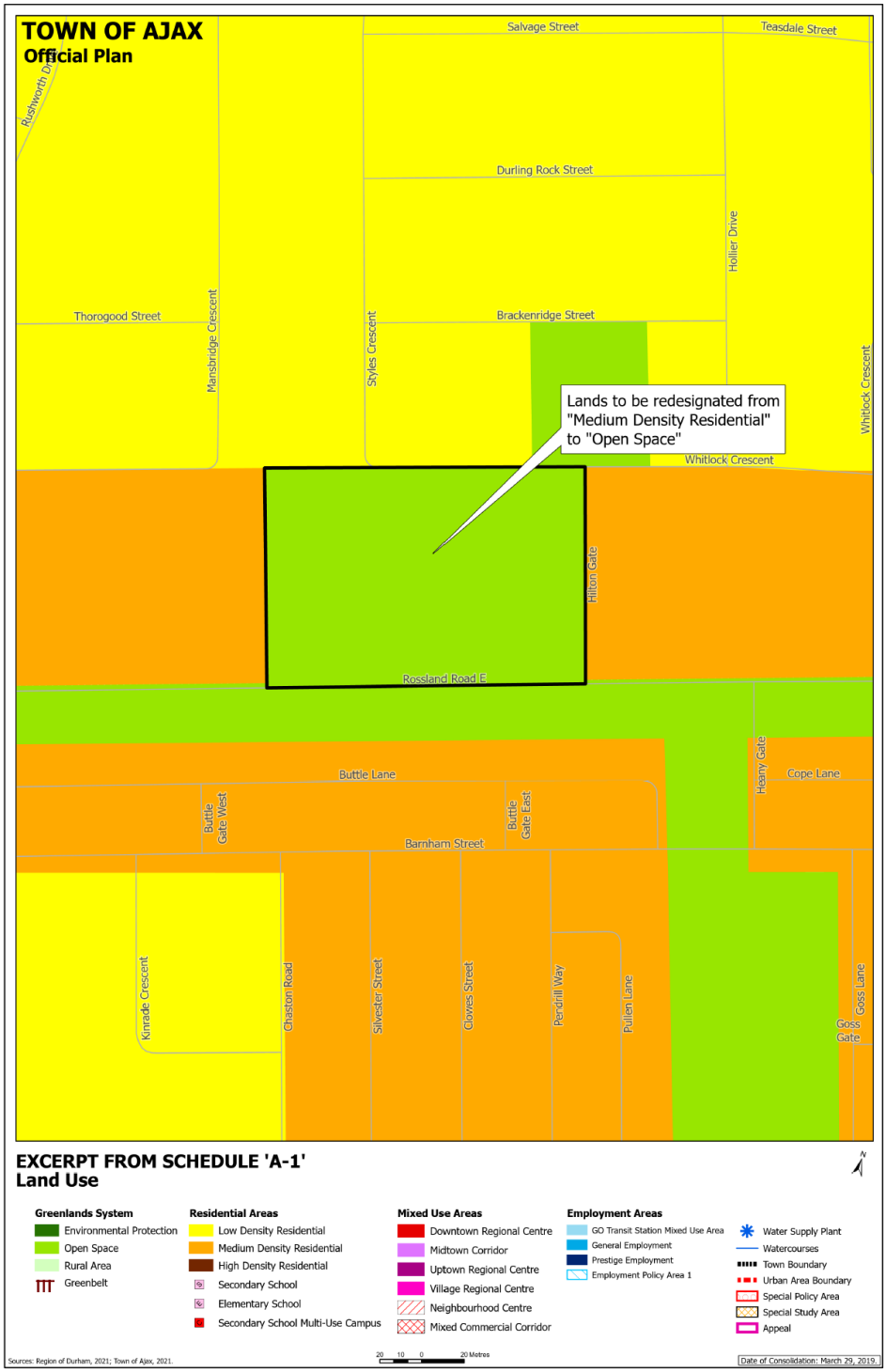
6. Interpretation

The provisions set forth in the Ajax Official Plan that are not otherwise in conflict with this Amendment shall continue to apply.

Schedule 'A'
Lands Affected by Amendment No. 66
To The Town of Ajax Official Plan



Schedule 'B'
To Amendment No. 66
To The Town of Ajax Official Plan



Schedule 'C'
To Amendment No. 66
To The Town of Ajax Official Plan



TOWN OF AJAX OFFICIAL PLAN EXCERPT
SCHEDULE 'B'- ENVIRONMENT

Ontario Land Tribunal
Tribunal ontarien de l'aménagement du territoire

ISSUE DATE:	September 20, 2022	**CASE NO.:**	OLT-22-002467
EFFECTIVE DATE:	September 16, 2022		(Formerly PL180017)

PROCEEDING COMMENDED UNDER subsection 22(7) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended

Applicant(s)/Appellant(s):	Medallion Developments (Castlefields) Limited
Subject:	Request to amend the Official Plan - Failure of the Town of Ajax to adopt the requested amendment
Property Address/Description:	Northeast corner of Rossland Road East and Audley Road North
Municipality:	Town of Ajax
Municipal File No.:	OPA17-A1
OLT Case No.:	OLT-22-002467
Legacy Case No.:	PL180017
OLT File No.:	OLT-22-002467
Legacy File No.:	PL180017
OLT Case Name:	Medallion Developments (Castlefields) Limited v. Ajax (Town)

PROCEEDING COMMENDED UNDER subsection 34(11) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended

Applicant(s)/Appellant(s):	Medallion Developments (Castlefields) Limited
Subject:	Application to amend Zoning By-law No. 95-2003 - Refusal or neglect of the Town of Ajax to make a decision
Property Address/Description:	Northeast corner of Rossland Road East and Audley Road North
Municipality:	Town of Ajax
Municipal File No.:	Z1/17
OLT Case No.:	OLT-22-002467
Legacy Case No.:	PL180017
OLT File No.:	OLT-22-002469
Legacy File No.:	PL180018
OLT Case Name:	Medallion Developments (Castlefields) Limited v. Ajax (Town)

BEFORE:

C. HARDY & B. RAJAEE MEMBER	)	Friday, 16th
	)	
	)	day of September, 2022

THESE MATTERS having come on for a public hearing before the Ontario Land Tribunal (the "**Tribunal**") and the Tribunal having issued a Decision on May 31, 2022 and determining that the appeals under subsections 22(7) and 34(11) of the *Planning Act* (the "**Appeals**") should be allowed in part, and that the Official Plan Amendment and Zoning By-law Amendment should be approved, in principle, with the final Order withheld pending the Tribunal being advised by the Town Solicitor that such conditions have been fulfilled;

THE TRIBUNAL HAVING BEEN ADVISED that the above-noted matters in the Decision of the Tribunal have been completed to the satisfaction of the Town of Ajax prior to the issuance of a final Order regarding the Official Plan Amendment and Zoning By-law Amendment.

THE TRIBUNAL ORDERS that the Appeals are allowed, in part, and the Town of Ajax Official Plan is hereby amended in the manner set out in Attachment "1" to this Order, and the Zoning By-law No. 95-2003, as amended, is hereby amended in the manner set out in Attachment "2" of this Order. The Tribunal authorizes the municipal clerk to format the By-laws in Attachment "1" and "2", as may be necessary, for record keeping purposes.

THE TRIBUNAL ORDERS that, pursuant to Rule 24.3 of the Tribunal's Rules of Practice and Procedure, notwithstanding the eventual date of the formal issuance of this Order, it shall be, and was, effective as of Friday, September 16, 2022, by which date the Tribunal received, considered and determined the request for the Final Order in this proceeding.

"Euken Lui"

EUKEN LUI
ACTING REGISTRAR

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 79-2022

A By-law to amend By-law No. 95-2003, as amended.

WHEREAS, the Ontario Land Tribunal deems it appropriate to pass an implementing Zoning By-law to regulate the future development of the subject lands described as Parts 1, 2 and 3 on Registered Plan 40R-21195, Concession 3, Part of Lots 3 and 4 on Registered Plan 40M-2174, and Concession 3 South Part Lot 3 Now Parts 1, 2 and 3 on Registered Plan 40R-19840 identified on Schedule 'A' to this By-law;

AND WHEREAS**,** pursuant to Section 37 of the *Planning Act,* a By-law passed under Section 34 of the *Planning Act* may authorize increases in the height or density of development beyond that otherwise permitted by the by-law that will be permitted in return for the provision of such facilities, services or matters as are set out in the by-law;

AND WHEREAS subsection 37(3) of the *Planning Act* provides that where an owner of land elects to provide facilities, services or matters in return for an increase in the height or density of development, a municipality may require the owner to enter into one or more agreements with the municipality dealing with the facilities, services and matters;

AND WHEREAS the owner of the lands known at the date of this By-law as Medallion Developments (Castlefields) Limited has elected to provide the facilities, services or matters as are set out in this By-law;

NOW THEREFORE, the Ontario Land Tribunal enacts as follows:

1. THAT the Zone Schedule, specifically Map 59, attached to and forming part of Zoning By-law No. 95-2003, as amended, is hereby further amended by rezoning the subject lands from "Residential Multiple Six Zone, with Exception 76 (RM6, Exception 76)" and " Neighbourhood Commercial Zone, with Exception 76 (NC, Exception 76)" to "Residential Multiple Six Zone, Holding ('H') Provision, with Exception 76 [RM6(H), Exception 76]" and "Open Space Zone, with Exception 76 (OS, Exception 76)", as indicated on the attached Schedule 'B' of this By-law.

2. THAT Exception 76, under Section 7.1.1, List of Exceptions, of By-law No. 95-2003, as amended, is hereby further amended as follows:

    a) By deleting "NC" and "RM6" and adding "RM6(H)" under the "Zoning" reference header such that it appears as follows "EP, I-A, R1-D, R1-E, R2-B, RM6(H), OS" ;

    b) By adding By-law No. 79-2022 in the "By-law" reference header, such that it appears after and in conjunction with "50-2003";

c) By adding “OPA17-A1” and “Z1/17” under the “File Reference” reference header such that it appears after and in conjunction with “Z1/99”;

d) By deleting bullet “v) Other: b)” and “v) Other: c)”, including sub-bullets “i) through to vi)” and adding the following new bullet and sub-bullets, such that it appears after bullet “v) Other: a)”:

b) For lands located between Rossland Road East and Carberry Crescent, Mansbridge Crescent, Styles Crescent, and Whitlock Crescent, from the Carruthers Creek tributary to Audley Road North, zoned Residential Multiple Six, Holding (‘H’) Provision [RM6(H)] the following shall apply for the Blocks referenced below and illustrated in Schedule ‘C’:

i) Blocks A to E:

a) Prior to the widening of Rossland Road East to a 4-lane urban cross-section, from Salem Road North to Lake Ridge Road North, only a total of 357 residential dwelling units on the subject lands may be occupied.

ii) Block A:

a) Permitted Uses:

i) Dwelling, Apartment

ii) Dwelling, Multiple Attached

b) Development Standards for Dwelling, Apartment:

i)	Maximum Height:	15 storeys
ii)	Minimum Setback from the South Property Line (Rossland Road East):	3.0 m
iii)	Minimum Setback from the North Property Line (Carberry Crescent):	25.0 m
iv)	Minimum Setback from the East Property Line (Rushworth Drive):	3.0 m
v)	Minimum Setback from the West Property Line (adjacent to the stormwater management pond):	3.0 m

c) Development Standards for Dwelling, Multiple Attached:

i)	Minimum Height:	3 storeys
ii)	Minimum Setback from the South Property Line (Rossland Road East):	60 m
iii)	Minimum Setback from the North Property Line (Carberry Crescent):	2.5 m
iv)	Minimum Setback from the East Property Line (Rushworth Drive):	2.0 m

v) Minimum Setback from the West Property Line (adjacent to the stormwater management pond): 2.0 m

d) Other:

i) Maximum Residential Density (Units Per Net Hectare): 650

ii) Maximum Lot Coverage: 56%

iii) Minimum Required Parking (Residential):

- 1.0 space per dwelling unit for the exclusive use of residents
- 0.2 spaces per dwelling unit for the exclusive use of visitors

iv) Minimum Setback from a Below Grade Parking Structure to all Lot Lines: 0.0 m

v) Minimum Setback from an Access Ramp to a Below Grade Parking Structure to all Lot Lines: 1.0 m

vi) Apartment buildings shall provide a residential entrance fronting Rossland Road East.

vii) All Multiple Attached Dwelling units shall be designed as double fronting units where the north and south facing facades present a frontal expression including a front door(s), pedestrian access, and windows. Any fencing in the north and south yards shall be limited to a maximum height of 1.2 metres.

viii) Vehicular access to all residential units shall only be provided by an internal private road.

ix) Notwithstanding Section 4.8, the height requirement for Dwelling, Apartment shall not apply to spires, belfries, chimneys, elevator enclosures, or mechanical penthouses occupying in the aggregate less than 45 percent of the area of the roof of the building on which they are located.

x) Platforms may extend 1.2 metres out from the main building wall, but no closer than 1.2 metres to the North Property Line (Carberry Crescent).

iii) <u>Block B</u>:

a) Permitted Uses:

i) Dwelling, Apartment

ii) Dwelling, Multiple Attached

b) Development Standards for Dwelling, Apartment:

i) Maximum Height: 8 storeys

ii) Minimum Setback from the South Property Line (Rossland Road East): 3.0 m

iii)	Minimum Setback from the North Property Line (Mansbridge Crescent):	26.0 m
iv)	Minimum Setback from the East Property Line (adjacent to the park block):	3.0 m
v)	Minimum Setback from the West Property Line (Rushworth Drive):	3.0 m

c) Development Standards for Dwelling, Multiple Attached:

i)	Minimum Setback from the South Property Line (Rossland Road East):	60 m
ii)	Minimum Setback from the North Property Line (Mansbridge Crescent):	2.5 m
iii)	Minimum Setback from the East Property Line (adjacent to the park block):	3.0 m
iv)	Minimum Setback from the West Property Line (Rushworth Drive):	2.0 m

d) Other:

i)	Maximum Residential Density (Units Per Net Hectare):	318
ii)	Maximum Lot Coverage:	53%
iii)	Minimum Required Parking (Residential):	

- 1.0 space per dwelling unit for the exclusive use of residents
- 0.2 spaces per dwelling unit for the exclusive use of visitors

iv)	Minimum Setback from a Below Grade Parking Structure to all Lot Lines:	0.0 m
v)	Minimum distance between blocks of Dwelling, Multiple Attached:	11.0 m

vi) Apartment buildings shall provide a residential entrance fronting Rossland Road East.

vii) All Multiple Attached Dwelling units shall be designed as double fronting units where the north and south facing facades present a frontal expression including a front door(s), pedestrian access, and windows. Any fencing in the north and south yards shall be limited to a maximum height of 1.2 metres.

viii) Vehicular access to all residential units shall only be provided by an internal private road.

ix) Notwithstanding Section 4.8, the height requirement for Dwelling, Apartment shall not apply to spires, belfries, chimneys, elevator enclosures, or mechanical penthouses occupying in the aggregate less than 35 percent of the area of the roof of the building on which they are located.

x) Platforms may extend 1.2 metres out from the main building wall, but no closer than 1.2 metres to the North Property Line (Mansbridge Crescent).

iv) Blocks C and D:

a) Permitted Uses:

i) Dwelling, Apartment

ii) Dwelling, Multiple Attached

b) Development Standards for Dwelling, Apartment:

i)	Maximum Height:	8 storeys
ii)	Minimum Setback from the South Property Line (Rossland Road East):	3.0 m
iii)	Minimum Setback from the North Property Line (Styles Crescent and Whitlock Crescent):	24.0 m
iv)	Minimum Setback from the East Property Line (Audley Road North):	108 m
v)	Minimum Setback from the West Property Line (Hilton Gate):	3.0 m

c) Development Standards for Dwelling, Multiple Attached:

i)	Minimum Setback from the South Property Line (Rossland Road East):	57 m
ii)	Minimum Setback from the North Property Line (Styles Crescent and Whitlock Crescent):	2.0 m
iii)	Minimum Setback from the East Property Line (Interior Side Lot Line of 41 Whitlock Crescent):	2.0 m
iv)	Minimum Setback from the West Property Line (Hilton Gate):	2.0 m

d) Other:

i) Maximum Residential Density (Units Per Net Hectare):

- Block C: 327
- Block D: 314

ii) Maximum Lot Coverage: 53%

iii) Minimum Required Parking (Residential):

- 1.0 space per dwelling unit for the exclusive use of residents

- 0.2 spaces per dwelling unit for the exclusive use of visitors

iv) Minimum Setback from a Below Grade Parking Structure to all Lot Lines: 0.0 m

v) Minimum distance between Dwelling, Apartments: 15.0 m

vi) Minimum distance between blocks of Dwelling, Multiple Attached: 7.0 m

vii) Apartment buildings shall provide a residential entrance fronting Rossland Road East.

viii) All Multiple Attached Dwelling units shall be designed as double fronting units where the north and south facing facades present a frontal expression including a front door(s), pedestrian access, and windows. Any fencing in the north and south yards shall be limited to a maximum height of 1.2 metres.

ix) Vehicular access to all residential units shall only be provided by an internal private road.

x) Notwithstanding Section 4.8, the height requirement for Dwelling, Apartment shall not apply to spires, belfries, chimneys, elevator enclosures, or mechanical penthouses occupying in the aggregate less than 25 percent of the area of the roof of the building on which they are located.

xi) Platforms may extend 1.2 metres out from the main building wall, but no closer than 1.2 metres to the North Property Line (Styles Crescent and Whitlock Crescent).

v) Block E:

a) Permitted Uses:

i) Dwelling, Apartment, provided retail/commercial uses are located at grade

ii) Ground level retail/commercial uses within a Dwelling, Apartment:

- uses permitted in the Neighbourhood Commercial Zone
- Restaurant, Retail Store and Medical Clinic

b) Development Standards for Dwelling, Apartment:

i) Maximum Height: 8 storeys

ii) Minimum Setback from the South Property Line (Rossland Road East): 0.5 m

iii) Minimum Setback from the North Property Line (rear lot line of lots fronting onto Whitlock Crescent): 20 m

iv) Minimum Setback from the East Property Line (Audley Road North): 0.5 m

v) Minimum Setback from the West Property Line (Hilton Gate): 187 m

c) Other:

i) Maximum Residential Density (Units Per Net Hectare): 350

ii) Maximum Lot Coverage: 48%

iii) Minimum Required Parking (Residential):

- 1.0 space per dwelling unit for the exclusive use of residents
- 0.2 spaces per dwelling unit for the exclusive use of visitors

iv) Minimum Required Parking (Retail/Commercial / Non-Residential Uses):

- 1 parking space per 32 m^2 of gross floor area

v) Minimum Gross Floor Area of Retail/Commercial / Non-Residential Uses: 950 m^2

vi) Minimum Setback from a Below Grade Parking Structure to all Lot Lines: 0.0 m

vii) Dwelling, Apartments shall provide a residential entrance fronting Rossland Road East.

viii) Retail/Commercial / Non-Residential units shall have entrances fronting Rossland Road East.

ix) Any building with residential units shall provide a residential entrance fronting Rossland Road East.

x) Notwithstanding Section 4.8, the height requirement for Dwelling, Apartment shall not apply to spires, belfries, chimneys, elevator enclosures, or mechanical penthouses occupying in the aggregate less than 30 percent of the area of the roof of the building on which they are located.

vi) *Planning Act*, Section 37 – Increased Height and Density:

a) The registered owner of the subject lands shall enter into one or more agreements with the Town pursuant to Section 37 of the *Planning Act*, in accordance with the provisions of section 4 of By-law No. 79 – 2022, no later than September 18, 2022.

d) By renumbering bullet “v) Other: d)” to “v) Other: c)”;

e) By adding the map identifying Blocks in Schedule ‘C’ of this bylaw so that it appears after bullet “v) Other: c)”:

3. THAT the Section 8.1.1, List of Holding Provisions, of By-law No. 95-2003, as amended, is hereby further amended by adding the following:

By-law No.	Property Description	Permitted *Use* Until Holding Provision Removed	Conditions For Removal	Date Enacted
79 - 2022	Parts 1, 2 and 3 on Registered Plan 40R-21195, Concession 3, Part of Lots 3 and 4 on Registered Plan 40M-2174, and Concession 3 South Part Lot 3 Now Parts 1, 2 and 3 on Registered Plan 40R-19840 Lands between Rossland Road East and Carberry Crescent, Mansbridge Crescent, Styles Crescent, and Whitlock Crescent, from the Carruthers Creek tributary to Audley Road North Land Owner: Medallion Developments (Castlefields) Limited File Reference: Z1/17	Prior to removing the holding provision, the subject lands may be used in accordance with the provisions of the “RM6” – Residential Multiple Six Zone as outlined in Section 6.2 and “NC” - Neighbourhood Commercial Zone as outlined in Section 6.3.	▪ The applicant enter into a *Planning Act* Section 37 Community Benefits Agreement with the Town no later than September 18, 2022, to the satisfaction of Town. ▪ The applicant convey a 0.96 hectare parcel of land located adjacent to Rossland Road East, Hilton Gate, and Styles Crescent for the purposes of a park upon site plan approval of the first parcel / building of the subject lands, to the satisfaction of the Town. ▪ The applicant submit a site plan application to the Town for approval.	September 16, 2022

By-law No.	Property Description	Permitted *Use* Until Holding Provision Removed	Conditions For Removal	Date Enacted
79-2022			▪ That the applicant enter into a site plan agreement with the Town.	September 16, 2022

4. Section 37 – Increased Height and Density

a) THAT pursuant to Section 37.1 of the *Planning Act*, and subject to compliance with the provisions of this By-law, the increase in density of development on the subject lands is permitted in return for the provision by the Owner of the following facilities, services and matters to the Town at the Owner's sole expense.

b) THAT the Owner enter into one or more agreements with the Town pursuant to Section 37.1 of the *Planning Act*, which shall be registered on title to the subject lands by the Town to secure the facilities, services and matters required to be provided by this Section of the by-law and the Owner shall consent to the registration of such agreement or agreements against title to the subject lands.

c) THAT the Owner provides a cash contribution of $2,990,000.00 to the Town, in accordance with the community benefit and cash payment timeline identified in the Section 37.1 of the *Planning Act* Agreement, which shall be used for the following:

i) the construction cost of the park block within the development;
ii) the construction cost of a splash pad within the Castlefields Park;
iii) a multi-use three(3) metre wide asphalt trail connection through the Castlefields woodlot between the Snowling trail and Audley Road North multi-use path;
iv) tree planting at Brice Drive/Greenbelt and Snowling Drive at the trail;
v) pedestrian improvements/traffic calming at Rushworth and Carberry/Mansbridge and at Hilton Gate and Styles/Whitlock; and
vi) a traffic signal at Rossland Road and Hilton Gate.

d) THAT notwithstanding section 4. c) revisions to the allocation of the cash contribution for the community benefits identified in section 4. c) shall be determined at the sole discretion of the Town provided:

i) any revisions to the allocation of the contribution may only be amongst the list of community benefits identified in section 4. c); and
ii) any revision to the allocation of the cash contribution attributable to the construction of the park block within the development can only be increased (and not decreased).

e) THAT the cash contribution identified in 4. c) shall be indexed in accordance with the most recently published “Non-Residential Construction Price Index” for the Toronto CMA published by Statistics Canada on a quarterly basis, or its successor, calculated from June 1, 2022 to the date of payment of the funds by the Owner to the Town.

f) THAT notwithstanding the foregoing, the Owner and the Town may, from time to time and upon the consent of the Town and the Owner, modify or amend the agreement(s) entered into under Section 37.1 of the *Planning Act* with respect to this By-law without further amendment to those provisions of this By-law which identify the facilities, services and matters to be secured.

5. THAT notwithstanding any severance, partition, or division of the subject lands, the provisions of this By-law shall apply to the whole of the lands as if no severance, partition or division had occurred.

6. THAT notwithstanding subsection 45 (1.3) of the *Planning Act*, subsequent to Council approval of the development applications, the applicant can apply for a minor variance application provided that the height, density and floor space index (FSI) shall not increase.

7. By-law No. 95-2003, as amended, is hereby further amended only to the extent necessary to give effect to the provisions of this By-law.

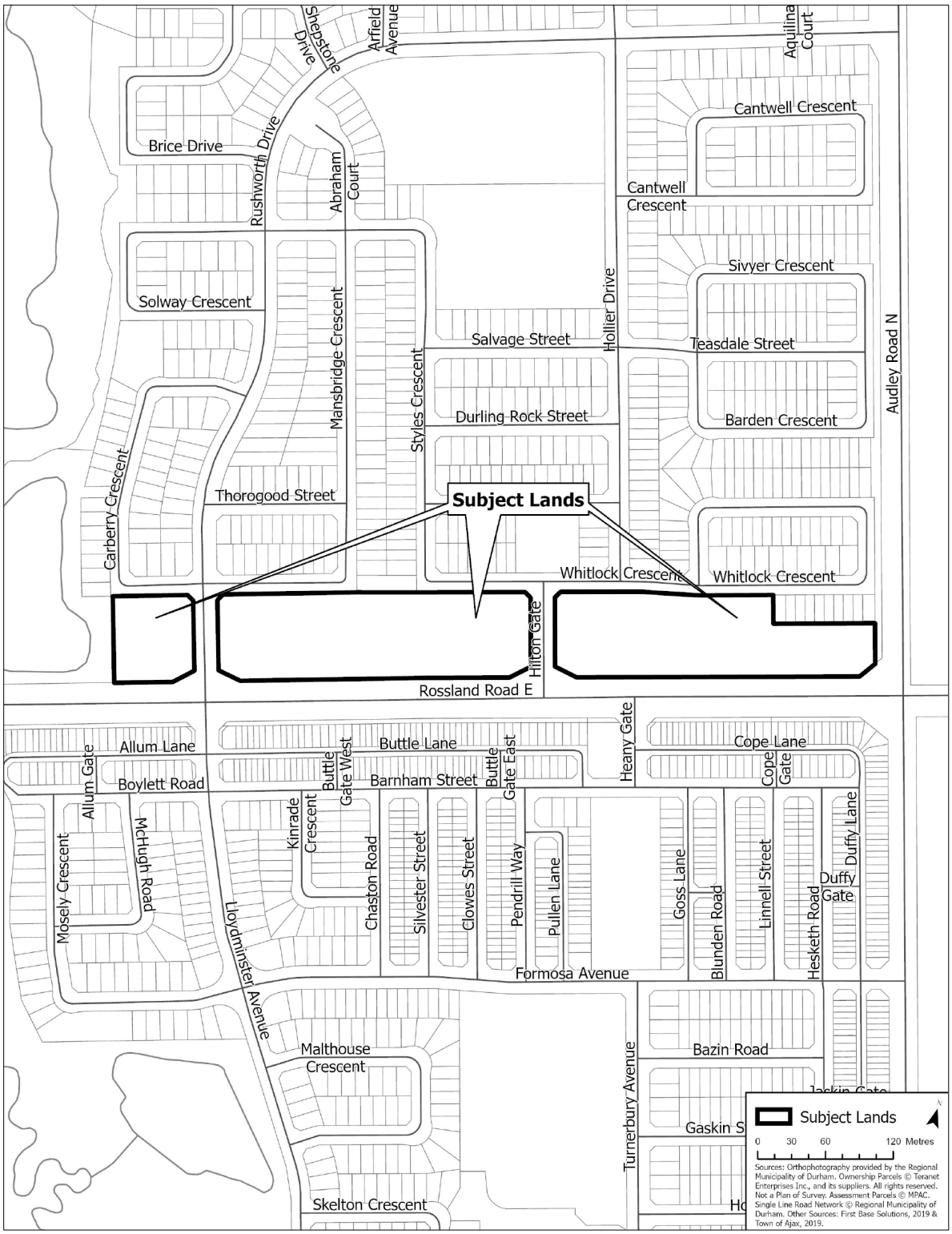
READ a first and second time this Twelfth day of December, 2022

READ a third time and passed this Twelfth day of December, 2022

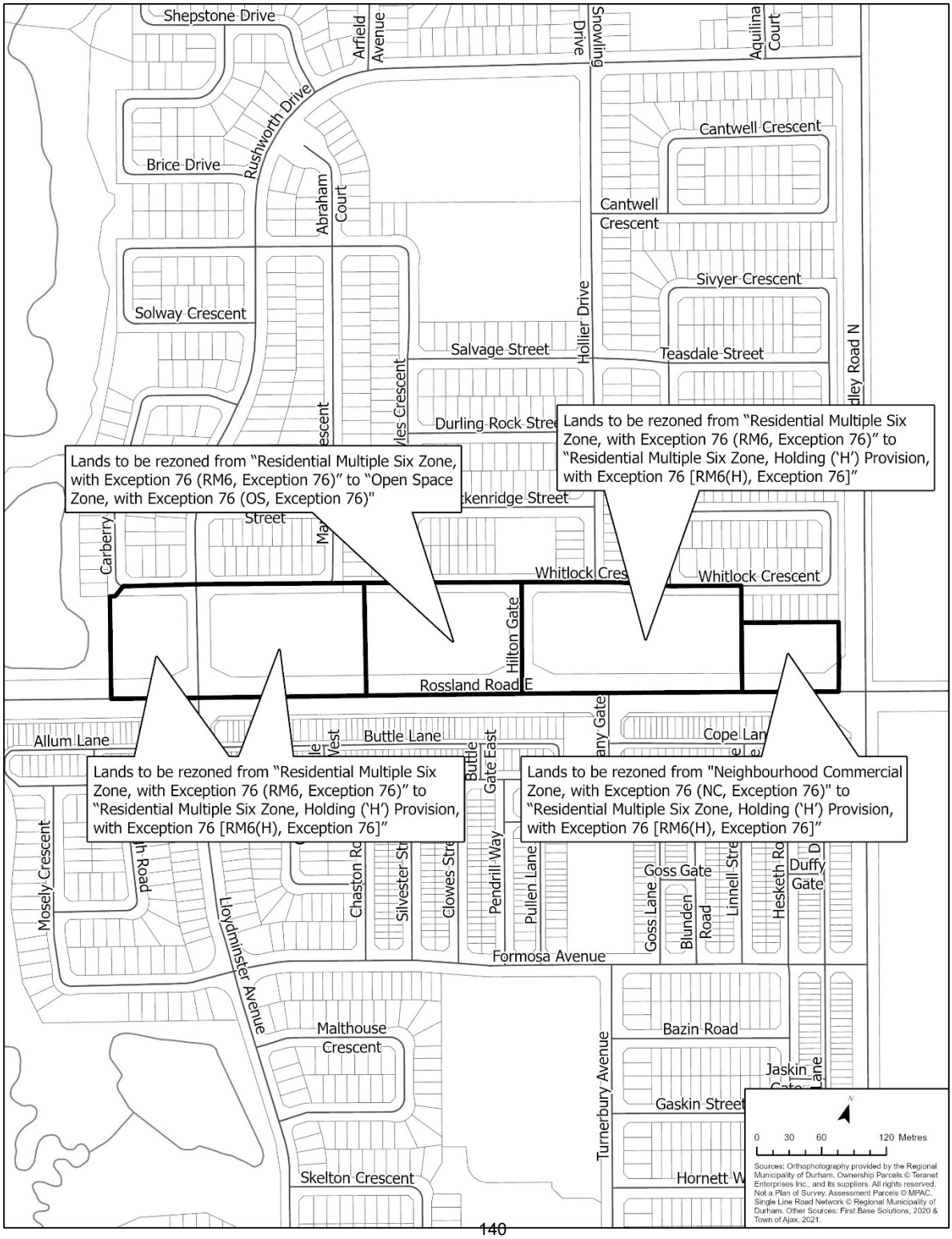
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Mayor

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Deputy Clerk

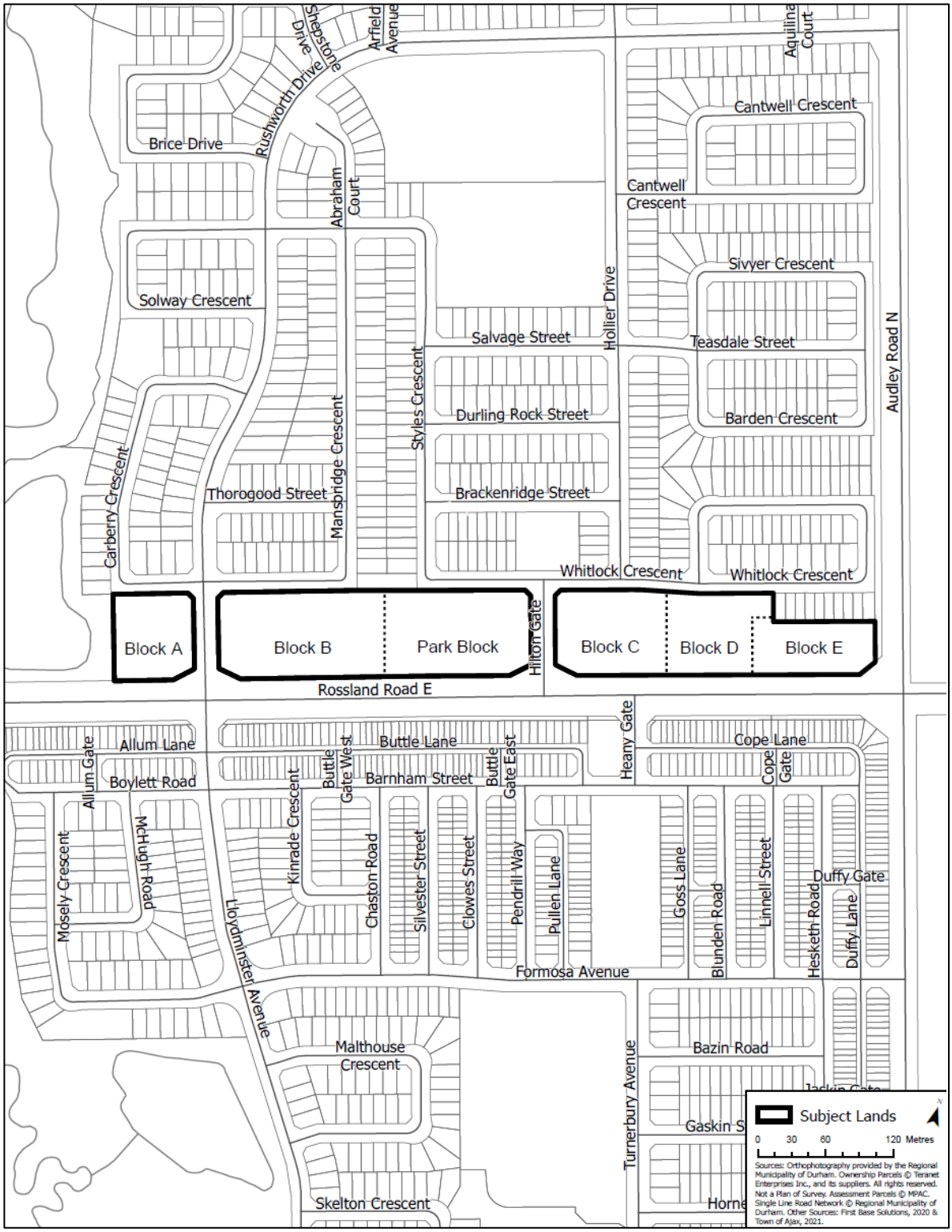
Schedule 'A' to By-Law Number 79-2022



Schedule ‘B’ to By-Law Number 79-2022



Schedule ‘C’ to By-Law Number 79-2022



Explanatory Note to By-Law Number 79-2022

The purpose of this by-law is to rezone the subject lands, located Rossland Road East, Carberry Crescent, Mansbridge Crescent, Styles Crescent, Whitlock Crescents, from the Carruthers Creek tributary to the west and Audley Road to the east, from “Residential Multiple Six Zone, with Exception 76 (RM6, Exception 76)” and " Neighbourhood Commercial Zone, with Exception 76 (NC, Exception 76)" to “Residential Multiple Six Zone, Holding (‘H’) Provision, with Exception 76 [RM6(H), Exception 76]” and “Open Space Zone, with Exception 76 (OS, Exception 76)", as indicated on the attached Schedule ‘B’ of this By-law, to:

1) Facilitate the development of the subject lands for 1,304 residential dwelling units within a 15-storey apartment building (Block A), three 8-storey apartment buildings (Blocks B, C and D), one 8-storey mixed-use apartment building (Block E), 53 townhouse dwellings and a neighbourhood park by modifying permitted uses and establishing various development standards that regulate the development of the subject lands.

2) Establish and regulate the procurement of community benefits under Section 37 of the *Planning Act*, for increases in building height and/or density above existing planning permissions.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 85-2022

Being a By-Law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting of December 12, 2022.

WHEREAS Section 5 (3) of the *Municipal Act, 2001*, as amended, provides that municipal powers shall be exercised by By-law, unless the municipality is specifically authorized to do otherwise;

AND WHEREAS it is deemed expedient and desirable that the proceedings of the Council of the Corporation of the Town of Ajax at this meeting be confirmed and adopted by By-law.

NOW THEREFORE, BE IT ENACTED AND IT IS HEREBY ENACTED as a By-law of the Corporation of the Town of Ajax by the Council thereof as follows:

1. That the actions of the Council at its regular meeting held on the 12th day of December, 2022 and in respect of each motion, resolution and other action passed and taken by the Council at its said meeting, is, except where the prior approval of the Ontario Land Tribunal or other body is required, hereby adopted, ratified and confirmed as if all such proceedings were expressly embodied in this By-law.

2. That the Head of the Council and proper officers of the Corporation of the Town of Ajax are hereby authorized and directed to do all things necessary to give effect to the said action or to obtain appropriate approvals where required, except where otherwise provided, and to affix the Corporate Seal of the Corporation of the Town of Ajax to all such documents.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk